



California Regional Water Quality Control Board

Central Coast Region



Linda S. Adams
Secretary for
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Protection

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Arnold Schwarzenegger
Governor

December 7, 2006

CERTIFIED MAIL 7005 0390 0001 7427 1781

Ms. Diane M. Gabriel
General Manager
Montecito Sanitary District
1042 Monte Cristo Lane
Santa Barbara, CA 93108

Dear Ms. Gabriel:

**ADOPTED WASTE DISCHARGE REQUIREMENTS ORDER NO. R3-2006-0084,
NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES) PERMIT
NO. CA0047899 – MONTECITO SANITARY DISTRICT WASTEWATER TREATMENT
FACILITY, SANTA BARBARA COUNTY, WDID 3 420107001**

Enclosed is Waste Discharge Requirements Order No. R3-2006-0084 (National Pollutant Discharge Elimination System Permit No. CA0047899) for Montecito Sanitary District Wastewater Treatment Facility. Order No. R3-2006-0084 was adopted by the Regional Water Quality Control Board December 1, 2006, and is effective on January 1, 2007.

Upon finalizing Order No. R3-2006-0084, Section VII.B.1, Table VII-1, footnote 1 of the monitoring and reporting program (MRP) was removed to remain consistent with U.S. Environmental Protection Agency (EPA) biosolid requirements. Montecito Sanitary District will be required to sample all parameters (except priority pollutants) listed in Table VII-1 annually.

If you have questions, please contact **David LaCaro** at (805) 549-3892 or dlacaro@waterboards.ca.gov or **Harvey Packard** at (805) 542-4639.

Sincerely,


for Roger W. Briggs
Executive Officer

California Environmental Protection Agency



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Enclosure: 1. Waste Discharge Requirements Order No. R3-2006-0084
2. Order Attachment G—Self Monitoring Report Transmittal Form

cc: Montecito Sanitary District IPL and NPDES IPL (EPA, State Water Board, and Tetra Tech)

102-01

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File: Montecito Sanitary District



Linda S. Adams
Agency Secretary

California Regional Water Quality Control Board

Central Coast Region

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Arnold Schwarzenegger
Governor

ORDER NO. R3-2006-0084

NPDES NO. CA00478994

WASTE DISCHARGER IDENTIFICATION NO. 3 42 010 7001

The following Discharger is authorized to discharge in accordance with the conditions set forth in this Order:

Discharger	Montecito Sanitary District
Name of Facility	Montecito Sanitary District Wastewater Treatment Facility
Facility Address	1042 Monte Cristo Lane
	Santa Barbara, CA 93108
	Santa Barbara County

The U.S. Environmental Protection Agency (USEPA) and the Central Coast Regional Water Quality Control Board have classified this discharge as a **major** discharge.

The Discharger is authorized to discharge from the following discharge points as set forth below:

Discharge Point	Effluent Description	Discharge Point Latitude	Discharge Point Longitude	Receiving Water
001	Secondary Treated Municipal Effluent	34 ° 24' 48" N	119 ° 38' 52" W	Pacific Ocean

The Central Coast Regional Water Quality Control Board adopted this Order on:	December 1, 2006
This Order shall become effective on:	January 1, 2007
This Order shall expire on:	December 1, 2011, unless administratively extended by the Executive Officer pursuant to 40 CFR 122.6(d)
The Discharger shall file a Report of Waste Discharge in accordance with Title 23, California Code of Regulations, as application for issuance of new waste discharge requirements no later than:	180 days prior to the Order expiration date

IT IS HEREBY ORDERED, that Order No. 01-116 is rescinded upon the effective date of this Order except for enforcement purposes, and, in order to meet the provisions contained in Division 7 of the California Water Code (commencing with section 13000) and regulations adopted thereunder, and the provisions of the federal Clean Water Act (CWA), and regulations

and guidelines adopted thereunder, the Discharger shall comply with the requirements in this Order.

I, Roger W. Briggs, Executive Officer, do hereby certify the following is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Coast Region, on December 1, 2006.



for Roger W. Briggs, Executive Officer

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**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
 REGION 3, CENTRAL COAST REGION**

**ORDER NO. R3-2006-0084
 NPDES NO. CA0047899**

TABLE OF CONTENTS

I.	Facility Information	4
II.	Findings	4
III.	Discharge Prohibitions	10
IV.	Effluent Limitations and Discharge Specifications	10
	A. Effluent Limitations – Discharge Point 001	10
V.	Receiving Water Limitations	18
	A. Surface Water Limitations	18
VI.	Provisions	22
	A. Standard Provisions	22
	B. Monitoring and Reporting Program Requirements	23
	C. Special Provisions	23
	1. Reopener provisions	18
	2. Special Provisions for Municipal Facilities (POTWs Only)	23
	a. Biosolids Requirements	18
VII.	Compliance Determination	25
Attachment A	Definitions	A-1
Attachment B	Topographic Map	B-1
Attachment C	Flow Schematic	C-1
Attachment D	Federal Standard Provisions	D-1
Attachment D-1	Central Coast Water Board Standard Provisions	D-1-1
Attachment E	Monitoring and Reporting Program (MRP)	E-1
Attachment F	Fact Sheet	F-1
Attachment G	Self-Monitoring Report Cover/Transmittal Form	G-1

I. FACILITY INFORMATION

The following Discharger is authorized to discharge in accordance with the conditions set forth in this Order:

Discharger	Montecito Sanitary District
Name of Facility	Montecito Sanitary District Wastewater Treatment Facility
Facility Address	1042 Monte Cristo Lane
	Santa Barbara, CA 93108
	Santa Barbara County
Facility Contact, Title, and Phone	Dianne Gabriel, General Manager, (805) 969-4200
Mailing Address	1042 Monte Cristo Lane, Santa Barbara, CA 93108
Type of Facility	Publicly Owned Treatment Works (POTW)
Facility Design Flow	1.5 million gallons per day (MGD)

II. FINDINGS

The California Regional Water Quality Control Board, Central Coast Region (hereinafter Central Coast Water Board), finds:

- A. Background.** The Montecito Sanitary District (hereinafter Discharger) is currently discharging under Order No. 01-116, National Pollutant Discharge Elimination System (NPDES) Permit No. CA0047899. The Discharger submitted a Report of Waste Discharge/Application and supplemental information dated June 2, 2006, and applied for a NPDES permit renewal to discharge up to 1.5 MGD (average dry weather flow) of secondary treated wastewater from the Montecito Sanitary District Wastewater Treatment Facility (hereinafter Facility) to the Pacific Ocean. Upon determining that the Report of Waste Discharge/Application was incomplete, staff required the Discharger to submit additional information. Staff deemed the application complete during a meeting on July 21, 2006, and in writing on July 31, 2006.
- B. Facility Description.** The Discharger owns and operates a wastewater collection, treatment, and disposal system to provide sewerage service to the community of Montecito. The treatment system consists of comminution, aerated activated sludge tanks, secondary clarification, chlorination, and dechlorination. Waste activated sludge, once used in the activated sludge tanks, is sent to a dissolved air flotation (DAF) tank for thickening. The sludge is pumped from the DAF to an aerobic digester for further decomposition. The sludge is then pumped from the aerobic digester to a dewatering belt press. The dewatered biosolids are then stockpiled in a holding bin, which is then hauled from the site by a composting company. Wastewater is discharged from Discharge 001 (see table on cover page) to the Pacific Ocean, a water of the United

States within the South Coast Hydrologic Unit. Attachment B provides a site map of the area around the facility. Attachment C provides a flow schematic of the facility.

Wastewater is discharged to the Pacific Ocean through a 1,550-foot outfall/diffuser system. The outfall (Discharge Point 001) terminates in the Santa Barbara Channel / Pacific Ocean (34°24'48" N. Latitude, 119° 38'52" W. Longitude) in approximately 35 feet of water. The minimum initial dilution ratio of seawater to effluent is 89:1.

- C. Legal Authorities.** This Order is issued pursuant to section 402 of the Federal Clean Water Act (CWA) implementing regulations adopted by the U.S. Environmental Protection Agency (U.S. EPA) and Chapter 5.5, Division 7 of the California Water Code (commencing with section 13370). It shall serve as a NPDES permit for point source discharges from this facility to surface waters. This Order also serves as Waste Discharge Requirements (WDRs) pursuant to Article 4, Chapter 4, Division 7 of the Water Code (commencing with section 13260).
- D. Background and Rationale for Requirements.** The Central Coast Water Board developed the requirements in this Order based on information submitted as part of the application, through monitoring and reporting programs, and through special studies. Attachments A through F, which contain background information and rationale for Order requirements, are hereby incorporated into this Order and, thus, constitute part of the Findings for this Order.
- E. California Environmental Quality Act (CEQA).** Under California Water Code section 13389, this action to adopt an NPDES permit is exempt from the provisions of the CEQA, Public Resources Code sections 21000-21177. This action regulates an existing facility and involves negligible or no expansion of use, and is also exempt from the provisions of the CEQA in accordance with Section 15301, Title 14 of the California Code of Regulations
- F. Technology-based Effluent Limitations.** Section 301(b) of the CWA and implementing U.S. EPA permit regulations at Section 122.44, Title 40 of the Code of Federal Regulations (40 CFR) require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards. The discharge authorized by this Order must meet minimum federal technology-based requirements based on Secondary Treatment Standards at Part 133, and Best Professional Judgment (BPJ) in accordance with Part 125, section 125.3. A detailed discussion of the technology-based effluent limitations development is included in the Fact Sheet (Attachment F).
- G. Water Quality-Based Effluent Limitations.** Section 301(b) of the CWA and section 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards.

Section 122.44(d)(1)(i) mandates that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard. Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, water quality-based effluent limitations (WQBELs) must be established using: (1) USEPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated numeric water quality criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information, as provided in section 122.44(d)(1)(vi).

H. Water Quality Control Plans. The Central Coast Water Board adopted a Water Quality Control Plan for the Central Coast Region (hereinafter Basin Plan) in 1994 that designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for the Pacific Ocean. In addition, State Water Resources Control Board (State Water Board) Resolution No. 88-63 requires that, with certain exceptions, the Central Coast Water Board assign the municipal and domestic supply use to water bodies that do not have beneficial uses listed in the Basin Plan. Beneficial uses applicable to the Pacific Ocean are as follows:

Discharge Point	Receiving Water Name	Basin Plan Beneficial Use(s)
001	Pacific Ocean	<u>Existing:</u> water contact recreation (REC-1); non-contact water recreation (REC-2); industrial service supply (IND); navigation (NAV); marine habitat (MAR); shellfish harvesting (SHELL); commercial and sport fishing (COMM); rare, threatened, or endangered species (RARE); wildlife habitat (WILD); migration of aquatic organisms (MIGR); spawning, reproduction, and/or early development (SPWN).

The Basin Plan relies primarily on the requirements of the *Water Quality Control Plan for Ocean Waters of California* (2005 Ocean Plan) for protection of the beneficial uses of the State ocean waters. The Basin Plan, however, may contain additional water quality objectives applicable to the discharger.

Requirements of this Order specifically implement the applicable Water Quality Control Plans.

- I. **California Ocean Plan.** The State Water Board adopted the *Water Quality Control Plan for Ocean Waters of California, California Ocean Plan* (2005 Ocean Plan) in 1972 and amended it in 1978, 1983, 1988, 1990, 1997, 2000, and 2005. The State Water Board adopted the latest amendment on April 21, 2005, and it became effective on February 14, 2006. The 2005 Ocean Plan is applicable, in its entirety, to point source discharges to the ocean. The 2005 Ocean Plan identifies beneficial uses of ocean waters of the State to be protected as summarized below:

Discharge Point	Receiving Water	2005 Ocean Plan Beneficial Uses
Outfall 001	Pacific Ocean	Industrial water supply; water contact and non-contact recreation, including aesthetic enjoyment; navigation; commercial and sport fishing; mariculture; preservation and enhancement of designated Areas of Special Biological Significance (ASBS); rare and endangered species; marine habitat; fish spawning and shellfish harvesting

In order to protect the beneficial uses, the 2005 Ocean Plan establishes water quality objectives and a program of implementation. Requirements of this Order implement the 2005 Ocean Plan.

- J. **Alaska Rule.** On March 30, 2000, U.S. EPA revised its regulation that specifies when new and revised state and tribal water quality standards become effective for CWA purposes (40 C.F.R. § 131.21; 65 Fed. Reg. 24641; (April 27, 2000).) Under the revised regulation (also known as the Alaska rule), new and revised standards submitted to U.S. EPA after May 30, 2000, must be approved by U.S. EPA before being used for CWA purposes. The final rule also provides that standards already in effect and submitted to U.S. EPA by May 30, 2000, may be used for CWA purposes, whether or not approved by U.S. EPA.

- K. **Stringency of Requirements for Individual Pollutants.** This Order contains both technology-based and water quality-based effluent limitations for individual pollutants. The technology-based effluent limitations consist of restrictions on pollutants listed in Table IV-1. These restrictions are discussed in Section IV.C. of the Fact Sheet. This Order's technology-based pollutant restrictions implement at the minimum, applicable federal technology-based requirements.

Water quality-based effluent limitations have been scientifically derived to implement water quality objectives that protect beneficial uses. Both the beneficial uses and the water quality objectives have been approved pursuant to federal law and are the

applicable federal water quality standards. The scientific procedures for calculating the individual water quality-based effluent limitations are based on the Ocean Plan, which was approved by U.S. EPA on February 14, 2006. All beneficial uses and water quality objectives contained in the Basin Plan were approved under state law and submitted to and approved by U.S. EPA prior to May 30, 2000. Any water quality objectives and beneficial uses submitted to U.S. EPA prior to May 30, 2000, but not approved by U.S. EPA before that date, are nonetheless "applicable water quality standards for purposes of the CWA" pursuant to section 131.21(c)(1). Collectively, this Order's restrictions on individual pollutants are no more stringent than required to implement the requirements of the CWA.

- L. Antidegradation Policy.** Section 131.12 requires that the state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution No. 68-16. Resolution No. 68-16 incorporates the federal antidegradation policy where the federal policy applies under federal law. Resolution No. 68-16 requires that existing quality of waters be maintained unless degradation is justified based on specific findings. The Regional Water Board's Basin Plan implements, and incorporates by reference, both the state and federal antidegradation policies. As discussed in detail in Section III.C.2. of the Fact Sheet the permitted discharge is consistent with the antidegradation provision of section 131.12 and State Water Board Resolution No. 68-16.
- M. Anti-Backsliding Requirements.** CWA Sections 402(o)(2) and 303(d)(4) and federal regulations at 40 CFR, Code of Federal Regulations section 122.44(l) prohibit backsliding in NPDES permits. These anti-backsliding provisions require effluent limitations in a reissued permit to be as stringent as those in the previous permit, with some exceptions where limitations may be relaxed. All effluent limitations in this Order are at least as stringent as the effluent limitations in the previous Order, with some minor exceptions due only to the appropriate use of rounding the results of effluent limit calculations for this Order.
- N. Monitoring and Reporting.** Section 122.48 requires that all NPDES permits specify requirements for recording and reporting monitoring results. California Water Code Sections 13267 and 13383 authorize the regional water boards to require technical and monitoring reports. The Monitoring and Reporting Program (Attachment E) establishes monitoring and reporting requirements to implement federal and State requirements.
- O. Standard and Special Provisions.** Standard Provisions, which apply to all NPDES permits in accordance with section 122.41, and additional conditions applicable to specified categories of permits in accordance with section 122.42, are provided in Attachment D. A rationale for the special provisions contained in this Order is provided in the attached Fact Sheet (Attachment F).
- P. Notification of Interested Parties.** The Central Coast Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe Waste

Discharge Requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Details of notification are provided in the Fact Sheet (Attachment F) of this Order.

- Q. Consideration of Public Comment.** The Central Coast Water Board, in a public meeting, heard and considered all comments pertaining to the discharge. Details of the Public Hearing are provided in the Fact Sheet (Attachment F) of this Order.
- R. Privilege to Discharge.** A permit and the privilege to discharge waste into waters of the State are conditional upon the discharge complying with provisions of Division 7 of the California Water Code and of the Clean Water Act (as amended or as supplemented by implementing guidelines and regulations); and with any more stringent effluent limitations necessary to implement water quality control plans, to protect beneficial uses, and to prevent nuisance.
- S. California Water Code Section 13241.** This Order contains restrictions on individual pollutants that are no more stringent than required by the federal Clean Water Act. Individual pollutant restrictions consist of technology-based restrictions and water quality-based effluent limitations. The technology-based effluent limitations are specified in federal regulations as discussed in Attachment F, Section IV.B, and the permit's technology-based pollutant restrictions are no more stringent than required by the Clean Water Act. Water quality-based effluent limitations have been scientifically derived to implement water quality objectives that protect beneficial uses. Both the beneficial uses and the water quality objectives have been approved pursuant to federal law and are the applicable federal water quality standards. To the extent that toxic pollutant water quality-based effluent limitations were derived from the California Toxics Rule, the California Toxics Rule is the applicable standard pursuant to 40 C.F.R. 131.38. The scientific procedures for calculating the individual water quality-based effluent limitations are based on the California Ocean Plan, which U.S. EPA approved January 20, 2005. All beneficial uses and water quality objectives contained in the Basin Plan were approved under state law and submitted to and approved by U.S. EPA prior to May 30, 2000. Any water quality objectives and beneficial uses submitted to U.S. EPA prior to May 30, 2000, but not approved by USEPA before that date, are nonetheless "applicable water quality standards for purposes of the [Clean Water] Act" pursuant to 40 C.F.R. 131.21(c)(1). As stated in Attachment F, certain water quality objectives and beneficial uses implemented by this Order are contained in the 2005 Ocean Plan which was approved by U.S. EPA, and are applicable water quality standards pursuant to 40 C.F.R. 131.21(c)(2). Collectively, this Order's restrictions on individual pollutants are no more stringent than required to implement the technology-based requirements of the Clean Water Act and the applicable water quality standards for purposes of the Clean Water Act.
- T. Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (General WDRs).** The General WDRs, Order No. 2006-0003-DWQ, adopted May 2, 2006, applies to publicly owned sanitary sewer systems (collection systems) that are one mile or greater in length. The General WDRs requires collection system entities to

develop a Sanitary Sewer Management Plan (SSMP). SSMPs are required to include goals, organization, legal authority, operations and maintenance program, design and performance provisions, overflow emergency response plan, fats, oils, and greases (FOG) control program, systems evaluations and capacity assurance program, monitoring, measures, and program modifications, and SSMP Program audit. Additionally, the General WDRs requires the collection system entities to report sanitary sewer overflows (SSOs). Collection system entities are required to report SSOs that are greater than 1,000 gallons. Furthermore, some entities must also report SSOs less than 1,000 gallons discharging to surface waters or storm drains or that threaten public health. Reporting provisions are set forth in the General WDRs. Reporting shall occur through the Statewide Online SSO database. Reporting times vary depending on discharge amount and destination.

III. DISCHARGE PROHIBITIONS

- A. Discharge of treated wastewater at a location other than 34°24'48" N Latitude, 119°38'52" W Longitude is prohibited.
- B. The bypass or overflow of untreated or partially treated wastewater or wastes to surface waters or surface water drainage courses is prohibited, except, in the case of bypasses, as allowed in Standard Provision I.G of Attachment D, *Federal Standard Provisions*.
- C. Bypass of the treatment facility and discharge of wastewater not meeting this Order's discharge specification is prohibited.
- D. The discharge of any radiological, chemical, or biological warfare agent or high level radioactive waste in the ocean is prohibited.

IV. EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

A. Effluent Limitations – Discharge Point 001

[NOTE: Throughout this Order, staff used the following references to indicate the general origin of various requirements. Please refer to the Fact Sheet (Attachment F) for detailed information.]

CFR	Title 40, Code of Federal Regulations
OP	California Ocean Plan (2005)
BP	Central Coast Water Quality Control Plan (Basin Plan)
CCR	California Code of Regulations, Title 17, Sections 7957 and 7958

The definitions of terms in quotation marks throughout this Order are located in the attached Central Coast Water Board Standard Provisions (Attachment D-1), or the 2005 Ocean Plan.]

1. Final Effluent Limitations – Discharge Point 001

- a. The discharge of secondary treated effluent shall maintain compliance with the following effluent limitations at Discharge Point 001, with compliance measured at Monitoring Location 001 as described in the attached Monitoring and Reporting Program (Attachment E):

Table IV-1 – Effluent Limitations for Major Constituents and Properties of Wastewater

Parameter	Units	30-day Average	7-day Average	Maximum Daily
Carbonaceous Biochemical Oxygen Demand, 5-day (CBOD ₅)	mg/L	25	40	85
	% removal	Not less than 85%	N/A	N/A
	lbs/day	310 ¹	500 ¹	1,100 ¹
	mg/L	30	45	90
Total Suspended Solids (TSS)	% removal	Not less than 85%	N/A	N/A
	lbs/day	380 ¹	570 ¹	1,100 ¹
pH	pH units	6 to 9 at all times		
Grease & Oil	mg/L	25	40	75
	lbs/day	310 ¹	500 ¹	940 ¹
Settleable Solids	mL/L	1.0	1.5	3.0
Turbidity	NTU	75	100	230

¹ – For flows less than 1.5 MGD, mass emission rates shall not exceed the "Maximum Allowable Mass Emissions Rate."

Table IV-2 – Effluent Limitations for the Protection of Marine Aquatic Life – Derived from the 2005 Ocean Plan Table B

	Units of Measurement	6-Month Median ⁴	Daily Maximum ⁵	Instantaneous Maximum ⁶
Arsenic	μg/L	450	2,600	6,900
	lb/Day	5.7	33	87
Cadmium	μg/L	90	360	900
	lb/Day	1.1	4.5	11
Chromium (Hexavalent) ¹	μg/L	180	720	1800
	lb/Day	2.3	9.0	23
Copper	μg/L	92	900	2500
	lb/Day	1.2	11	32
Lead	μg/L	180	720	1,800

**Table IV-2 – Effluent Limitations for the Protection of
 Marine Aquatic Life – Derived from the 2005 Ocean Plan Table B**

	Units of Measuremen t	6-Month Median ⁴	Daily Maximum ⁵	Instantaneous Maximum ⁶
	lb/Day	2.3	9.0	23
Mercury	µg/L	3.6	14	36
	lb/Day	0.045	0.18	0.45
Nickel	µg/L	450	1,800	4,500
	lb/Day	5.6	23	56
Selenium	µg/L	1,400	5,400	14,000
	lb/Day	17	68	170
Silver	µg/L	49	240	620
	lb/Day	0.61	3.0	7.7
Zinc	µg/L	1,200	6,500	17,000
	lb/Day	14	81	220
Cyanide ²	µg/L	90	360	900
	lb/Day	1.1	4.5	11
Total Chlorine Residual ³	µg/L	180	720	5400
	lb/Day	2.3	9.0	68
Ammonia (as N)	µg/L	54,000	220,000	540,000
	lb/Day	680	2,700	6,800
Chronic Toxicity	TUc	-----	76	-----
Acute Toxicity	TUa	-----	3.0	-----
Phenolic Compounds (non-chlorinated)	µg/L	2,700	11,000	27,000
	lb/Day	34	140	340
Chlorinated Phenolics	µg/L	90	360	900
	lb/Day	1.1	4.5	11
Endosulfan	µg/L	0.81	1.6	2.4
	lb/Day	0.01	0.02	0.03
Endrin	µg/L	0.18	0.36	0.54
	lb/Day	0.0023	0.0045	0.0068
HCH	µg/L	0.36	0.72	1.1
	lb/Day	0.0045	0.009	0.014
Radioactivity	Not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30253 of the California Code of Regulations. Reference to Section 30253 is prospective, including future changes to any incorporated provisions of federal law, as the changes take effect.			

¹ Dischargers may, at their option, meet this limitation as a total chromium limitation. ^{OP}

² If a Discharger can demonstrate to the satisfaction of the Central Coast Water Board (subject to U.S. EPA approval) that an analytical method is available to reliably distinguish between strongly and weakly complexed cyanide, effluent limitations for cyanide may be met by the combined measurement of free cyanide, simple alkali

metal cyanides, and weakly complexed organometallic cyanide complexes. In order for the analytical method to be acceptable, the recovery of free cyanide from metal complexes must be comparable to that achieved by the approved method in 40 CFR PART 136, as revised July 1, 2003, or later.^{OP}

- ³ Water quality objectives for total chlorine residual applying to intermittent discharges not exceeding two hours shall be determined using the following equation:

$$\log y = -0.43 (\log x) + 1.8$$

where: y = the water quality objective (in ug/L) to apply when chlorine is **being discharged**; and
 x = the duration of uninterrupted chlorine discharge in minutes.

The applicable effluent limitation must then be determined using Equation No. 1 from the 2005 Ocean Plan.^{OP}

- ⁴ The six-month median shall apply as a moving median of daily values for any 180-day period in which daily values represent flow weighted average concentrations within a 24-hour period. For intermittent discharges, the daily value shall be considered to equal zero for days on which no discharge occurred. The six-month median limit on daily mass emissions shall be determined using the six-month median effluent concentration as Ce and the observed flow rate Q in millions of gallons per day (each variable referring to Equation 3 of the 2005 Ocean Plan).^{OP} Also see Order Section VII, *Compliance Determination*, below.
- ⁵ The daily maximum shall apply to flow weighted 24-hour composite samples. The daily maximum mass emission shall be determined using the daily maximum effluent concentration limit as Ce and the observed flow rate Q in millions of gallons per day (each variable referring to Equation 3 of the 2005 Ocean Plan).^{OP} Also see Order Section VII, *Compliance Determination*, below.
- ⁶ The instantaneous maximum shall apply to grab sample determinations.^{OP} Also see Order Section VII, *Compliance Determination*, below.

**Table IV-3 – Effluent Limitations for the Protection Of Human Health –
 Non-Carcinogens – Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
Acrolein	µg/L	20,000
	lb/Day	250
Antimony	µg/L	110,000
	lb/Day	1,400
bis(2-chloroethoxy) methane	µg/L	400
	lb/Day	5.0
bis(2-chloroisopropyl)ether	µg/L	110,000
	lb/Day	1,400
chlorobenzene	µg/L	51,000
	lb/Day	640
chromium (III)	µg/L	17,000,000
	lb/Day	210,000
di-n-butyl phthalate	µg/L	320,000
	lb/Day	3,900
dichlorobenzenes	µg/L	460,000

**Table IV-3 – Effluent Limitations for the Protection Of Human Health –
 Non-Carcinogens – Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
	lb/Day	5,700
diethyl phthalate	$\mu\text{g/L}$	3,000,000
	lb/Day	37,000
dimethyl phthalate	$\mu\text{g/L}$	74,000,000
	lb/Day	920,000
4,6-dinitro-2-methylphenol	$\mu\text{g/L}$	20,000
	lb/Day	250
2,4-dinitrophenol	$\mu\text{g/L}$	360
	lb/Day	4.5
ethylbenzene	$\mu\text{g/L}$	370,000
	lb/Day	4,600
fluoranthene	$\mu\text{g/L}$	1,400
	lb/Day	17
hexachlorocyclopentadiene	$\mu\text{g/L}$	5,200
	lb/Day	65
nitrobenzene	$\mu\text{g/L}$	440
	lb/Day	5.5
thallium	$\mu\text{g/L}$	180
	lb/Day	2.3
toluene	$\mu\text{g/L}$	7,700,000
	lb/Day	96,000
tributyltin	$\mu\text{g/L}$	0.14
	lb/Day	0.0016
1,1,1-trichloroethane	$\mu\text{g/L}$	49,000,000
	lb/Day	610,000

**Table IV-4 – Effluent Limitations for the Protection Of Human Health – Carcinogens
 – Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
acrylonitrile	$\mu\text{g/L}$	9.0
	lb/Day	0.11
aldrin	$\mu\text{g/L}$	0.002
	lb/Day	0.000025
benzene	$\mu\text{g/L}$	530
	lb/Day	6.6
benzidine	$\mu\text{g/L}$	0.0062

**Table IV-4 – Effluent Limitations for the Protection Of Human Health – Carcinogens
 – Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
	lb/Day	0.000078
beryllium	µg/L	3.0
	lb/Day	0.037
bis(2-chloroethyl)ether	µg/L	4.1
	lb/Day	0.05
bis(2-ethylhexyl)phthalate	µg/L	320
	lb/Day	3.9
carbon tetrachloride	µg/L	81
	lb/Day	1.0
chlordane	µg/L	0.0021
	lb/Day	0.00003
chlorodibromomethane	µg/L	770
	lb/Day	9.7
chloroform	µg/L	12,000
	lb/Day	150
DDT	µg/L	0.015
	lb/Day	0.00019
1,4-dichlorobenzene	µg/L	1,600
	lb/Day	20
3,3-dichlorobenzidine	µg/L	0.73
	lb/Day	0.0091
1,2-dichloroethane	µg/L	2,500
	lb/Day	32
1,1-dichloroethylene	µg/L	81
	lb/Day	1.0
dichlorobromomethane	µg/L	560
	lb/Day	7.0
dichloromethane	µg/L	41,000
	lb/Day	510
1,3-dichloropropene	µg/L	800
	lb/Day	10
dieldrin	µg/L	0.0036
	lb/Day	0.000045
2,4-dinitrotoluene	µg/L	230
	lb/Day	2.9
1,2-diphenylhydrazine	µg/L	14
	lb/Day	0.18
halomethanes	µg/L	12,000
	lb/Day	150

**Table IV-4 – Effluent Limitations for the Protection Of Human Health – Carcinogens
– Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
heptachlor	$\mu\text{g/L}$	0.0045
	lb/Day	0.000056
heptachlor epoxide	$\mu\text{g/L}$	0.0018
	lb/Day	0.000023
hexachlorobenzene	$\mu\text{g/L}$	0.019
	lb/Day	0.00024
hexachlorobutadiene	$\mu\text{g/L}$	1,300
	lb/Day	16
hexachloroethane	$\mu\text{g/L}$	230
	lb/Day	2.8
isophorone	$\mu\text{g/L}$	66,000
	lb/Day	820
N-nitrosodimethylamine	$\mu\text{g/L}$	660
	lb/Day	8.2
N-nitrosodi-N-propylamine	$\mu\text{g/L}$	34
	lb/Day	0.43
N-nitrosodiphenylamine	$\mu\text{g/L}$	230
	lb/Day	2.8
PAHs	$\mu\text{g/L}$	0.79
	lb/Day	0.0099
PCBs	$\mu\text{g/L}$	0.0017
	lb/Day	0.000021
TCDD equivalents	$\mu\text{g/L}$	0.00000035
	lb/Day	0.0000000044
1122-tetrachloroethane	$\mu\text{g/L}$	210
	lb/Day	2.6
tetrachloroethylene	$\mu\text{g/L}$	180
	lb/Day	2.3
toxaphene	$\mu\text{g/L}$	0.019
	lb/Day	0.00024
trichloroethylene	$\mu\text{g/L}$	2,400
	lb/Day	30
1,1,2-trichloroethane	$\mu\text{g/L}$	850
	lb/Day	11
2,4,6-trichlorophenol	$\mu\text{g/L}$	26
	lb/Day	0.33
vinyl chloride	$\mu\text{g/L}$	3,200
	lb/Day	41

- b. Effluent daily dry weather flow shall not exceed a monthly average of 1.5 MGD.
- c. No effluent mass emission rate (lbs/day) shall exceed the "Maximum Allowable Mass Emission Rate," as defined in Attachment D-1, *Central Coast Water Board Standard Provisions*, Definition F.11.
- d. The median number of total coliform organisms in effluent shall not exceed 23 per 100 milliliters (mL), as determined by the bacteriological results for the last seven days for which analyses have been completed, and the number of total coliform organisms in any sample shall not exceed 2,300 MPN per 100 mL.
- e. Effluent shall be essentially free of materials and substances that ^{OP}:
 - i. Float or become floatable upon discharge.
 - ii. May form sediments which degrade benthic communities or other aquatic life.
 - iii. Accumulate to toxic levels in marine waters, sediments or biota.
 - iv. Decrease the natural light to benthic communities and other marine life.
 - v. Result in aesthetically undesirable discoloration of the ocean surface.
- f. Effluent limitations derived from the 2005 Ocean Plan Tables A and B (provided in the tables in Section A.1.a, above) shall apply to the Discharger's total effluent, of whatever origin (i.e., gross, not net, discharge), except where otherwise specified in the 2005 Ocean Plan ^{OP}.
- g. The discharge of waste shall not cause water quality objectives established in the 2005 Ocean Plan, Table B, to be exceeded in the receiving water upon completion of initial dilution, except that objectives indicated for radioactivity shall apply directly to the undiluted waste effluent ^{OP}.
- h. The effluent limitations of this Order are based on the 2005 Ocean Plan criteria and equations as applicable therein, using a minimum initial dilution of 89:1 (seawater:effluent). If the actual dilution ratio is found to be different, then the ratio will be recalculated and this Order revised when and as appropriate.
- i. The minimum initial dilution is the lowest average initial dilution within any single month of the year. Dilution estimates shall be based on observed waste flow characteristics, observed receiving water density structure, and the assumption that no currents (of sufficient strength to influence the initial dilution process) flow across the discharge structure ^{OP}.
- j. The State Water Board shall identify standard dilution models for use in determining the minimum initial dilution, and shall assist the Central Coast Water

Board in its evaluation for specific waste discharges. Dischargers may propose alternative methods of calculating minimum initial dilution, and the Central Coast Water Board may accept such methods upon verification of their accuracy and applicability^{OP}.

- k. If only one sample is collected during the time period associated with an effluent limitation or water quality objective (e.g., 30-day average or 6-month median), the single measurement shall be used to determine compliance with the effluent limitation for the entire time period^{OP}.
- l. Any significant change in waste flow shall be cause for reevaluating effluent limitations^{OP}.

V. RECEIVING WATER LIMITATIONS^{OP}

A. Surface Water Limitations

Receiving water limitations are based on water quality objectives contained in the 2005 Ocean Plan and Basin Plan and are a required part of this Order. The discharge shall not cause a violation of the following receiving water limitations in the Pacific Ocean. The central Coast Water Board may require the Discharger to investigate the cause of exceedances in the receiving water before determining whether the Discharger caused the violation of the receiving water limitations.

1. Bacterial Characteristics

The discharge shall not cause the following water quality objectives to be violated in ocean waters upon completion of "initial dilution":

- a. Water Contact Standards – Within a zone bounded by the shoreline and a distance of 1,000 feet from the shoreline or the 30-foot depth contour, whichever is further from the shoreline, and in areas outside this zone used for body-contact sports, as determined by the Central Coast Water Board, but including all kelp beds, the following bacteriological objectives shall be maintained throughout the water column:
 - 1) 30-day Geometric Mean – The following standards are based on the geometric mean of the five most recent samples from each site:
 - i Total coliform density shall not exceed 1,000 per 100 ml;
 - ii Fecal coliform density shall not exceed 200 per 100 ml; and,
 - iii. Enterococcus density shall not exceed 35 per 100 ml.

2) Single Sample Maximum:

- i. Total coliform density shall not exceed 10,000 per 100 ml;
- ii. Fecal coliform density shall not exceed 400 per 100 ml;
- iii. Enterococcus density shall not exceed 104 per 100 ml; and
- iv. Total coliform density shall not exceed 1,000 per 100 ml when the fecal coliform/total coliform ratio exceeds 0.1.

b. Department of Health and Safety Standards

DHS has established minimum protective bacteriological standards for coastal waters adjacent to public beaches and for public water-contact sports areas in ocean waters. These standards are found in the California Code of Regulations, Title 17, Section 7958, and they are identical to the objectives contained in subsection a. above. When a public beach or public water-contact sports area fails to meet these standards, DHS or the local public health officer may post with warning signs or otherwise restrict use of the public beach or public water-contact sports area until the standards are met. The DHS regulations impose more frequent monitoring and more stringent posting and closure requirements on certain high-use public beaches that are located adjacent to a storm drain that flows in the summer.

For beaches not covered under AB 411 regulations, DHS imposes the same standards as contained in Title 17 and requires weekly sampling but allows the county health officer more discretion in making posting and closure decisions.

c. Shellfish Harvesting Standards

- 1) At all areas where shellfish may be harvested for human consumption, as determined by the regional Board, the following bacterial objectives shall be maintained throughout the water column:
 - i. The median total coliform density shall not exceed 70 per 100 ml, and not more than 10 percent of the samples shall exceed 230 per 100 ml.

2. Implementation Provisions for Bacterial Characteristics

a. Water-Contact Monitoring

- 1) Samples should be collected at least weekly from each site during each 30-day period, with sampling intervals evenly spaced. The geometric mean shall be calculated using the five most recent sample results.
- 2) If a single sample exceeds any of the following densities, repeat sampling at that location will be conducted daily to determine the extent and persistence of the exceedance. Repeat sampling will be conducted until the sample result is less than the following densities, or until a sanitary survey is conducted to determine the source of the high bacterial densities :

- i) Total coliform density will not exceed 10,000 per 100 ml; or
- ii) Fecal coliform density will not exceed 400 per 100 ml; or
- iii) Total coliform density will not exceed 1,000 per 100 ml when the ratio of fecal/total coliform exceeds 0.1;
- iv) Enterococcus density will not exceed 104 per 100 ml.

When repeat sampling is required because of an exceedance of any one single sample density, values from all samples collected during that 30-day period will be used to calculate the geometric mean.

- 3) For monitoring stations outside of the defined water-contact recreation zone but in areas determined by the Regional Board to be used for water-contact recreation, samples will be analyzed for total coliform.

3. Physical Characteristics

- a. Floating particulates and grease and oil shall not be visible on ocean surface.
- b. The discharge of "waste" shall not cause aesthetically undesirable discoloration of the ocean surface.
- c. "Natural light" shall not be "significantly" reduced at any point outside the "zone of initial dilution" as the result of the discharge of "waste".
- d. The rate of deposition of inert solids and the characteristics of inert solids in ocean sediments shall not be changed such that benthic communities are degraded.

4. Chemical Characteristics

- a. The dissolved oxygen concentration shall not at any time be depressed more than 10 percent from that which occurs naturally ^{OP}, or fall below 5.0 mg/L ^{BP}, as the result of the discharge of oxygen demanding "waste" materials.
- b. The pH shall not be changed at any time more than 0.2 units from that which occurs naturally, and shall be within the range of 7.0 to 8.5 at all times.
- c. The dissolved sulfide concentrations of waters in and near sediments shall not be "significantly" increased above that present under natural conditions.
- d. The concentrations of substances set forth in Chapter II, Table B of the 2005 Ocean Plan shall not be increased in marine sediments to levels which would "degrade" indigenous biota.

- e. The concentration of organic materials in marine sediments shall not be increased to levels which would "degrade" marine life.
- f. Nutrient materials shall not cause objectionable aquatic growth or "degrade" indigenous biota.
- g. Numeric Water Quality Objectives
 - i. Table B water quality objectives apply to all dischargers within the jurisdiction of this Plan.
 - ii. Table B Water Quality Objectives listed in Chapter II, Table B of the 2005 Ocean Plan.

5. Biological Characteristics

- a. Marine communities, including vertebrate, invertebrate, and plant species, shall not be "degraded."
- b. The natural taste, odor, and color of fish, "shellfish," or other marine resources used for human consumption shall not be altered.
- c. The concentration of organic materials in fish, "shellfish", or other marine resources used for human consumption shall not bioaccumulate to levels that are harmful to human health.

6. Radioactivity

- a. Discharge of radioactive "waste" shall not "degrade" marine life. ^{OP}
- b. Radionuclides shall not be present in concentrations that are deleterious to human, plant, animal, or aquatic life; or result in the accumulation of radionuclides in the food web to an extent which presents a hazard to human, plant, animal, or aquatic life. ^{BP}

7. General Standards

- a. Waste management systems that discharge to the ocean must be designed and operated in a manner that will maintain the indigenous marine life and a healthy and diverse marine community ^{OP}.
- b. Waste discharged to the ocean must be essentially free of:
 - i. Material that is floatable or will become floatable upon discharge.
 - ii. Settleable material or substances that may form sediments which will degrade benthic communities or other aquatic life.

- iii. Substances which will accumulate to toxic levels in marine waters, sediments or biota.
 - ix. Substances that significantly decrease the natural* light to benthic communities and other marine life.
 - x. Materials that result in aesthetically undesirable discoloration of the ocean surface.
- c. Waste effluents shall be discharged in a manner which provides sufficient initial dilution to minimize the concentrations of substances not removed in the treatment.
- d. Location of waste* discharges must be determined after a detailed assessment of the oceanographic characteristics and current patterns to ensure that:
- i. Pathogenic organisms and viruses are not present in areas where shellfish are harvested for human consumption or in areas used for swimming or other body-contact sports.
 - ii. Natural water quality conditions are not altered in areas designated as being of special biological significance or areas that existing marine laboratories use as a source of seawater.
 - iii. Maximum protection is provided to the marine environment.
- e. Waste that contains pathogenic organisms or viruses should be discharged a sufficient distance from shellfishing* and water-contact sports areas to maintain applicable bacterial standards without disinfection. Where conditions are such that an adequate distance cannot be attained, reliable disinfection in conjunction with a reasonable separation of the discharge point from the area of use must be provided. Disinfection procedures that do not increase effluent toxicity and that constitute the least environmental and human hazard should be used.

VI. PROVISIONS

A. Standard Provisions

1. **Federal Standard Provisions.** The Discharger shall comply with all Federal Standard Provisions included in Attachment D of this Order.
2. **Central Coast Water Board Standard Provisions.** The Discharger shall comply with all Central Coast Water Board Standard Provisions included in Attachment D-1 of this Order.

B. Monitoring and Reporting Program Requirements

The discharger shall comply with the Monitoring and Reporting Program, and future revisions thereto, in Attachment E of this Order.

C. Special Provisions

1. Reopener Provisions

This permit may be reopened and modified in accordance with federal regulations at 40 CFR Parts 122 and 124, as necessary, to include additional conditions or limitations based on newly available information or to implement any U.S. EPA approved, new federal or state objective.

2. Special Provisions for Municipal Facilities (POTWs Only)

a. Biosolids Requirements. Language in this section was provided by the U.S. EPA Region IX Biosolids Coordinator as standard language for use in NPDES permits. "Biosolids" refers to non-hazardous sewage sludge as defined in 40 CFR 503.9. Sewage sludge that is hazardous as defined in 40 CFR 261 must be disposed in accordance with the Resource Conservation and Recovery Act (RCRA). Sludge with PCB levels greater than 50 mg/kg must be disposed in accordance with 40 CFR 761.

- (1) Management of all solids and sludge must comply with all requirements of CFR Parts 257, 258, 501, and 503, including all monitoring, record-keeping, and reporting requirements. Since the State of California, hence the Regional and State Boards, has not been delegated the authority by the U.S. EPA to implement the biosolids program, enforcement of biosolids requirements of CFR Part 503 will occur under U.S. EPA's jurisdiction at this time.
- (2) All biosolids generated by the Discharger shall be used or disposed of in compliance with the applicable portions of:
 - i. 40 CFR 503: for biosolids which are land applied (placed on the land for the purpose of providing nutrients or conditioning the soil for crops or vegetation), placed in surface disposal sites (placed on the land at dedicated land disposal sites or monofills for the purpose of disposal), stored, or incinerated;
 - ii. 40 CFR 258: for biosolids disposed in municipal solid waste landfills; and,
 - iii. 40 CFR 257: for all biosolids use and disposal practices not covered under 40 CFR 258 or 503.

40 CFR 503 Subpart B (land application) applies to biosolids applied for the purpose of enhancing plant growth or for land reclamation. 40 CFR 503 Subpart C (surface disposal) applies to biosolids placed on the land for the purpose of disposal.

The Discharger is responsible for ensuring that all biosolids produced at its facility are used or disposed of in compliance with these regulations, whether the Discharger uses or disposes of the biosolids itself or transfers them to another party for further treatment, use, or disposal. The Discharger is responsible for informing subsequent preparers, appliers, and disposers of the requirements that they must meet under 40 CFR 257, 258, and 503.

- (3) Duty to mitigate: The Discharger shall take all reasonable steps to prevent or minimize any biosolids use or disposal in violation of applicable regulations and/or which has a likelihood of adversely affecting human health or the environment.
- (4) No biosolids shall be allowed to enter wetlands or other waters of the United States.
- (5) Biosolids treatment, storage, use, or disposal shall not contaminate groundwater.
- (6) Biosolids treatment, storage, use, or disposal shall not create a nuisance such as objectionable odors or flies.
- (7) The Discharger shall assure that haulers transporting biosolids off site for treatment, storage, use, or disposal take all necessary measures to keep the biosolids contained.
- (8) If biosolids are stored for over two years from the time they are generated, the Discharger must ensure compliance with all the requirements for surface disposal under 40 CFR 503 Subpart C, or must submit a written notification to U.S. EPA with the information in Section 503.20(b), demonstrating the need for longer temporary storage.
- (9) Any biosolids treatment, disposal, or storage site shall have facilities adequate to divert surface runoff from adjacent areas, to protect the site boundaries from erosion, and to prevent any conditions that would cause drainage from the materials at the site to escape from the site. Adequate protection is defined as protection from at least a 100-year storm and from the highest tidal stage that may occur.

- (10) The discharge of biosolids shall not cause waste material to be in a position where it is, or can be, conveyed from the treatment and storage sites and deposited in the waters of the State.
- (11) The Discharger shall design its pretreatment program local discharge limitations to achieve the metals concentration limits in 40 CFR 503.13 Table 3.
- (12) Inspection and Entry: The U.S. EPA, Central Coast Water Board, or an authorized representative thereof, upon the presentation of credentials, shall be allowed by the Discharger, directly or through contractual arrangements with their biosolids management contractors, to:
 - i. Enter upon all premises where biosolids produced by the Discharger are treated, stored, used, or disposed, either by the Discharger or by another party to whom the Discharger transfers the biosolids for treatment, storage, use, or disposal;
 - ii. Have access to and copy any records that must be kept under the conditions of this permit or of 40 CFR 503, by the Discharger or by another party to whom the Discharger transfers the biosolids for further treatment, storage, use, or disposal, and;
 - iii. Inspect any facilities, equipment (including monitoring and control equipment), practices, or operations used in the biosolids treatment, storage, use, or disposal by the Discharger or by another party to whom the Discharger transfers the biosolids for treatment, storage, use, or disposal.
- (13) Monitoring shall be conducted in accordance with the Monitoring and Reporting Program (MRP) of this Order (see Attachment E, MRP Section VI.B, *Biosolids Monitoring, Reporting, and Notification*):
- (14) All the requirements of 40 CFR 503 and 23 CCR, Division 3, Chapter 15, and 27 CCR, Division 2 are enforceable by the U.S. EPA and this Central Coast Water Board whether or not the requirements are stated in an NPDES permit or any other permit issued to the Discharger.

ATTACHMENT A – DEFINITIONS

Acute Toxicity:

a. Acute Toxicity (TUa)

Expressed in Toxic Units Acute (TUa)

$$TUa = \frac{100}{\frac{96\text{-hr LC}}{50\%}}$$

b. Lethal Concentration 50% (LC 50)

LC 50 (percent waste giving 50% survival of test organisms) shall be determined by static or continuous flow bioassay techniques using standard marine test species as specified in the 2005 Ocean Plan Appendix III. If specific identifiable substances in wastewater can be demonstrated by the discharger as being rapidly rendered harmless upon discharge to the marine environment, but not as a result of dilution, the LC 50 may be determined after the test samples are adjusted to remove the influence of those substances.

When it is not possible to measure the 96-hour LC 50 due to greater than 50 percent survival of the test species in 100 percent waste, the toxicity concentration shall be calculated by the expression:

$$TUa = \frac{\log(100 - S)}{1.7}$$

where:

S = percentage survival in 100% waste. If S > 99, TUa shall be reported as zero.

Areas of Special Biological Significance (ASBS): are those areas designated by the State Water Board as ocean areas requiring protection of species or biological communities to the extent that alteration of natural water quality is undesirable. All Areas of Special Biological Significance are also classified as a subset of STATE WATER QUALITY PROTECTION AREAS.

Average Monthly Effluent Limitation (AMEL): the highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Average Weekly Effluent Limitation (AWEL): the highest allowable average of daily discharges over a calendar week (Sunday through Saturday), calculated as the sum of all daily discharges measured during a calendar week divided by the number of daily discharges measured during that week.

Chlordane: the sum of chlordane-alpha, chlordane-gamma, chlordene-alpha, chlordene-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

Chronic Toxicity: This parameter shall be used to measure the acceptability of waters for supporting a healthy marine biota until improved methods are developed to evaluate biological response.

a. Chronic Toxicity (TUc)

Expressed as Toxic Units Chronic (TUc)

$$\text{TUc} = \frac{100}{\text{NOEL}}$$

b. No Observed Effect Level (NOEL)

The NOEL is expressed as the maximum percent effluent or receiving water that causes no observable effect on a test organism, as determined by the result of a critical life stage toxicity test listed in the 2005 Ocean Plan Appendix II.

DDT: the sum of 4,4'DDT, 2,4'DDT, 4,4'DDE, 2,4'DDE, 4,4'DDD, and 2,4'DDD.

Daily Discharge: Daily Discharge is defined as either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in the permit), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample taken over the course of one day (a calendar day or other 24-hour period defined as a day) or by the arithmetic mean of analytical results from one or more grab samples taken over the course of the day.

For composite sampling, if 1 day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

Degrade: Degradation shall be determined by comparison of the waste field and reference site(s) for characteristic species diversity, population density, contamination, growth anomalies, debility, or supplanting of normal species by undesirable plant and animal species. Degradation occurs if there are significant differences in any of three major biotic groups, namely, demersal fish, benthic invertebrates, or attached algae. Other groups may be evaluated where benthic species are not affected, or are not the only ones affected.

Detected, but Not Quantified (DNQ): sample results less than the reported Minimum Level, but greater than or equal to the laboratory's MDL.

Dichlorobenzenes: the sum of 1,2- and 1,3-dichlorobenzene.

Downstream Ocean Waters: waters downstream with respect to ocean currents.

Dredged Material: Any material excavated or dredged from the navigable waters of the United States, including material otherwise referred to as "spoil".

Enclosed Bays: indentations along the coast that enclose an area of oceanic water within distinct headlands or harbor works. Enclosed bays include all bays where the narrowest distance between headlands or outermost harbor works is less than 75 percent of the greatest dimension of the enclosed portion of the bay. This definition includes but is not limited to: Humboldt Bay, Bodega Harbor, Tomales Bay, Drakes Estero, San Francisco Bay, Morro Bay, Los Angeles Harbor, Upper and Lower Newport Bay, Mission Bay, and San Diego Bay.

Endosulfan: the sum of endosulfan-alpha and -beta and endosulfan sulfate.

Estuaries and Coastal Lagoons: waters at the mouths of streams that serve as mixing zones for fresh and ocean waters during a major portion of the year. Mouths of streams that are temporarily separated from the ocean by sandbars shall be considered as estuaries. Estuarine waters will generally be considered to extend from a bay or the open ocean to the upstream limit of tidal action but may be considered to extend seaward if significant mixing of fresh and salt water occurs in the open coastal waters. The waters described by this definition include but are not limited to the Sacramento-San Joaquin Delta as defined by Section 12220 of the California Water Code, Suisun Bay, Carquinez Strait downstream to Carquinez Bridge, and appropriate areas of the Smith, Klamath, Mad, Eel, Noyo, and Russian Rivers.

Halomethanes: the sum of bromoform, bromomethane (methyl bromide) and chloromethane (methyl chloride).

HCH: the sum of the alpha, beta, gamma (lindane) and delta isomers of hexachlorocyclohexane.

Initial Dilution: the process that results in the rapid and irreversible turbulent mixing of wastewater with ocean water around the point of discharge.

For a submerged buoyant discharge, characteristic of most municipal and industrial wastes that are released from the submarine outfalls, the momentum of the discharge and its initial buoyancy act together to produce turbulent mixing. Initial dilution in this case is completed when the diluting wastewater ceases to rise in the water column and first begins to spread horizontally.

For shallow water submerged discharges, surface discharges, and non-buoyant discharges, characteristic of cooling water wastes and some individual discharges, turbulent mixing results primarily from the momentum of discharge. Initial dilution, in these cases, is considered to be completed when the momentum induced velocity of the discharge ceases to produce significant mixing of the waste, or the diluting plume reaches a fixed distance from the discharge to be specified by the Regional Board, whichever results in the lower estimate for initial dilution.

Instantaneous Maximum Effluent Limitation: the highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation: the lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

Kelp Beds (for purposes of the bacteriological standards of the 2005 Ocean Plan): significant aggregations of marine algae of the genera Macrocystis and Nereocystis. Kelp beds include the total foliage canopy of Macrocystis and Nereocystis plants throughout the water column.

Mariculture: the culture of plants and animals in marine waters independent of any pollution source.

Material: (a) In common usage: (1) the substance or substances of which a thing is made or composed (2) substantial; (b) For purposes of the 2005 Ocean Plan relating to waste disposal, dredging and the disposal of dredged material and fill, MATERIAL means matter of any kind or description which is subject to regulation as waste, or any material dredged from the navigable waters of the United States. See also, DREDGED MATERIAL.

Maximum Daily Effluent Limitation (MDEL): the highest allowable daily discharge of a pollutant.

MDL (Method Detection Limit): the minimum concentration of a substance that can be measured and reported with 99% confidence that the analyte concentration is greater than zero, as defined in title 40 of the Code of Federal Regulations, PART 136, Appendix B.

Minimum Level (ML): the concentrations at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific analytical procedure, assuming that all the method-specified sample weights, volumes and processing steps have been followed.

Natural Light: Reduction of natural light may be determined by the Regional Water Board by measurement of light transmissivity or total irradiance, or both, according to the monitoring needs of the Regional Water Board.

Not Detected (ND): sample results less than the laboratory's MDL.

Ocean Waters: the territorial marine waters of the state as defined by California law to the extent these waters are outside of enclosed bays, estuaries, and coastal lagoons. If a discharge outside the territorial waters of the state could affect the quality of the waters of the state, the discharge may be regulated to assure no violation of the 2005 Ocean Plan will occur in ocean waters.

PAHs (polynuclear aromatic hydrocarbons): the sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo[k]fluoranthene, 1,12-benzoperylene,

benzo[a]pyrene, chrysene, dibenzo[ah]anthracene, fluorene, indeno[1,2,3-cd]pyrene, phenanthrene and pyrene.

PCBs (polychlorinated biphenyls): the sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254 and Aroclor-1260.

Pollutant Minimization Program (PMP): waste minimization and pollution prevention actions that include, but are not limited to, product substitution, waste stream recycling, alternative waste management methods, and education of the public and businesses. The goal of the PMP shall be to reduce all potential sources of the 2005 Ocean Plan Table B pollutants through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent concentration at or below the water quality-based effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Regional Water Board may consider cost effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan, if required pursuant to Water Code section 13263.3(d), shall be considered to fulfill the PMP requirements.

Reported Minimum Level: the ML (and its associated analytical method) chosen by the Discharger for reporting and compliance determination from the MLs included in this Order. The MLs included in this Order correspond to approved analytical methods for reporting a sample result that are selected by the Regional Water Board either from Appendix II of the 2005 Ocean Plan in accordance with section III.C.5.a. of the 2005 Ocean Plan or established in accordance with section III.C.5.b. of the 2005 Ocean Plan. The ML is based on the proper application of method-based analytical procedures for sample preparation and the absence of any matrix interferences. Other factors may be applied to the ML depending on the specific sample preparation steps employed. For example, the treatment typically applied in cases where there are matrix-effects is to dilute the sample or sample aliquot by a factor of ten. In such cases, this additional factor must be applied to the ML in the computation of the reported ML.

Satellite Collection System: the portion, if any, of a sanitary sewer system owned or operated by a different public agency than the agency that owns and operates the wastewater treatment facility that a sanitary sewer system is tributary to.

Shellfish: organisms identified by the California Department of Health Services as shellfish for public health purposes (i.e., mussels, clams and oysters).

Significant Difference: statistically significant difference in the means of two distributions of sampling results at the 95 percent confidence level.

Six-month Median Effluent Limitation: the highest allowable moving median of all daily discharges for any 180-day period.

State Water Quality Protection Areas (SWQPAs): non-terrestrial marine or estuarine areas designated to protect marine species or biological communities from an undesirable alteration

in natural water quality. All AREAS OF SPECIAL BIOLOGICAL SIGNIFICANCE (ASBS) that were previously designated by the State Water Board in Resolution No.s 74-28, 74-32, and 75-61 are now also classified as a subset of State Water Quality Protection Areas and require special protections afforded by the 2005 Ocean Plan.

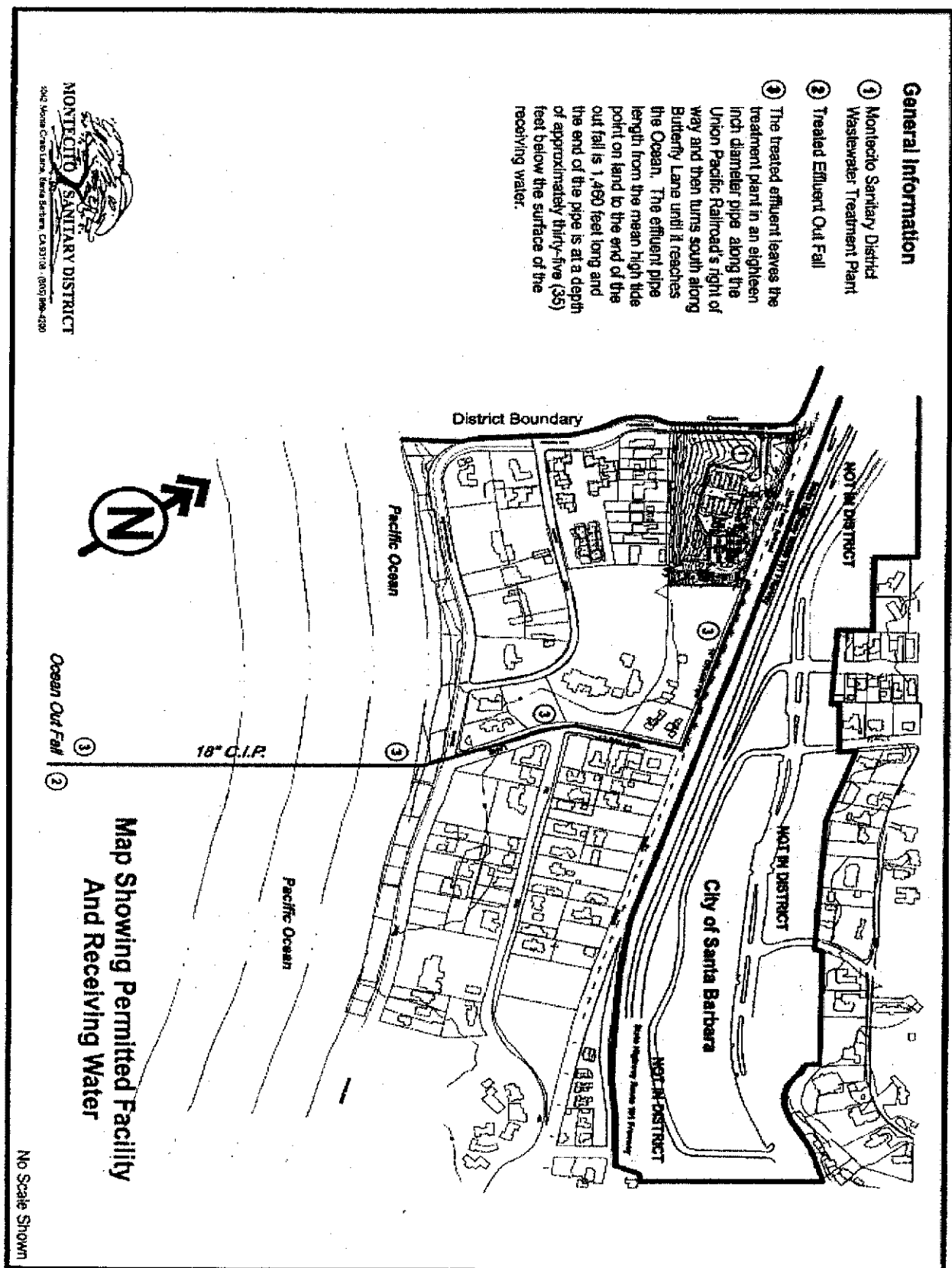
TCDD Equivalents: the sum of the concentrations of chlorinated dibenzodioxins (2,3,7,8-CDDs) and chlorinated dibenzofurans (2,3,7,8-CDFs) multiplied by their respective toxicity factors, as shown in the table below.

Isomer Group	Toxicity Equivalence Factor
	1.0
2,3,7,8-tetra CDD	
2,3,7,8-penta CDD	0.5
2,3,7,8-hexa CDDs	0.1
2,3,7,8-hepta CDD	0.01
octa CDD	0.001
2,3,7,8 tetra CDF	0.1
1,2,3,7,8 penta CDF	0.05
2,3,4,7,8 penta CDF	0.5
2,3,7,8 hexa CDFs	0.1
2,3,7,8 hepta CDFs	0.01
octa CDF	0.001

Toxicity Reduction Evaluation (TRE): study conducted in a step-wise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A toxicity identification evaluation (TIE) may be required as part of the TRE, if appropriate. (A TIE is a set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases (characterization, identification, and confirmation) using aquatic organism toxicity tests.)

Waste: As used in the 2005 Ocean Plan, waste includes a Discharger's total discharge, of whatever origin, i.e., gross, not net, discharge.

ATTACHMENT B – SITE MAP





ATTACHMENT D – FEDERAL STANDARD PROVISIONS

I. STANDARD PROVISIONS – PERMIT COMPLIANCE

A. Duty to Comply

1. The Discharger must comply with all of the conditions of this Order. Any noncompliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code (CWC) and is grounds for enforcement action, for permit termination, revocation and reissuance, or denial of a permit renewal application [40 CFR §122.41(a)].
2. The Discharger shall comply with effluent standards or prohibitions established under Section 307(a) of the Clean Water Act for toxic pollutants and with standards for sewage sludge use or disposal established under Section 405(d) of the CWA within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not been modified to incorporate the requirement [40 CFR §122.41(a)(1)].

B. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for a Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this Order [40 CFR §122.41(c)].

C. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge or sludge use or disposal in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment [40 CFR §122.41(d)].

D. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also includes adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order [40 CFR §122.41(e)].

E. Property Rights

1. This Order does not convey any property rights of any sort or any exclusive privileges [40 CFR §122.41(g)].

2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of State or local law or regulations [40 CFR §122.5(c)].

F. Inspection and Entry

The Discharger shall allow the Central Coast Water Board, State Water Resources Control Board (SWRCB), United States Environmental Protection Agency (U.S. EPA), and/or their authorized representatives (including an authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to [40 CFR §122.41(i)] [CWC 13383(c)]:

1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order [40 CFR §122.41(i)(1)];
2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order [40 CFR §122.41(i)(2)];
3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order [40 CFR §122.41(i)(3)];
4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the CWC, any substances or parameters at any location [40 CFR §122.41(i)(4)].

G. Bypass

1. Definitions
 - a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility [40 CFR §122.41(m)(1)(i)].
 - b. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production [40 CFR §122.41(m)(1)(ii)].
2. Bypass not exceeding limitations – The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to assure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance I.G.3 and I.G.5 below [40 CFR §122.41(m)(2)].

3. Prohibition of bypass – Bypass is prohibited, and the Central Coast Water Board may take enforcement action against a Discharger for bypass, unless [40 CFR §122.41(m)(4)(i)]:
 - a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage [40 CFR §122.41(m)(4)(A)];
 - b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance [40 CFR §122.41(m)(4)(B)]; and
 - c. The Discharger submitted notice to the Central Coast Water Board as required under Standard Provision – Permit Compliance I.G.5 below [40 CFR §122.41(m)(4)(C)].
4. The Central Coast Water Board may approve an anticipated bypass, after considering its adverse effects, if the Central Coast Water Board determines that it will meet the three conditions listed in Standard Provisions – Permit Compliance I.G.3 above [40 CFR §122.41(m)(4)(ii)].
5. Notice
 - a. Anticipated bypass. If the Discharger knows in advance of the need for a bypass, it shall submit a notice, if possible at least 10 days before the date of the bypass [40 CFR §122.41(m)(3)(i)].
 - b. Unanticipated bypass. The Discharger shall submit notice of an unanticipated bypass as required in Standard Provisions - Reporting V.E below [40 CFR §122.41(m)(3)(ii)].

H. Upset

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with technology based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation [40 CFR §122.41(n)(1)].

1. Effect of an upset. An upset constitutes an affirmative defense to an action brought for noncompliance with such technology based permit effluent limitations if the requirements of paragraph H.2 of this section are met. No determination made during administrative review of claims that noncompliance was caused by upset, and

before an action for noncompliance, is final administrative action subject to judicial review [40 CFR §122.41(n)(2)].

2. Conditions necessary for a demonstration of upset. A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that [40 CFR §122.41(n)(3)]:
 - a. An upset occurred and that the Discharger can identify the cause(s) of the upset [40 CFR §122.41(n)(3)(i)];
 - b. The permitted facility was, at the time, being properly operated [40 CFR §122.41(n)(3)(i)];
 - c. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting V.E.2.b [40 CFR §122.41(n)(3)(iii)]; and
 - d. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance I.C above [40 CFR §122.41(n)(3)(iv)].
3. Burden of proof. In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof [40 CFR §122.41(n)(4)].

II. STANDARD PROVISIONS – PERMIT ACTION

A. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance, or termination, or a notification of planned changes or anticipated noncompliance does not stay any Order condition [40 CFR §122.41(f)].

B. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit [40 CFR §122.41(b)].

C. Transfers

This Order is not transferable to any person except after notice to the Central Coast Water Board. The Central Coast Water Board may require modification or revocation and reissuance of the Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the CWC [40 CFR §122.41(l)(3)] [40 CFR §122.61]. Please also see Attachment D-1, Central Coast Water Board Standard Provision C.6.

III. STANDARD PROVISIONS – MONITORING

- A. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity [40 CFR §122.41(j)(1)].
- B. Monitoring results must be conducted according to test procedures under 40 CFR Part 136 or, in the case of sludge use or disposal, approved under 40 CFR Part 136 unless otherwise specified in 40 CFR Part 503 unless other test procedures have been specified in this Order [40 CFR §122.41(j)(4)] [40 CFR §122.44(i)(1)(iv)].

IV. STANDARD PROVISIONS – RECORDS

- A. Except for records of monitoring information required by this Order related to the Discharger's sewage sludge use and disposal activities, which shall be retained for a period of at least five years (or longer as required by 40 CFR Part 503), the Discharger shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended by request of the Central Coast Water Board Executive Officer at any time [40 CFR §122.41(j)(2)].
- B. **Records of monitoring information shall include:**
 - 1. The date, exact place, and time of sampling or measurements [40 CFR §122.41(j)(3)(i)];
 - 2. The individual(s) who performed the sampling or measurements [40 CFR §122.41(j)(3)(ii)];
 - 3. The date(s) analyses were performed [40 CFR §122.41(j)(3)(iii)];
 - 4. The individual(s) who performed the analyses [40 CFR §122.41(j)(3)(iv)];
 - 5. The analytical techniques or methods used [40 CFR §122.41(j)(3)(v)]; and
 - 6. The results of such analyses [40 CFR §122.41(j)(3)(vi)].
- C. **Claims of confidentiality for the following information will be denied [40 CFR §122.7(b)]:**
 - 1. The name and address of any permit applicant or Discharger [40 CFR §122.7(b)(1)]; and
 - 2. Permit applications and attachments, permits and effluent data [40 CFR §122.7(b)(2)].

Please also see Attachment D-1, Central Coast Water Board Standard Provision C.7.

V. STANDARD PROVISIONS – REPORTING

A. Duty to Provide Information

The Discharger shall furnish to the Central Coast Water Board, SWRCB, or U.S. EPA within a reasonable time, any information which the Central Coast Water Board, SWRCB, or U.S. EPA may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Central Coast Water Board, SWRCB, or U.S. EPA copies of records required to be kept by this Order [40 CFR §122.41(h)] [CWC 13267].

B. Signatory and Certification Requirements

1. All applications, reports, or information submitted to the Central Coast Water Board, SWRCB, and/or U.S. EPA shall be signed and certified in accordance with paragraph (2.) and (3.) of this provision [40 CFR §122.41(k)].
2. All permit applications shall be signed as follows:
 - a. For a corporation: By a responsible corporate officer. For the purpose of this section, a responsible corporate officer means: (i) A president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation, or (ii) the manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiating and directing other comprehensive measures to assure long term environmental compliance with environmental laws and regulations; the manager can ensure that the necessary systems are established or actions taken to gather complete and accurate information for permit application requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures [40 CFR §122.22(a)(1)];
 - b. For a partnership or sole proprietorship: by a general partner or the proprietor, respectively [40 CFR §122.22(a)(2)]; or
 - c. For a municipality, State, federal, or other public agency: by either a principal executive officer or ranking elected official. For purposes of this provision, a principal executive officer of a federal agency includes: (i) the chief executive officer of the agency, or (ii) a senior executive officer having responsibility for the

overall operations of a principal geographic unit of the agency (e.g., Regional Administrators of U.S. EPA) [40 CFR §122.22(a)(3)].

3. All reports required by this Order and other information requested by the Central Coast Water Board, SWRCB, or U.S. EPA shall be signed by a person described in paragraph (b) of this provision, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
 - a. The authorization is made in writing by a person described in paragraph (2.) of this provision [40 CFR §122.22(b)(1)];
 - b. The authorization specified either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company (a duly authorized representative may thus be either a named individual or any individual occupying a named position) [40 CFR §122.22(b)(2)]; and
 - c. The written authorization is submitted to the Central Coast Water Board, SWRCB, or U.S. EPA [40 CFR §122.22(b)(3)].
4. If an authorization under paragraph (3.) of this provision is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, a new authorization satisfying the requirements of paragraph (3.) of this provision must be submitted to the Central Coast Water Board, SWRCB or U.S. EPA prior to or together with any reports, information, or applications, to be signed by an authorized representative [40 CFR §122.22(c)].
5. Any person signing a document under paragraph (2.) or (3.) of this provision shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations" [40 CFR §122.22(d)].

C. Monitoring Reports

1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program in this Order [40 CFR §122.41(l)(4)].

2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Central Coast Water Board or SWRCB for reporting results of monitoring of sludge use or disposal practices [40 CFR §122.41(l)(4)(i)].
3. If the Discharger monitors any pollutant more frequently than required by this Order using test procedures approved under 40 CFR Part 136 or, in the case of sludge use or disposal, approved under 40 CFR Part 136 unless otherwise specified in 40 CFR Part 503, or as specified in this Order, the results of this monitoring shall be included in the calculation and reporting of the data submitted in the DMR or sludge reporting form specified by the Central Coast Water Board [40 CFR §122.41(l)(4)(ii)].
4. Calculations for all limitations, which require averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order [40 CFR §122.41(l)(4)(iii)].

D. Compliance Schedules

Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date [40 CFR §122.41(l)(5)].

E. Twenty-Four Hour Reporting

1. The Discharger shall report any noncompliance that may endanger health or the environment. Any information shall be provided orally within 24 hours from the time the Discharger becomes aware of the circumstances. A written submission shall also be provided within five (5) days of the time the Discharger becomes aware of the circumstances. The written submission shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance [40 CFR §122.41(l)(6)(i)].
2. The following shall be included as information that must be reported within 24 hours under this paragraph [40 CFR §122.41(l)(6)(ii)]:
 - a. Any unanticipated bypass that exceeds any effluent limitation in this Order [40 CFR §122.41(l)(6)(ii)(A)].
 - b. Any upset that exceeds any effluent limitation in this Order [40 CFR §122.41(l)(6)(ii)(B)].
 - c. Violation of a maximum daily discharge limitation for any of the pollutants listed in this Order to be reported within 24 hours [40 CFR §122.41(l)(6)(ii)(C)].

d. Violation of a discharge prohibition [*Central Coast Water Board NPDES Standard Provisions, January 1985*].

3. The Central Coast Water Board may waive the above-required written report under this provision on a case-by-case basis if an oral report has been received within 24 hours [*40 CFR §122.41(l)(6)(iii)*].

F. Planned Changes

The Discharger shall give notice to the Central Coast Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when [*40 CFR §122.41(l)(1)*]:

1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in 40 CFR §122.29(b) [*40 CFR §122.41(l)(1)(i)*]; or
2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants which are subject neither to effluent limitations in this Order nor to notification requirements under 40 CFR Part 122.42(a)(1) (see Additional Provisions—Notification Levels VII.A.1) [*40 CFR §122.41(l)(1)(ii)*].
3. The alteration or addition results in a significant change in the Discharger's sludge use or disposal practices, and such alteration, addition, or change may justify the application of permit conditions that are different from or absent in the existing permit, including notification of additional use or disposal sites not reported during the permit application process or not reported pursuant to an approved land application plan [*40 CFR §122.41(l)(1)(iii)*].

G. Anticipated Noncompliance

The Discharger shall give advance notice to the Central Coast Water Board or SWRCB of any planned changes in the permitted facility or activity that may result in noncompliance with General Order requirements [*40 CFR §122.41(l)(2)*].

H. Other Noncompliance

The Discharger shall report all instances of noncompliance not reported under Standard Provisions – Reporting E.3, E.4, and E.5 at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting V.E [*40 CFR §122.41(l)(7)*].

I. Other Information

When the Discharger becomes aware that it failed to submit any relevant facts in a permit application, or submitted incorrect information in a permit application or in any

report to the Central Coast Water Board, SWRCB, or U.S. EPA, the Discharger shall promptly submit such facts or information [40 CFR §122.41(l)(8)].

VI. STANDARD PROVISIONS – ENFORCEMENT

- A. The CWA provides that any person who violates section 301, 302, 306, 307, 308, 318 or 405 of the Act, or any permit condition or limitation implementing any such sections in a permit issued under section 402, or any requirement imposed in a pretreatment program approved under sections 402(a)(3) or 402(b)(8) of the Act, is subject to a civil penalty not to exceed \$25,000 per day for each violation. The CWA provides that any person who negligently violates sections 301, 302, 306, 307, 308, 318, or 405 of the Act, or any condition or limitation implementing any of such sections in a permit issued under section 402 of the Act, or any requirement imposed in a pretreatment program approved under section 402(a)(3) or 402(b)(8) of the Act, is subject to criminal penalties of \$2,500 to \$25,000 per day of violation, or imprisonment of not more than one (1) year, or both. In the case of a second or subsequent conviction for a negligent violation, a person shall be subject to criminal penalties of not more than \$50,000 per day of violation, or by imprisonment of not more than two (2) years, or both. Any person who knowingly violates such sections, or such conditions or limitations is subject to criminal penalties of \$5,000 to \$50,000 per day of violation, or imprisonment for not more than three (3) years, or both. In the case of a second or subsequent conviction for a knowing violation, a person shall be subject to criminal penalties of not more than \$100,000 per day of violation, or imprisonment of not more than six (6) years, or both. Any person who knowingly violates section 301, 302, 303, 306, 307, 308, 318 or 405 of the Act, or any permit condition or limitation implementing any of such sections in a permit issued under section 402 of the Act, and who knows at that time that he thereby places another person in imminent danger of death or serious bodily injury, shall, upon conviction, be subject to a fine of not more than \$250,000 or imprisonment of not more than 15 years, or both. In the case of a second or subsequent conviction for a knowing endangerment violation, a person shall be subject to a fine of not more than \$500,000 or by imprisonment of not more than 30 years, or both. An organization, as defined in section 309(c)(3)(B)(iii) of the Clean Water Act, shall, upon conviction of violating the imminent danger provision, be subject to a fine of not more than \$1,000,000 and can be fined up to \$2,000,000 for second or subsequent convictions [40 CFR §122.41(a)(2)] [CWC 13385 and 13387].
- B. Any person may be assessed an administrative penalty by the Central Coast Water Board for violating section 301, 302, 306, 307, 308, 318 or 405 of this Act, or any permit condition or limitation implementing any of such sections in a permit issued under section 402 of this Act. Administrative penalties for Class I violations are not to exceed \$10,000 per violation, with the maximum amount of any Class I penalty assessed not to exceed \$25,000. Penalties for Class II violations are not to exceed \$10,000 per day for each day during which the violation continues, with the maximum amount of any Class II penalty not to exceed \$125,000 [40 CFR §122.41(a)(3)].
- C. The CWA provides that any person who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required to be maintained under this permit

shall, upon conviction, be punished by a fine of not more than \$10,000, or by imprisonment for not more than 2 years, or both. If a conviction of a person is for a violation committed after a first conviction of such person under this paragraph, punishment is a fine of not more than \$20,000 per day of violation, or by imprisonment of not more than 4 years, or both [40 CFR §122.41(j)(5)].

- D. The CWA provides that any person who knowingly makes any false statement, representation, or certification in any record or other document submitted or required to be maintained under this Order, including monitoring reports or reports of compliance or noncompliance shall, upon conviction, be punished by a fine of not more than \$10,000 per violation, or by imprisonment for not more than six months per violation, or by both [40 CFR §122.41(k)(2)].

VII. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

A. Non-Municipal Facilities

Existing manufacturing, commercial, mining, and silvicultural dischargers shall notify the Central Coast Water Board as soon as they know or have reason to believe [40 CFR §122.42(a)]:

1. That any activity has occurred or will occur that would result in the discharge, on a routine or frequent basis, of any toxic pollutant that is not limited in this Order, if that discharge will exceed the highest of the following "notification levels" [40 CFR §122.42(a)(1)]:
 - a. 100 micrograms per liter ($\mu\text{g/L}$) [40 CFR §122.42(a)(1)(i)];
 - b. 200 $\mu\text{g/L}$ for acrolein and acrylonitrile; 500 $\mu\text{g/L}$ for 2,4-dinitrophenol and 2-methyl-4,6-dinitrophenol; and 1 milligram per liter (mg/L) for antimony [40 CFR §122.42(a)(1)(ii)];
 - c. Five (5) times the maximum concentration value reported for that pollutant in the Report of Waste Discharge [40 CFR §122.42(a)(1)(iii)]; or
 - d. The level established by the Central Coast Water Board in accordance with 40 CFR §122.44(f) [40 CFR §122.42(a)(1)(iv)].
2. That any activity has occurred or will occur that would result in the discharge, on a non-routine or infrequent basis, of any toxic pollutant that is not limited in this Order, if that discharge will exceed the highest of the following "notification levels" [40 CFR §122.42(a)(2)]:
 - a. 500 micrograms per liter ($\mu\text{g/L}$) [40 CFR §122.42(a)(2)(i)];
 - b. 1 milligram per liter (mg/L) for antimony [40 CFR §122.42(a)(2)(ii)];

- c. Ten (10) times the maximum concentration value reported for that pollutant in the Report of Waste Discharge [40 CFR §122.42(a)(2)(iii)]; or
- d. The level established by the Central Coast Water Board in accordance with 40 CFR §122.44(f) [40 CFR §122.42(a)(2)(iv)].B. Publicly-Owned Treatment Works (POTWs)

All POTWs shall provide adequate notice to the Central Coast Water Board of the following [40 CFR §122.42(b)]:

- 1. Any new introduction of pollutants into the POTW from an indirect discharger that would be subject to Sections 301 or 306 of the CWA if it were directly discharging those pollutants [40 CFR §122.42(b)(1)]; and
- 2. Any substantial change in the volume or character of pollutants being introduced into that POTW by a source introducing pollutants into the POTW at the time of adoption of the Order [40 CFR §122.42(b)(2)].

Adequate notice shall include information on the quality and quantity of effluent introduced into the POTW as well as any anticipated impact of the change on the quantity or quality of effluent to be discharged from the POTW [40 CFR §122.42(b)(3)].

**ATTACHMENT D-1 – CENTRAL COAST WATER BOARD STANDARD PROVISIONS
(JANUARY 1985)**

A. General Permit Conditions:

Prohibitions:

1. Introduction of "incompatible wastes" to the treatment system is prohibited.
2. Discharge of high-level radiological waste and of radiological, chemical, and biological warfare agents is prohibited.
3. Discharge of "toxic pollutants" in violation of effluent standards and prohibitions established under Section 307(a) of the Clean Water Act is prohibited.
4. "Bypass" and "overflow" of untreated and partially treated waste is prohibited.
5. Discharge of sludge, sludge digester or thickener supernatant, and sludge drying bed leachate to drainageways, surface waters, or the ocean is prohibited.
6. Introduction of pollutants into the collection, treatment, or disposal system by an "indirect discharger" that:
 - a) inhibit or disrupt the treatment process, system operation, or the eventual use or disposal of sludge; or,
 - b) flow through the system to the receiving water untreated; and,
 - c) cause or "significantly contribute" to a violation of any requirement of this Order, is prohibited.
7. Introduction of "pollutant free" wastewater to the collection, treatment, and disposal system in amounts that threaten compliance with this order is prohibited.

Provisions:

8. Collection, treatment, and discharge of waste shall not create a nuisance or pollution, as defined by Section 13050 of the California Water Code.
9. All facilities used for transport or treatment of wastes shall be adequately protected from inundation and washout as the result of a 100-year frequency flood.
10. Operation of collection, treatment, and disposal systems shall be in a manner that precludes public contact with wastewater.
11. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed in a manner approved by the Executive Officer.

12. Publicly owned wastewater treatment plants shall be supervised and operated by persons possessing certificates of appropriate grade pursuant to Title 23 of the California Administrative Code.
13. After notice and opportunity for a hearing, this order may be terminated for cause, including, but not limited to:
 - a) violation of any term or condition contained in this order;
 - b) obtaining this order by misrepresentation, or by failure to disclose fully all relevant facts;
 - c) a change in any condition or endangerment to human health or environment that requires a temporary or permanent reduction or elimination of the authorized discharge; and,
 - d) a substantial change in character, location, or volume of the discharge.
14. Provisions of this permit are severable. If any provision of the permit is found invalid, the remainder of the permit shall not be affected.
15. After notice and opportunity for hearing, this order may be modified or revoked and reissued for cause, including:
 - a) Promulgation of a new or revised effluent standard or limitation;
 - b) A material change in character, location, or volume of the discharge;
 - c) Access to new information that affects the terms of the permit, including applicable schedules;
 - d) Correction of technical mistakes or mistaken interpretations of law; and,
 - e) Other causes set forth under Sub-part D of 40 CFR Part 122.
16. Safeguards shall be provided to assure maximal compliance with all terms and conditions of this permit. Safeguards shall include preventative and contingency plans and may also include alternative power sources, stand-by generators, retention capacity, operating procedures, or other precautions. Preventative and contingency plans for controlling and minimizing the affect of accidental discharges shall:
 - a) identify possible situations that could cause "upset", "overflow" or "bypass", or other noncompliance. (Loading and storage areas, power outage, waste treatment unit outage, and failure of process equipment, tanks and pipes should be considered.)

- b) evaluate the effectiveness of present facilities and procedures and describe procedures and steps to minimize or correct any adverse environmental impact resulting from noncompliance with the permit.
- 17. If more stringent applicable water quality standards are promulgated or approved pursuant to Section 303 of the Clean Water Act, or amendments thereto, the Board will revise and modify this Order in accordance with such more stringent standards.
- 18. Physical Facilities shall be designed and constructed according to accepted engineering practice and shall be capable of full compliance with this order when properly operated and maintained. Proper operation and maintenance shall be described in an Operation and Maintenance Manual. Facilities shall be accessible during the wet-weather season.
- 19. Production and use of reclaimed water is subject to the approval of the Board. Production and use of reclaimed water shall be in conformance with reclamation criteria established in Chapter 3, Title 22, of the California Administrative Code and Chapter 7, Division 7, of the California Water Code. An engineering report pursuant to section 60323, Title 22, of the California Administrative Code is required and a waiver or water reclamation requirements from the Board is required before reclaimed water is supplied for any use, or to any user, not specifically identified and approved either in this Order or another order issued by this Board.

B. General Monitoring Requirements:

- 1. Monitoring location, minimum sampling frequency, and sampling method for each parameter shall comply with the Monitoring and Reporting Program of this Order.
- 2. If results of monitoring a pollutant appear to violate effluent limitations based on a weekly, monthly, 30-day, or six-month period, but compliance or non-compliance cannot be validated because sampling is too infrequent, the frequency of sampling shall be increased to validate the test within the next monitoring period. The increased frequency shall be maintained until the Executive Officer agrees the original monitoring frequency may be resumed.

For example, if copper is monitored annually and results exceed the six-month median numerical effluent limitation in the permit, monitoring of copper must be increased to a frequency of at least once every two months (ref. paragraph F.13.). If suspended solids are monitored weekly and results exceed the weekly average numerical limit in the permit, monitoring of suspended solids must be increased to at least four (4) samples every week (ref. paragraph F.14.).

- 3. Water quality analyses performed in order to monitor compliance with this permit shall be by a laboratory certified by the State Department of Health Services for the constituent(s) being analyzed. Bioassay(s) performed in order to monitor compliance with this permit shall be in accord with guidelines approved by the State Water Resources Control Board and the State Department of Fish and Game. If the laboratory used or proposed for use by the discharger is not certified by the California Department of Health Services or, where

appropriate, the Department of Fish and Game due to restrictions in the State's laboratory certification program, the discharger shall be considered in compliance with this provision provided:

- a) Data results remain consistent with results of samples analyzed by the Central Coast Water Board;
 - b) A quality assurance program is used at the laboratory, including a manual containing steps followed in this program that is available for inspections by the staff of the Central Coast Water Board; and,
 - c) Certification is pursued in good faith and obtained as soon as possible after the program is reinstated.
4. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. Samples shall be taken during periods of peak loading conditions. Influent samples shall be samples collected from the combined flows of all incoming wastes, excluding recycled wastes. Effluent samples shall be samples collected downstream of the last treatment unit and tributary flow and upstream of any mixing with receiving waters.
 5. All monitoring instruments and devices used by the discharger to fulfill the prescribed monitoring program shall be properly maintained and calibrated as necessary to ensure their continued accuracy.

C. General Reporting Requirements:

1. Reports of marine monitoring surveys conducted to meet receiving water monitoring requirements of the Monitoring and Reporting Program shall include at least the following information:
 - a) A description of climatic and receiving water characteristics at the time of sampling (weather observations, floating debris, discoloration, wind speed and direction, swell or wave action, time of sampling, tide height, etc.).
 - b) A description of sampling stations, including differences unique to each station (e.g., station location, grain size, rocks, shell litter, calcareous worm tubes, evident life, etc.).
 - c) A description of the sampling procedures and preservation sequence used in the survey.
 - d) A description of the exact method used for laboratory analysis. In general, analysis shall be conducted according to paragraph B.1 above, and Attachment D, Federal Standard Provision III.B. However, variations in procedure are acceptable to accommodate the special requirements of sediment analysis. All such variations must be reported with the test results.

- e) A brief discussion of the results of the survey. The discussion shall compare data from the control station with data from the outfall stations. All tabulations and computations shall be explained.
- 2. Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule shall be submitted within 14 days following each scheduled date unless otherwise specified within the permit. If reporting noncompliance, the report shall include a description of the reason, a description and schedule of tasks necessary to achieve compliance, and an estimated date for achieving full compliance. A second report shall be submitted within 14 days of full compliance.
- 3. The "Discharger" shall file a report of waste discharge or secure a waiver from the Executive Officer at least 180 days before making any material change or proposed change in the character, location, or plume of the discharge.
- 4. Within 120 days after the discharger discovers, or is notified by the Central Coast Water Board, that monthly average daily flow will or may reach design capacity of waste treatment and/or disposal facilities within four (4) years, the discharger shall file a written report with the Central Coast Water Board. The report shall include:
 - a) the best estimate of when the monthly average daily dry weather flow rate will equal or exceed design capacity; and,
 - b) a schedule for studies, design, and other steps needed to provide additional capacity for waste treatment and/or disposal facilities before the waste flow rate equals the capacity of present units.

In addition to complying with Attachment D, Federal Standard Provision V.B, the required technical report shall be prepared with public participation and reviewed, approved and jointly submitted by all planning and building departments having jurisdiction in the area served by the waste collection, treatment, or disposal facilities.

- 5. All "Dischargers" shall submit reports to the:

California Regional Water Quality Control Board
Central Coast Region
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401-7906

In addition, "Dischargers" with designated major discharges shall submit a copy of each document to:

Regional Administrator
US Environmental Protection Agency, Region 9
Attention: CWA Standards and Permits Office (WTR-5)
75 Hawthorne Street
San Francisco, California 94105

6. Transfer of control or ownership of a waste discharge facility must be preceded by a notice to the Central Coast Water Board at least 30 days in advance of the proposed transfer date. The notice must include a written agreement between the existing "Discharger" and proposed "Discharger" containing specific date for transfer of responsibility, coverage, and liability between them. Whether a permit may be transferred without modification or revocation and reissuance is at the discretion of the Board. If permit modification or revocation and reissuance is necessary, transfer may be delayed 180 days after the Central Coast Water Board's receipt of a complete permit application. Please also see Attachment D, Federal Standard Provision II.C.
7. Except for data determined to be confidential under Section 308 of the Clean Water Act (excludes effluent data and permit applications), all reports prepared in accordance with this permit shall be available for public inspection at the office of the Central Coast Water Board or Regional Administrator of EPA. Please also see Attachment D, Federal Standard Provision IV.C.
8. By February 1st of each year, the discharger shall submit an annual report to the Central Coast Water Board. The report shall contain both tabular and graphical summaries of the monitoring data obtained during the previous year. The discharger shall discuss the compliance record and corrective actions taken, or which may be needed, to bring the discharge into full compliance. The report shall address operator certification and provide a list of current operating personnel and their grade of certification. The report shall inform the Board of the date of the Facility's Operation and Maintenance Manual (including contingency plans as described in Provision A.16.), of the date the manual was last reviewed, and whether the manual is complete and valid for the current facility. The report shall restate, for the record, the laboratories used by the discharger to monitor compliance with effluent limits and provide a summary of performance relative to Section B above, *General Monitoring Requirements*.

If the facility treats industrial or domestic wastewater and there is no provision for periodic sludge monitoring in the Monitoring and Reporting Program, the report shall include a summary of sludge quantities, analyses of its chemical and moisture content, and its ultimate destination.

If applicable, the report shall also evaluate the effectiveness of the local source control or pretreatment program using the State Water Resources Control Board's "Guidelines for Determining the Effectiveness of Local Pretreatment Programs."

D. General Pretreatment Provisions

1. Discharge of pollutants by "indirect dischargers" in specific industrial sub-categories (appendix C, 40 CFR Part 403), where categorical pretreatment standards have been established, or are to be established, (according to 40 CFR Chapter 1, Subchapter N), shall comply with the appropriate pretreatment standards:
 - a) By the date specified therein;

b) Within three (3) years of the effective date specified therein, but in no case later than July 1, 1984; or,

c) If a new indirect discharger, upon commencement of discharge.

E. Enforcement:

1. Any person failing to file a report of waste discharge or other report as required by this permit shall be subject to a civil penalty not to exceed \$5,000 per day.
2. Upon reduction, loss, or failure of the treatment facility, the "Discharger" shall, to the extent necessary to maintain compliance with this permit, control production or all discharges, or both, until the facility is restored or an alternative method of treatment is provided.

F. Definitions [Not otherwise included in Attachment A to this Order]:

1. "Bypass" means the diversion of waste streams from any portion of a treatment facility.
2. A "composite sample" is a combination of no fewer than eight (8) individual samples obtained at equal time intervals (usually hourly) over the specified sampling (composite) period. The volume of each individual sample is proportional to the flow rate at the time of sampling. The period shall be specified in the Monitoring and Reporting Program ordered by the Executive Officer.
3. "Daily Maximum" limit means the maximum acceptable concentration or mass emission rate of a pollutant measured during a calendar day or during any 24-hour period reasonably representative of the calendar day for purposes of sampling. It is normally compared with results based on "composite samples" except for ammonia, total chlorine, phenolic compounds, and toxicity concentration. For all exceptions, comparisons will be made with results from a "grab sample".
4. "Duly Authorized Representative" is one where:
 - a) the authorization is made in writing by a person described in the signatory paragraph of Attachment D, Federal Standard Provision V.B;
 - b) the authorization specifies either an individual or the occupant of a position having either responsibility for the overall operation of the regulated facility, such as the plant manager, or overall responsibility for environmental matters of the company; and,
 - c) the written authorization was submitted to the Central Coast Water Board.
5. A "grab sample" is defined as any individual sample collected in less than 15 minutes. "Grab samples" shall be collected during peak loading conditions, which may or may not be during hydraulic peaks. It is used primarily in determining compliance with the daily maximum limits identified in paragraph F.4 and instantaneous maximum limits.

6. "Hazardous substance" means any substance designated under 40 CFR Part 116 pursuant to Section 311 of the Clean Water Act.
7. "Incompatible wastes" are:
- a) Wastes which create a fire or explosion hazard in the treatment works;
 - b) Wastes which will cause corrosive structural damage to treatment works, but in no case wastes with a pH lower than 5.0 unless the works is specifically designed to accommodate such wastes;
 - c) Solid or viscous wastes in amounts which cause obstruction to flow in sewers, or which cause other interference with proper operation of treatment works;
 - d) Any waste, including oxygen demanding pollutants (BOD, etc), released in such volume or strength as to cause inhibition or disruption in the treatment works and subsequent treatment process upset and loss of treatment efficiency; and,
 - e) Heat in amounts that inhibit or disrupt biological activity in the treatment works or that raise influent temperatures above 40°C (104°F) unless the treatment works is designed to accommodate such heat.
8. "Indirect Discharger" means a non-domestic discharger introducing pollutants into a publicly owned treatment and disposal system.
9. "Log Mean" is the geometric mean. Used for determining compliance of fecal or total coliform populations, it is calculated with the following equation:

$$\text{Log Mean} = (C_1 \times C_2 \times \dots \times C_n)^{1/n}$$

in which "n" is the number of days samples were analyzed during the period and any "C" is the concentration of bacteria (MPN/100 ml) found on each day of sampling. "n" should be five or more.

10. "Mass emission rate" is a daily rate defined by the following equations:

$$\text{mass emission rate (lbs/day)} = 8.34 \times Q \times C; \text{ and,}$$

$$\text{mass emission rate (kg/day)} = 3.79 \times Q \times C,$$

where "C" (in mg/l) is the measured daily constituent concentration or the average of measured daily constituent concentrations and "Q" (in MGD) is the measured daily flow rate or the average of measured daily flow rates over the period of interest.

11. The "Maximum Allowable Mass Emission Rate," whether for a month, week, day, or six-month period, is a daily rate determined with the formulas in paragraph F.10, above, using

the effluent concentration limit specified in the permit for the period and the average of measured daily flows (up to the allowable flow) over the period.

12. "Maximum Allowable Six-Month Median Mass Emission Rate" is a daily rate determined with the formulas in paragraph F.10, above, using the "six-month Median" effluent limit specified in the permit, and the average of measured daily flows (up to the allowable flow) over a 180-day period.
13. "Median" is the value below which half the samples (ranked progressively by increasing value) fall. It may be considered the middle value, or the average of two middle values.
14. "Monthly Average" (or "Weekly Average", as the case may be) is the arithmetic mean of daily concentrations or of daily mass emission rates over the specified 30-day (or 7-day) period

$$\text{Average} = (X_1 + X_2 + \dots + X_n) / n$$

in which "n" is the number of days samples were analyzed during the period and "X" is either the constituent concentration (mg/l) or mass emission rate (kg/day or lbs/day) for each sampled day. "n" should be four or greater.
15. "Municipality" means a city, town, borough, county, district, association, or other public body created by or under state law and having jurisdiction over disposal of sewage, industrial waste, or other waste.
16. "Overflow" means the intentional or unintentional diversion of flow from the collection and transport systems, including pumping facilities.
17. "Discharger", as used herein, means, as appropriate: (1) the Discharger, (2) the local sewerage entity (when the collection system is not owned and operated by the Discharger), or (3) "indirect discharger" (where "Discharger" appears in the same paragraph as "indirect discharger", it refers to the discharger.)
18. "Pollutant-free wastewater" means inflow and infiltration, storm waters, and cooling waters and condensates which are essentially free of pollutants.
19. "Primary Industry Category" means any industry category listed in 40 CFR Part 122, Appendix A.
20. "Removal Efficiency" is the ratio of pollutants removed by the treatment unit to pollutants entering the treatment unit. Removal efficiencies of a treatment plant shall be determined using "Monthly averages" of pollutant concentrations (C, in mg/l) of influent and effluent samples collected about the same time and the following equation (or its equivalent):

$$C_{\text{Effluent}} \text{ Removal Efficiency (\%)} = 100 \times (1 - C_{\text{Effluent}} / C_{\text{Influent}})$$

21. "Severe property damage" means substantial physical damage to property, damage to treatment facilities which causes them to become inoperable, or substantial and permanent loss to natural resources which can reasonably be expected to occur in the absence of a "bypass". It does not mean economic loss caused by delays in production.
22. "Sludge" means the solids, residues, and precipitates separated from, or created in, wastewater by the unit processes of a treatment system.
23. To "significantly contribute" to a permit violation means an "indirect discharger" must:
- a) Discharge a daily pollutant loading in excess of that allowed by contract with the "Discharger" or by Federal, State, or Local law;
 - b) Discharge wastewater which substantially differs in nature or constituents from its average discharge;
 - c) Discharge pollutants, either alone or in conjunction with discharges from other sources, which results in a permit violation or prevents sewage sludge use or disposal; or
 - d) Discharge pollutants, either alone or in conjunction with pollutants from other sources, that increase the magnitude or duration of permit violations.
24. "Toxic Pollutant" means any pollutant listed as toxic under Section 307 (a) (1) of the Clean Water Act or under 40 CFR Part 122, Appendix D. Violation of maximum daily discharge limitations are subject to 24-hour reporting (Attachment D, Federal Standard Provision V.E.).
25. "Upset" means an exceptional incident causing noncompliance with technology-based permit effluent limitations because of factors beyond the reasonable control of the Discharger. It does not include noncompliance caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventative maintenance, or careless or improper operation.
26. "Zone of Initial Dilution" means the region surrounding or adjacent to the end of an outfall pipe or diffuser ports whose boundaries are defined through calculation of a plume model verified by the State Water Resources Control Board.

Attachment E – Monitoring and Reporting Program – Table of Contents

Attachment E – Monitoring and Reporting Program (MRP)	E-2
I. General Monitoring Provisions	E-2
II. Monitoring Locations	E-2
III. Influent Monitoring Requirements	E-3
IV. Effluent Monitoring Requirements	E-3
V. Whole Effluent Toxicity Testing Requirements	E-8
A. Acute Toxicity Testing	E-8
B. Chronic Toxicity Testing	E-8
C. Toxicity Identification / Reduction Evaluations	E-10
VI. Receiving Water Monitoring Requirements	E-13
A. Monitoring Location – Shore Sampling Stations	E-13
B. Monitoring Location – Ocean Sampling Stations (Bottom Sediment)	E-14
C. Monitoring Location - Ocean Sampling Stations (Benthic Biota)	E-13
VII. Other Monitoring Requirements	E-17
A. Ocean Outfall Inspection	E-14
B. Biosolids Monitoring, Reporting, and Notification	E-14
VIII. Minimum Levels	E-20
IX. Sample Reporting Protocols	E-27
X. Compliance Determination	E-27
A. Compliance with Single-Constituent Effluent Limitations	E-27
B. Compliance with Effluent Limitations as a Sum of Several Constituents	E-27
C. Multiple Sample Data Reduction	E-27
XI. Pollutant Minimization Program	E-28
A. Pollutant Minimization Program Goal	E-28
B. Determining the Need for a Pollutant Minimization Program	E-28
C. Special Provision for Evidence of Pollutant Presence	E-28
D. Elements of a Pollutant Minimization Program	E-29
XII. Reporting Requirements	E-29
A. General Monitoring and Reporting Requirements	E-29
B. Self Monitoring Reports	E-29
C. Discharge Monitoring Reports	E-31
D. Notification and Monitoring Procedure in Case of Disinfection Failure	E-32
E. Sewage Spill Reporting	E-33

ATTACHMENT E – MONITORING AND REPORTING PROGRAM (MRP)

The Code of Federal Regulations (CFR) at 40 CFR §122.48 requires that all NPDES permits specify monitoring and reporting requirements. CWC sections 13267 and 13383 also authorize the Central Coast Water Board to require technical and monitoring reports. This MRP establishes monitoring and reporting requirements which implement the federal and California regulations. See Attachments D and D-1 for additional monitoring requirements.

I. GENERAL MONITORING PROVISIONS

- A. **Rainfall.** Daily rainfall totals (in inches) shall be tabulated on the monitoring report forms next to daily influent flow. The Discharger shall collect rainfall data from a representative gauge station or information source of its choice, subject to the Executive Officer's approval.

II. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order:

Discharge Point Name	Monitoring Location Name	Monitoring Location Description (include Latitude and Longitude when available)
--	M-INF	Influent at Headworks
001	M-001	Effluent Discharge to Outfall
Bottom Sediment and benthic Biota Sampling Stations– See MRP Section VI		
--	R-1	100 meters eastward and same depth as outfall terminus
--	R-2	Westward and near the outfall terminus
--	R-3	100 meters westward and same depth as outfall terminus
--	R-4	500 meters westward and same depth as outfall terminus
Shore Sampling Stations (located in the surf) – See MRP Section VI		
--	R-A	1,000 downcoast (eastward along the coastline) from the outfall ¹
--	R-B	At the outfall in the surf
--	R-C	1,000 feet upcoast (westward along the coastline) from the outfall ¹
Disinfection Failure Monitoring Stations – See MRP Section XII.D		
--	R-D	Directly upcoast of the point of discharge
--	R-E	Directly downcoast of the point of discharge

¹ If the sample location is not accessible at 1,000 feet, then samples shall be collected at an accessible location as close as possible to the designated location.

The Discharger shall provide latitude and longitude (or global positioning system [GPS]) coordinates for all ocean and shore stations when reporting. Stations may be added, deleted, or relocated by the Central Coast Water Board, with EPA concurrence.

III. INFLUENT MONITORING REQUIREMENTS

A. Monitoring Location – Headworks

1. Sampling stations shall be established at each point of inflow to the treatment plant, and shall be isolated from and/or corrected for any in-plant return flows in order to obtain representative samples of the influent.

The Discharger shall monitor influent to the facility at the Headworks as follows:

TABLE III-1: Influent Monitoring			
Parameter	Units	Sample Type	Minimum Sampling Frequency
Daily Flow	Million Gallons per Day (MGD)	Metered	Daily
Instantaneous Flow	MGD	Metered	Continuous
Maximum Daily Flow	MGD	Metered	Monthly
Mean Daily Flow	MGD	Calculated	Monthly
CBOD ₅ , 5-day	mg/L	24-hr Composite	Monthly ¹
Total Suspended Solids	mg/L	24-hr Composite	Monthly

¹ Monthly CBOD₅ influent sampling shall be collected on one of the days the CBOD₅ effluent sampling occurs

IV. EFFLUENT MONITORING REQUIREMENTS

A. Monitoring Location M-001

1. Representative samples of the effluent shall be collected at the specified frequencies after the last point of treatment.

Composite samples may be taken by a proportional-sampling device approved by the Executive Officer or by grab samples composited in proportion to the flow. In compositing grab samples, the sampling interval shall not exceed one hour. Where specified in Table IV-2, IV-3, IV-4, and IV-5, 24-hour composite samples shall be collected when appropriate for the constituent and the applicable

approved laboratory analytical methods. The Discharger may otherwise employ grab samples.

The measurement of the 2005 Ocean Plan Table B constituents and the remaining priority toxic pollutants, except asbestos, in the effluent is required under dry-weather conditions. The effluent monitoring program shall be in accordance with Tables IV-2, IV-3, IV-4, and IV-5 below.

Annual effluent sampling per Tables IV-2, IV-3, IV-4, and IV-5 shall be collected during dry-weather conditions according to the following schedule: September 2007, August 2008, July 2009, June 2010, and May 2011.

If any constituents as listed in Tables IV-2, IV-3, IV-4, and IV-5 of this MRP are detected at levels exceeding the limits of Order No. R3-2006-0084, a new sample shall be collected and analyzed within one month for those constituents exceeding the applicable limit. Samples shall continue to be collected and analyzed monthly until the constituents no longer exceed the limit for two consecutive months.

The Discharger shall monitor effluent discharged to the outfall at M-001 as follows:

TABLE IV-1: Major Constituents and Properties of Wastewater

Parameter	Units	Sample Type	Minimum Sampling and Analysis Frequency
Daily Flow	Million Gallons per Day (MGD)	Metered	Daily
Instantaneous Flow	MGD	Metered	Daily
Maximum Daily Flow	MGD	Metered	Monthly
Mean Daily Flow	MGD	Calculated	Monthly
CBOD, 5-Day	mg/L	24-hr Composite	Every 6 Days
Total Suspended Solids	mg/L	24-hr Composite	Every 6 Days
Settleable Solids	mL/L	Grab	Daily
Temperature	°F	Grab	Every 6 Days
Total Coliform Organisms ^{1,2,3}	MPN/100 mL	Grab	3 times per week ⁶
Fecal Coliform Organisms ^{1,2}	MPN/100 mL	Grab	3 times per week ⁶
Total Chlorine Residual ³	mg/L	Metered ⁴ (after dechlorination)	Continuous
	mg/L	Grab ⁴	Daily
Total Chlorine Used	Lbs/Day	Recorded	Daily

TABLE IV-1: Major Constituents and Properties of Wastewater

Parameter	Units	Sample Type	Minimum Sampling and Analysis Frequency
pH	pH units	Grab	Daily
Oil & Grease	mg/L	Grab	Monthly
Turbidity	NTU	Grab	Every 6 Days
Ammonia (as N)	mg/L	Grab	Monthly
Phenolic Compounds (non-chlorinated)	µg/L	Grab	Annual
Chlorinated Phenolic Compounds	µg/L	Grab	Annual
Acute Toxicity ⁵	TUa	24-hr Composite	Annual
Chronic Toxicity ⁵	TUc	24-hr Composite	Annual

¹ For all bacterial analyses, sample dilutions should be performed so the range of bacterial density values extends from 2 to 16,000 /100 mL. The detection methods used for each analysis shall be reported with the results of the analysis.

² Detection methods used for coliforms (total and fecal) shall be those presented in Table 1A of 40 CFR PART 136 (revised edition of July 1, 2003, or later), unless alternate methods have been approved in advance by US EPA pursuant to 40 CFR PART 136.

³ Discharger shall notify the Central Coast Water Board, Department of Health Services, and any mariculture grower as soon as possible when there is a loss of disinfection or if three consecutive total effluent coliform bacteria tests exceed 2,300 per 100 mL. Refer to Section XII.D.1. of this MRP describing measures to be taken when there is a loss of disinfection.

⁴ The District shall review continuous monitoring data and submit a summary (chlorine residual daily minimum, maximum, mean) to the Central Coast Water Board with monthly monitoring reports. Grab samples for compliance with effluent limits shall be collected at the last accessible measurement location before discharge to the ocean.

⁵ See MRP Section V, *Whole Effluent Toxicity Testing Requirements*, below.

⁶ Sample collection days shall coincide with the Effluent CBOD₅ sampling day at a minimum of twice during a month or as appropriate.

TABLE IV-2: The 2005 Ocean Plan Table B Pollutants – Protection of Marine Aquatic Life ²

(For applicable effluent limitations, see Table IV-2 of Order No. R3-2006-0084)

Parameter	Units	Sample Type	Min. Analysis Frequency
Arsenic	µg/L	24-hr Composite	Annually
Cadmium	µg/L	24-hr Composite	Annually
Chromium Total	µg/L	24-hr Composite	Annually
Chromium (Hexavalent)	µg/L	24-hr Composite	Annually

TABLE IV-2: The 2005 Ocean Plan Table B Pollutants – Protection of Marine Aquatic Life ²

(For applicable effluent limitations, see Table IV-2 of Order No. R3-2006-0084)

Parameter	Units	Sample Type	Min. Analysis Frequency
Copper	µg/L	24-hr Composite	Annually
Iron	µg/L	24-hr Composite	Annually
Lead	µg/L	24-hr Composite	Annually
Mercury	µg/L	24-hr Composite	Annually
Nickel	µg/L	24-hr Composite	Annually
Selenium	µg/L	24-hr Composite	Annually
Silver	µg/L	24-hr Composite	Annually
Zinc	µg/L	24-hr Composite	Annually
Cyanide	µg/L	24-hr Composite	Annually
Endosulfan ¹	µg/L	24-hr Composite	Annually
Endrin	µg/L	24-hr Composite	Annually
HCH ¹	µg/L	24-hr Composite	Annually
Radioactivity	pci/L	24-hr Composite	Annually

¹ Refer to Appendix I of the 2005 Ocean Plan, *Definition of Terms*. Report: 1) the sum of the components, and; 2) the individual component concentrations.

² Please note that Total Chlorine Residual, Ammonia (as nitrogen), acute toxicity, and chronic toxicity are listed in Table IV-1 of this MRP due to their increased frequency of monitoring.

TABLE IV-3: The 2005 Ocean Plan Table B Pollutants – Protection of Human Health – Non-Carcinogens

(For applicable effluent limitations, see Table IV-3 of Order No. R3-2006-0084)

Parameter	Units	Sample Type	Min. Analysis Frequency
Acrolein	µg/L	24-hr Composite	Annually
Antimony	µg/L	24-hr Composite	Annually
Bis (2-chloroethoxy) methane	µg/L	24-hr Composite	Annually
Bis (2-chloroisopropyl) ether	µg/L	24-hr Composite	Annually
Chlorobenzene	µg/L	24-hr Composite	Annually
Chromium (III)	µg/L	24-hr Composite	Annually
Di-n-butyl phthalate	µg/L	24-hr Composite	Annually
Dichlorobenzenes ¹	µg/L	24-hr Composite	Annually
Diethyl phthalate	µg/L	24-hr Composite	Annually
Dimethyl phthalate	µg/L	24-hr Composite	Annually
4,6-Dinitro-2-methylphenol	µg/L	24-hr Composite	Annually
2,4-Dinitrophenol	µg/L	24-hr Composite	Annually
Ethylbenzene	µg/L	24-hr Composite	Annually

TABLE IV-3: The 2005 Ocean Plan Table B Pollutants – Protection of Human Health – Non-Carcinogens

(For applicable effluent limitations, see Table IV-3 of Order No. R3-2006-0084)

Parameter	Units	Sample Type	Min. Analysis Frequency
Fluoranthene	µg/L	24-hr Composite	Annually
Hexachlorocyclopentadiene	µg/L	24-hr Composite	Annually
Nitrobenzene	µg/L	24-hr Composite	Annually
Thallium	µg/L	24-hr Composite	Annually
Toluene	µg/L	24-hr Composite	Annually
Tributyltin	µg/L	24-hr Composite	Annually
1,1,1-Trichloroethane	µg/L	24-hr Composite	Annually

¹ Refer to Appendix I of the 2005 Ocean Plan, *Definition of Terms*. Report: 1) the sum of the components, and; 2) the individual component concentrations.

TABLE IV-4: The 2005 Ocean Plan Table B Pollutants – Protection of Human Health – Carcinogens

(For applicable effluent limitations, see Table IV-4 of Order No. R3-2006-0084)

Parameter	Units	Sample Type	Min. Analysis Frequency
Acrylonitrile	µg/L	24-hr Composite	Annually
Aldrin	µg/L	24-hr Composite	Annually
Benzene	µg/L	24-hr Composite	Annually
Benzidine	µg/L	24-hr Composite	Annually
Beryllium	µg/L	24-hr Composite	Annually
Bis (2-Chloroethyl) ether	µg/L	24-hr Composite	Annually
Bis (2-ethylhexyl) phthalate	µg/L	24-hr Composite	Annually
Carbon tetrachloride	µg/L	24-hr Composite	Annually
Chlordane ¹	µg/L	24-hr Composite	Annually
Chlorodibromomethane	µg/L	24-hr Composite	Annually
Chloroform	µg/L	24-hr Composite	Annually
DDT ¹	µg/L	24-hr Composite	Annually
1,4-Dichlorobenzene	µg/L	24-hr Composite	Annually
3,3'-Dichlorobenzidine	µg/L	24-hr Composite	Annually
1,2-Dichloroethane	µg/L	24-hr Composite	Annually
1,1,-Dichloroethylene	µg/L	24-hr Composite	Annually
Dichlorobromomethane	µg/L	24-hr Composite	Annually
Dichloromethane	µg/L	24-hr Composite	Annually
1,3-Dichloropropene	µg/L	24-hr Composite	Annually
Dieldrin	µg/L	24-hr Composite	Annually
2,4-Dinitrotoluene	µg/L	24-hr Composite	Annually
1,2-Diphenylhydrazine	µg/L	24-hr Composite	Annually

TABLE IV-4: The 2005 Ocean Plan Table B Pollutants – Protection of Human Health – Carcinogens

(For applicable effluent limitations, see Table IV-4 of Order No. R3-2006-0084)

Parameter	Units	Sample Type	Min. Analysis Frequency
Halomethanes ¹	µg/L	24-hr Composite	Annually
Heptachlor	µg/L	24-hr Composite	Annually
Heptachlor Epoxide	µg/L	24-hr Composite	Annually
Hexachlorobenzene	µg/L	24-hr Composite	Annually
Hexachlorobutadiene	µg/L	24-hr Composite	Annually
Hexachloroethane	µg/L	24-hr Composite	Annually
Isophorone	µg/L	24-hr Composite	Annually
N-Nitrosodimethylamine	µg/L	24-hr Composite	Annually
N-nitrosodi-N-propylamine	µg/L	24-hr Composite	Annually
N-Nitrosodiphenylamine	µg/L	24-hr Composite	Annually
Polynuclear Aromatic Hydrocarbons (PAHs) ¹	µg/L	24-hr Composite	Annually
Polychlorinated Biphenyls (PCBs) ¹	µg/L	24-hr Composite	Annually
TCDD Equivalents ¹	µg/L	24-hr Composite	Annually
1,1,2,2,-Tetrachloroethane	µg/L	24-hr Composite	Annually
Tetrachloroethylene	µg/L	24-hr Composite	Annually
Toxaphene	µg/L	24-hr Composite	Annually
Trichloroethylene	µg/L	24-hr Composite	Annually
1,1,2-Trichloroethane	µg/L	24-hr Composite	Annually
2,4,6-Trichlorophenol	µg/L	24-hr Composite	Annually
Vinyl chloride	µg/L	24-hr Composite	Annually

¹ Refer to Appendix I of the 2005 Ocean Plan, *Definition of Terms*. Report: 1) the sum of the components, and; 2) the individual component concentrations.

TABLE IV-5: Remaining Priority Toxic Pollutants

From 40 CFR 131.36 (7-1-03 Edition), and EPA Application Form 3510-2A (Rev. 1-99)

Parameter	Units	Sample Type	Min. Analysis Frequency
Acenaphthene	µg/L	24-hr Composite	Annually
1,2,4,-Trichlorobenzene	µg/L	24-hr Composite	Annually
2-Chloronapthalene	µg/L	24-hr Composite	Annually
2,6-Dinitrotoluene	µg/L	24-hr Composite	Annually
4-Chlorophenyl Ether	Phenyl µg/L	24-hr Composite	Annually
4-Bromophenyl Ether	Phenyl µg/L	24-hr Composite	Annually
Naphthalene	µg/L	24-hr Composite	Annually
Butylbenzyl Phthalate	µg/L	24-hr Composite	Annually

TABLE IV-5: Remaining Priority Toxic Pollutants

From 40 CFR 131.36 (7-1-03 Edition), and EPA Application Form 3510-2A (Rev. 1-99)

Parameter	Units	Sample Type	Min. Analysis Frequency
Di-N-Octyl Phthalate	µg/L	24-hr Composite	Annually
Benzo(a)Anthracene	µg/L	24-hr Composite	Annually
Benzo(ghi)Perylene	µg/L	24-hr Composite	Annually
P-Chloro-M-Cresol	µg/L	24-hr Composite	Annually
2-Chlorophenol	µg/L	24-hr Composite	Annually
2,4-Dichlorophenol	µg/L	24-hr Composite	Annually
2,4-Dimethylphenol	µg/L	24-hr Composite	Annually
4,6-Dinitro-O-Cresol	µg/L	24-hr Composite	Annually
2-Nitrophenol	µg/L	24-hr Composite	Annually
4-Nitrophenol	µg/L	24-hr Composite	Annually
Pentachlorophenol	µg/L	24-hr Composite	Annually
Phenol	µg/L	24-hr Composite	Annually
1,1-Dichloroethane	µg/L	24-hr Composite	Annually
Chloroethane	µg/L	24-hr Composite	Annually
Endrin Aldehyde	µg/L	24-hr Composite	Annually
Trans-1,2-Dichloroethylene	µg/L	24-hr Composite	Annually
1,2-Dichloropropane	µg/L	24-hr Composite	Annually
1,3-Dichloropropylene	µg/L	24-hr Composite	Annually
Methylene Chloride	µg/L	24-hr Composite	Annually
2-Chloroethyl Vinyl Ether	µg/L	24-hr Composite	Annually

V. WHOLE EFFLUENT TOXICITY TESTING REQUIREMENTS

A. Acute Toxicity Testing

Compliance with acute toxicity objective (TUa) shall be determined using a U.S. EPA approved protocol as provided in 40 CFR PART 136 (U.S. EPA's *Methods for Measuring the Acute Toxicity of Effluents and Receiving Waters to Freshwater and Marine Organisms*, EPA-821-R-02-012, or subsequent editions). Acute toxicity monitoring shall be conducted using marine test species instead of freshwater species when measuring compliance (2005 Ocean Plan, Appendix III, *Standard Monitoring Procedures*).

Acute Toxicity (TUa) = 100/96-hr LC 50. LC 50 (percent waste giving 50% survival of test organisms) shall be determined by 96-hour static renewal tests. The Discharger shall use one of the approved marine test species identified in EPA-821-R-02-012, preferably using Silversides (*Menidia beryllina*); however, other approved

marine test species in EPA-821-R-02-012 may be used with sufficient justification by the Discharger and approval by the Executive Officer.

Reference toxicant tests shall be conducted concurrently with the effluent sample tests. Both tests must satisfy the test acceptability criteria specified in the reference cited above. If the test acceptability criteria are not achieved or if toxicity is detected, the sample shall be retaken and retested within 5 days of the failed sampling event. The retest results shall be reported in accordance with the chapter on report preparation and in the reference cited above, and the results shall be attached to the next monitoring report.

When it is not possible to measure the 96-hour LC 50 due to greater than 50 percent survival of the test species in 100 percent waste, the toxicity concentration shall be calculated by the expression:

$$TUa = [\log(100 - S)]/1.7$$

where S = percentage survival in 100% waste. If S > 99, TUa shall be reported as zero.

B. Chronic Toxicity Testing

Chronic Toxicity (TUc) = 100/NOEL. The No Observed Effect Level (NOEL) is expressed as the maximum percent effluent or receiving water that causes no observable effect on a test organism, as determined by the result of a critical life stage toxicity test to measure TUc. In accordance with the 2005 Ocean Plan, Appendix III, *Standard Monitoring Procedures*, the Discharger shall use the critical life stage toxicity tests specified in the table below to measure TUc. Other species or protocols will be added to the list after State Water Resources Control Board review and approval. A minimum of three test species with approved test protocols shall be used to measure compliance with the toxicity objective. If possible, the test species shall include a fish, an invertebrate, and an aquatic plant. After a screening period of no fewer than three tests, monitoring can be reduced to the most sensitive species. Dilution and control water should be obtained from an unaffected area of the receiving waters. The sensitivity of the test organisms to a reference toxicant shall be determined concurrently with each bioassay test and reported with the test results.

Table V-1 – Approved Tests – Chronic Toxicity TUc
(Table III-1 from Appendix III of the 2005 Ocean Plan)

<u>Species</u>	<u>Effect</u>	<u>Tier</u>	<u>Reference</u>
giant kelp, <i>Macrocystis pyrifera</i>	percent germination; germ tube length	1	1,3
red abalone, <i>Haliotis</i>	Abnormal shell	1	1,3

**Table V-1 – Approved Tests – Chronic Toxicity TUC
 (Table III-1 from Appendix III of the 2005 Ocean Plan)**

<u>Species</u>	<u>Effect</u>	<u>Tier</u>	<u>Reference</u>
<i>rufescens</i>	development		
oyster, <i>Crassostrea gigas</i> ; mussels, <i>Mytilus spp.</i>	Abnormal shell development; percent survival	1	1,3
urchin, <i>Strongylocentrotus purpuratus</i> ; sand dollar, <i>Dendraster excentricus</i>	Percent normal development	1	1,3
urchin, <i>Strongylocentrotus purpuratus</i> ; sand dollar, <i>Dendraster excentricus</i>	Percent fertilization	1	1,3
shrimp, <i>Holmesimysis costata</i>	Percent survival; growth	1	1,3
shrimp, <i>Mysidopsis bahia</i>	Percent survival; growth; fecundity	2	2,4
topsmelt, <i>Atherinops affinis</i>	Larval growth rate; percent survival	1	1,3
Silversides, <i>Menidia beryllina</i>	Larval growth rate; percent survival	2	2,4

Approved Tests – Chronic Toxicity TUC Table Notes:

The first tier test methods are the preferred toxicity tests for compliance monitoring. A Regional Board can approve the use of a second tier test method for waste discharges if first tier organisms are not available.

Protocol References from the Approved Tests – Chronic Toxicity TUC Table

1. Chapman, G.A., D.L. Denton, and J.M. Lazorchak. 1995. Short-term methods for estimating the chronic toxicity of effluents and receiving waters to west coast marine and estuarine organisms. U.S. EPA Report No. EPA/600/R-95/136.
2. Klemm, D.J., G.E. Morrison, T.J. Norberg-King, W.J. Peltier, and M.A. Heber. 1994. Short-term methods for estimating the chronic toxicity of effluents and receiving water to marine and estuarine organisms. U.S. EPA Report No. EPA-600-4-91-003.

3. SWRCB 1996. Procedures Manual for Conducting Toxicity Tests Developed by the Marine Bioassay Project. 96-1WQ.
4. Weber, C.I., W.B. Horning, I.I., D.J. Klemm, T.W. Nieheisel, P.A. Lewis, E.L. Robinson, J. Menkedick and F. Kessler (eds). 1988. Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to Marine and Estuarine Organisms. EPA/600/4-87/028. National Information Service, Springfield, VA.

C. Toxicity Identification / Reduction Evaluations.

If toxicity monitoring shows a violation of toxicity limitations of this Order or a toxicity objective in Table B of the 2005 Ocean Plan, the Discharger shall increase the frequency of toxicity testing to once per week and submit the results within 15 days of the conclusion of each test to the Central Coast Water Board Executive Officer. The Executive Officer will determine whether to initiate enforcement action and/or whether to require the Discharger to conduct a Toxicity Reduction Evaluation (TRE). The TRE shall include all reasonable steps to identify the source(s) of toxicity. Once sources of toxicity are identified, the Discharger shall take all reasonable steps necessary to reduce toxicity to the required level.

The basis of the TRE shall be the following (or later revised editions):

- EPA's *Methods for Aquatic Toxicity Identification Evaluations: Phase I, Toxicity Characterization Procedures, 2nd Edition*, 1991b (EPA 600-6-91-003)
- EPA's *Methods for Aquatic Toxicity Identification Evaluations: Phase II, Toxicity Identification Procedures for Samples Exhibiting Acute and Chronic Toxicity*, 1993a (EPA 600-R-92-080)
- EPA's *Methods for Aquatic Toxicity Identification Evaluations: Phase III, Toxicity Confirmation Procedures for Samples Exhibiting Acute and Chronic Toxicity*, 1993b (EPA 600-R-92-081)
- EPA's *Toxicity Reduction Evaluation Guidance for Municipal Wastewater Treatment Plants* (EPA 833-B-99-002), August 1999

The Discharger shall initiate a TRE according to the following schedule:

TASK	TIME SCHEDULE
a. Take all reasonable measures necessary to immediately reduce toxicity, where source is known.	Within 24 hours of identification of non-compliance
b. Submit to the Executive Officer a TRE study plan describing the toxicity reduction procedures to be employed.	Within 60 days of identification of non-compliance

TASK	TIME SCHEDULE
c. Initiate the TRE (includes Toxicity Identification Evaluation or TIE according to the above EPA methods)	To be determined by the Executive Officer
d. Conduct the TRE following the procedures in the plan.	To be determined by the Executive Officer
e. Submit the results of the TRE, including summary of findings, required corrective action, and all results and data.	Within 60 days of completion of the TRE
f. Implement corrective actions to meet permit limits and conditions.	Within 7 days of notification by the Executive Officer
g. Return to regular monitoring after implementing corrective measures and approval by the EO.	One-year period or as specified in the plan

VI. RECEIVING WATER MONITORING REQUIREMENTS

A. Monitoring Location – Shore Sampling Stations

1. The Discharger shall monitor the ocean at Shore Sampling Stations R-A, R-B, and R-C, as identified in MRP Section II above, according to the following:

If three consecutive effluent total coliform bacteria tests exceed 2,300 per 100 mL, the Discharger shall promptly begin collecting shore station samples for total and fecal coliform analysis. The Discharger shall collect no fewer than five samples from each station over any 30-day period, with the sampling frequency evenly spaced throughout the period. Sampling will continue until effluent bacteria concentrations return to compliance. The sampling results shall be submitted to the Central Coast Water Board within 14 days of each sampling event.

The Discharger shall to the best of its ability conduct the above receiving water sampling during dry weather or at least three days after a significant rain event. The Executive Officer may grant a discretionary exception to this sampling requirement during extreme rain events where receiving water sampling is unlikely to provide data representative of the Discharger's discharge. The Discharger shall conduct effluent total, fecal coliform, and Enterococcus sampling daily during such events or the subsequent period of its influence on receiving waters. Once shore station sampling can resume, effluent sampling may return to its regular schedule according to the Order.

Monitoring shall also include observations of wind (direction and speed), weather (e.g., cloudy, sunny, rainy), whether rainfall occurred over the preceding seven

days, sea conditions, longshore currents (e.g., direction), and tidal conditions (e.g., high, slack, or low tide). Observations of water discoloration, floating oil and grease, turbidity, odor, materials of sewage origin in the water or on the beach, and temperature (°C) shall be recorded and reported.

For all bacterial analyses, sample dilutions shall be performed so the range of values extends from 2 to 16,000 / 100 mL.¹ The detection methods used for each analysis shall be reported with the results of the analysis.

Detection methods used for total and fecal coliform shall be those presented in the most recent edition of *Standard Methods for the Examination of Water and Wastewater*, or any improved method determined appropriate by the Central Coast Water Board (and approved by EPA).

B. Monitoring Location – Ocean Sampling Stations (Bottom Sediment)

1. In 2008, the Discharger shall monitor ocean sediments at ocean sampling stations R-1, R-2, R-3, and R-4, as identified in MRP Section II above, as follows:

TABLE VI-1: Bottom Sediment Sampling ¹		
Parameter	Units	Ocean Sampling Stations
Sulfides (at pH 7)	mg/kg	R-1, R-2, R-3, and R-4
Particle size distribution (incl. % retained on #200 sieve)	----	R-1, R-2, R-3, and R-4
Organic Matter (volatile solids or TOC)	mg/kg	R-1, R-2, R-3, and R-4
Total Coliform Organisms	# / 100 g	R-1, R-2, R-3, and R-4
Fecal Coliform Organisms	# / 100 g	R-1, R-2, R-3, and R-4
BOD	mg/kg	R-1, R-2, R-3, and R-4
Total Kjeldahl Nitrogen	mg/kg	R-1, R-2, R-3, and R-4
Arsenic	mg/kg	R-1, R-2, R-3, and R-4
Cadmium	mg/kg	R-1, R-2, R-3, and R-4
Total Chromium	mg/kg	R-1, R-2, R-3, and R-4
Hexavalent Chromium	mg/kg	R-1, R-2, R-3, and R-4
Copper	mg/kg	R-1, R-2, R-3, and R-4
Lead	mg/kg	R-1, R-2, R-3, and R-4
Mercury	mg/kg	R-1, R-2, R-3, and R-4
Nickel	mg/kg	R-1, R-2, R-3, and R-4
Iron	mg/kg	R-1, R-2, R-3, and R-4
Silver	mg/kg	R-1, R-2, R-3, and R-4
Zinc	mg/kg	R-1, R-2, R-3, and R-4

¹ – At a minimum, bottom sediment sampling and analysis shall occur in 2008.

¹ The 2005 Ocean Plan Appendix III Standard Monitoring Procedures. The sample dilutions are associated with Chapter II.B. Bacterial Standards.

The following procedure shall be carried out for sampling and analyzing ocean bottom sediments:

- a. Duplicate samples shall be taken at each station and shall be analyzed and reported separately. Samples may be taken either by divers using non-contaminating samplers or by a surface-operated grab sampler which will obtain a relatively undisturbed sample. If the surface-operated grab sampler is used, a sub-sample (uncontaminated by the sampler) should be taken from the grab. In either case, the top five centimeters of material shall be used for analyses. Enough cores shall be taken at each station to provide sufficient sediment material for the required duplicate analyses.
- b. The contractor shall locate and mark the outfall terminus before beginning station locations and sampling. Reliance on charts or as-built plans will not suffice.
- c. Control stations have been selected in areas that should provide similar sediments at similar depths to the outfall stations. If the contractor encounters rocks or gravel at a station, he shall reposition the station, as necessary, to obtain a usable sediment sample. Station location changes shall be described in the final report.
- d. Samples shall be placed in airtight polyethylene containers. Care shall be taken to ensure the containers are completely filled by the samples and air bubbles are not trapped in the containers. A separate sub-sample for sulfide analysis shall be placed in small (100-200 mL), wide-mouth bottle and preserved with zinc acetate. The preservative must be carefully mixed with the sediment sample. The samples shall be stored immediately at 2 to 4 °C and not frozen or dried. Total sample storage time shall not exceed two weeks. For bacterial analysis, storage time should not exceed 6 to 8 hours. Bacterial analysis should be performed prior to preservation.
- e. When processing for analyses, macrofauna and remnants should be removed, taking care to avoid contamination.
- f. Chemical extractions are to be run for 24 hours with dilute HCl (0.5N) using guidelines recommended by the State Water Resources Control Board. Subsequent analyses shall be conducted in accordance with the current edition of *Guidelines Establishing Test Procedures for Analysis of Pollutants*, promulgated by the United States Environmental Protection Agency. Any variations must be reported with the test results.
- g. Results shall be expressed on a dry-weight basis.

- h. Results shall be compared between outfall and reference areas using standard statistical techniques. Data shall be compared in its raw form, and chemical results are to be normalized to the clay fraction, which is the percent by weight passing the No. 200 sieve, as follows:

Normalized Result = [raw result ÷ the % of clay as a decimal]

C. Monitoring Location – Ocean Sampling Stations (Benthic Biota)

1. At the same time as the ocean bottom sediment sampling in 2008 (per Section B above), the Discharger shall monitor benthic biota at ocean sampling stations R-1, R-2, R-3 and R-4, as identified in MRP Section II above. At least four samples will be taken at each of the four ocean sampling stations. The samples shall be taken by mechanical grab or qualified diver biologists utilizing three-pound coffee cans (or similar) with both ends cut out. The cans are to be pushed into the sediment full length, the top capped, surrounding sediment dug away, and the bottom capped. During collection, water temperature shall be recorded at three-meter depth intervals, and at the surface and bottom.
2. The sample shall be processed by washing it through a one-millimeter (1 mm) sieve.
3. The sample should then be preserved in 75 percent alcohol or other applicable preservative. The material may be stained with Rose Bengal.
4. Coelenterates, polychaetes, macrocrustaceans, mollusks, ectoprocts, echinoderms, and algae shall be identified to species or at least to genus. All others shall be identified to the lowest taxon possible. All specimens shall be counted to provide information on abundance. Species abundance lists shall be presented with data reduced to standard area (sq. meter) and standard volume (liter).
5. For data from each sampling period, the following basic statistical analyses shall, as a minimum, be performed and reported:
 - a. The mean, median, range, standard deviation, and 95 percent confidence limits of the species abundance data reduced to standard area and volume.
 - b. Information theory species diversity index value:

$$H = -\sum_{i=1}^n (n_i / N) \log (n_i / N)$$

for each replicate sample at each station and for the station as a whole (i.e., pooling data from all replicates for the station during one survey). In addition,

the station mean, range, and standard deviation shall be calculated from the replicate index values.

- c. The infaunal index, dominance index, and distributional statistics on "dominant" species as developed by the Southern California Coastal Water Research Project (SCCWRP) shall be calculated for each station. SCCWRP should be contacted for the latest species list and formula required.
6. The names and qualifications of persons identifying this material shall be indicated in all data reports. Furthermore, type collections shall be established for the various groups. All material shall be saved and stored for future reference. Material may be discharged after four years.
7. The final report on community analyses shall include a complete discussion of survey results and possible influence of the outfall on the marine communities in the study area. The discussion should be based on statistical evidence developed in Item 5, above, and on similarity analysis and cluster analysis of the data. It should include an analysis of natural community variation including the effects of different oceanic seasons and water temperatures, which could influence the validity of study results.

VII. OTHER MONITORING REQUIREMENTS

A. Ocean Outfall Inspection

At least once per year (in the same month annually or between June and September as appropriate) the Discharger shall visually inspect the entire outfall and diffuser structure (e.g., divers, dye study) to note its structural integrity and any cracks, breaks, leaks, plugged ports, or other actual or potential malfunctions. The outfall inspection will also check for possible external blockage of ports by sand and/or silt deposition. The Discharger shall report all findings and actions, including any observed cracks, breaks, or malfunctions to the Executive Officer in the applicable annual report. The month for inspection specified by the Discharger shall be a month of good underwater visibility.

B. Biosolids Monitoring, Reporting, and Notification

1. A representative sample of residual biosolids as obtained from the last point in the handling process shall be analyzed for the constituents and at the frequencies discussed below. The biosolids analyzed shall be a composite sample of a minimum of twelve discrete sub-samples (grab samples) taken at equal time intervals over a typical dewatering operational period up to 24 hours, and from the last representative point in the solids handling process before disposal (e.g., from the dewatered biosolids conveyor belt). The sample shall be documented to show it is representative of biosolids from the facility.

Biosolids shall be tested for the metals required in 40 CFR 503.16 (for land application) or Section 503.26 (for surface disposal), using the methods in *Test Methods for Evaluating Solid Waste, Physical/Chemical Methods* (EPA Publication SW-846, all applicable editions and updates), as required in 503.8(b)(4), at the minimum frequencies established in those 40 CFR sections (current frequencies shown below).

Amount ¹ (dry metric tons per 365-day period)	Frequency ²
Greater than zero but less than 290	once per year
Equal to or greater than 290 but less than 1,500	once per quarter (four times per year)
Equal to or greater than 1,500 but less than 15,000	once per 60 days (six times per year)
Greater than 15,000	once per month (twelve times per year)

For Land Application: Either the amount of bulk biosolids applied to the land or the amount prepared for sale or give-away in a bag or other container for application to the land (dry weight basis). If the District's biosolids are directly land applied without further treatment by another preparer, biosolids shall also be tested for organic-N, ammonium-N, and nitrate-N at the frequencies required above.

For Surface Disposal: Amount of biosolids placed on an active sewage sludge unit (dry weight basis).

² Test results shall be expressed in mg pollutant per kg biosolids on a 100% dry weight basis.

According to data presented in an e-mail dated August 28, 2006 from the Discharger, 532 dry tons of biosolids were generated in 2006. The Discharger will therefore conduct biosolids sampling once per year. The Discharger shall maintain this minimum biosolids sampling schedule at least until data collected over a 365-day period establishes a new basis for monitoring frequency pursuant to 40 CFR 503. Biosolids monitoring requirements are summarized in Table 15 below.

For accumulated, previously untested biosolids, the Discharger shall develop a representative sampling plan, including number and location of sampling points, and collect representative samples.

All constituents shall be analyzed for total concentrations for comparison with Total Threshold Limit Concentration (TTLIC) criteria. The Waste Extraction Test shall be performed on any constituent when the total concentration of the waste exceeds ten times the Soluble Threshold Limit Concentration (STLC) limit for that substance. [California Code of Regulations, Title 22, Division 4.5, Chapter 11, Article 3]

TABLE VII-1: Minimum Biosolids Monitoring

Parameter	Units	Sample Type	Min. Analysis Frequency
Quantity	Tons (and yd ³)	Measured	Continual
Disposal Location	--	--	see below ²
Moisture	%	Grab	Annually
pH	pH Units	Grab	Annually
Boron	mg/kg (dry wt.)*	Grab	Annually
Cadmium	mg/kg (dry wt.)*	Grab	Annually
Copper	mg/kg (dry wt.)*	Grab	Annually
Chromium (Total)	mg/kg (dry wt.)*	Grab	Annually
Lead	mg/kg (dry wt.)*	Grab	Annually
Mercury	mg/kg (dry wt.)*	Grab	Annually
Nickel	mg/kg (dry wt.)*	Grab	Annually
Silver	mg/kg (dry wt.)*	Grab	Annually
Zinc	mg/kg (dry wt.)*	Grab	Annually
Total Kjeldahl Nitrogen	mg/kg (dry wt.)*	Grab	Annually
Ammonia (as N)	mg/kg (dry wt.)*	Grab	Annually
Nitrate (as N)	mg/kg (dry wt.)*	Grab	Annually
Total Phosphorus	mg/kg (dry wt.)*	Grab	Annually
Paint Filter Test (As per SW-846, Method 9095 - Required only if sludge is disposed in a landfill)	mg/kg (dry wt.)*	Grab	Annually
Grease & Oil	mg/kg (dry wt.)*	Grab	Annually
"Priority Pollutants" ¹	mg/kg (dry wt.)*	Grab	May 2011

Total sample (including all solids and any liquid portion) to be analyzed and results reported as mg/kg based on the dry weight of the sample.

¹ Sampling for priority pollutants, listed in MRP Tables IV-2, IV-3, IV-4, and IV-5, shall be coordinated with effluent sampling

² The annual report shall identify the destination for which biosolids are transported once it leaves the facility.

2. Prior to land application, the Discharger shall demonstrate that the biosolids meet Class A or Class B pathogen reduction levels by one of the methods listed in 40 CFR 503.32 (unless transferred to another preparer who demonstrates pathogen reduction).

Prior to disposal in a surface disposal site, the Discharger shall demonstrate that the biosolids meet Class B levels or shall ensure that the site is covered at the end of each operating day.

If pathogen reduction is demonstrated using a "Process to Significantly/Further Reduce Pathogens" (PFRP), the Discharger shall maintain daily records of the operating parameters used to achieve this reduction.

The following applies when biosolids from the Discharger are directly land applied as Class B, without further treatment by a second preparer: If the Discharger demonstrates pathogen reduction by direct testing for fecal coliforms and/or pathogens, samples must be drawn at the frequency in the Amount/Frequency table above in No. 1. If the Discharger demonstrates Class B pathogen reduction by testing for fecal coliform, at least seven grab samples must be drawn and analyzed during each monitoring event, and a geometric mean calculated from these seven samples. If the Discharger demonstrates Class A pathogen reduction by testing for fecal coliform and/or salmonella, plus one of the PFRP processes or testing for enteric viruses and helminth ova, at least four samples of fecal coliform or salmonella must be drawn during each monitoring event. All four samples must meet the limits specified in 503.32(a).

3. For biosolids that are land applied or placed in a surface disposal site, the Discharger shall track and keep records of the operational parameters used to achieve Vector Attraction Reduction requirements in 40 CFR 503.33(b).
4. Class 1 facilities (facilities with pretreatment programs or others designated as Class 1 by the Regional Administrator) and Federal facilities with greater than five million gallons per day (MGD) influent flow shall sample biosolids for pollutants listed under Section 307(a) of the Clean Water Act (as required in the pretreatment section of the permit for POTWs with pretreatment programs). Class 1 facilities and Federal facilities greater than five MGD shall test dioxins/dibenzofurans using a detection limit of less than one pg/g at the time of their next priority pollutant scan if they have not done so within the past five years, and once per five years thereafter.
5. The biosolids shall be tested annually, or more frequently if necessary, to determine hazardousness. All constituents regulated under CA Title 22, Division 4.5, Chapter 11, Article 3 shall be analyzed for comparison with Total Threshold Limit Concentration (TTLC) criteria. The Waste Extraction Test shall be performed on any constituent when the total concentration of the waste exceeds ten times the Soluble Threshold Limit Concentration (STLC) limit for that substance.
6. If biosolids are placed in a surface disposal site (dedicated land disposal site or monofill), a qualified groundwater scientist shall develop a groundwater

monitoring program for the site, or shall certify that the placement of biosolids on the site will not contaminate an aquifer.

- 7. Biosolids placed in a municipal landfill shall be tested by the Paint Filter Liquids Test (EPA Method 9095) at the frequency in the Volume/Frequency table above in No. 1., or more often if necessary to demonstrate that there are no free liquids.

Biosolids Notification

- 8. The Discharger, either directly or through contractual arrangements with their biosolids management contractors, shall comply with the following notification requirements:

- a. Notification of non-compliance: The Discharger shall notify EPA Region 9, the Central Coast Water Board, and the Regional Board located in the region where the biosolids are used or disposed, of any non-compliance within 24 hours if the non-compliance may seriously endanger health or the environment. For other instances of non-compliance, the Discharger shall notify EPA Region 9 and the affected Regional Boards of the non-compliance in writing within five working days of becoming aware of the non-compliance. The Discharger shall require their biosolids management contractors to notify EPA Region 9 and the affected Regional Boards of any non-compliance within the same time frames. See Attachment I of this Order for California Regional Board contact information.
- b. If biosolids are shipped to another State or to Indian Lands, the Discharger must send notice at least 60 days prior to the shipment to the permitting authorities in the receiving State or Indian Land (the EPA Regional Office for that area and the State/Indian authorities).
- c. For land application (These notification requirements are intended for cases where Class B biosolids from the District are directly applied without further treatment): Prior to reuse of any biosolids from the Discharger's facility to a new or previously unreported site, the Discharger shall notify EPA, the Central Coast Water Board, and any other affected Regional Board. The notification shall include a description and topographic map of the proposed site(s), names and addresses of the applier, and site owner and a listing of any state or local permits which must be obtained. The notice shall include a description of the crops or vegetation to be grown, proposed loading rates and determination of agronomic rates.

If any biosolids within a given monitoring period do not meet 40 CFR 503.13 metals concentration limits, the Discharger (or its contractor) must pre-notify EPA, and determine the cumulative metals loading at that site to date, as required in 40 CFR 503.12.

The Discharger shall notify the applier of all the applier's requirements under 40 CFR 503, including the requirement that the applier certify that the management practices, site restrictions, and any applicable vector attraction reduction requirements have been met. The Discharger shall require the applier to certify at the end of 38 months following application of Class B biosolids that the harvesting restrictions in effect for up to 38 months have been met.

- d. For surface disposal: Prior to disposal to a new or previously unreported site, the Discharger shall notify EPA and the Central Coast Water Board. The notice shall include description and topographic map of the proposed site, depth to groundwater, whether the site is lined or unlined, site operator, site owner, and any state or local permits. The notice shall describe procedures for ensuring public access and grazing restrictions for three years following site closure. The notice shall include a groundwater monitoring plan or description of why groundwater monitoring is not required.

Biosolids Reporting

9. The Discharger shall submit an annual biosolids report to the EPA Region 9 Biosolids Coordinator and Central Coast Water Board **by February 19th of each year** (per U.S. EPA guidance and 40 CFR 503) for the period covering the previous calendar year. The report shall include:
 - a. The amount of biosolids generated during the reporting period, in dry metric tons, and its percent solids, and the amount accumulated from previous years;
 - b. Results of all pollutant and pathogen monitoring required in this Order and Monitoring and Reporting Program, whether directly stated or included by reference. Results must be reported on a 100% dry weight basis for comparison with 40 CFR 503 limits;
 - c. Descriptions of pathogen reduction methods and vector attraction reduction methods, including supporting time and temperature data, and certifications, as required in 40 CFR 503.17 and 503.27;
 - d. Names, mailing addresses, and street addresses of persons who received biosolids for storage, further treatment, disposal in a municipal waste landfill, or for other use or disposal methods not covered above, and amounts delivered to each.
 - e. For land application sites (These reporting requirements are for cases where Class B biosolids from the District are directly applied without further treatment): The following information must be submitted by the Discharger,

unless the Discharger requires its biosolids management contractors to report this information directly to the EPA Region 9 Biosolids Coordinator:

- i. Locations of land application sites (with field names and numbers) used that calendar year, size of each field applied to, applier, and site owner;
 - ii. Amounts applied to each field (in wet tons and dry metric tons), nitrogen applied, calculated plant available nitrogen;
 - iii. The application rate in lbs/acre/year (specify wet or dry);
 - iv. The Regional Board Waste Discharge Requirements Order numbers that regulate the site(s) (including those in other regions which may receive biosolids from your facility);
 - v. Crop planted, dates of planting and harvesting;
 - vi. For any biosolids exceeding 40 CFR 503.13 Table 3 metals concentrations: the locations of sites where applied and cumulative metals loading at that site to date;
 - vii. Subsequent uses of the land;
 - viii. Certifications of management practices in Section 503.14; and
 - ix. Certifications of site restrictions in Section 503(b)(5);
- f. For surface disposal sites:
- i. The names and locations of the facilities receiving biosolids, site operator, site owner, size of parcel on which disposed;
 - ii. Results of any required groundwater monitoring;
 - iii. The Regional Board Waste Discharge Requirements Order numbers that regulate the landfills used (including those in other regions which may receive biosolids from your facility);
 - iv. The present classifications of the landfills used;
 - v. Certifications of management practices in Section 503.24; and
 - vi. For closed sites, date of site closure and certifications of management practices for the three years following site closure.

- g. For all biosolids used or disposed at the Discharger's facilities, the site and management practice information and certification required in Sections 503.17 and 503.27; and
- h. For all biosolids temporarily stored, the information required in Section 503.20 required to demonstrate temporary storage;
- i. A schematic diagram showing biosolids handling facilities (e.g., digesters, lagoons, drying beds, and incinerators) and a solids flow diagram;
- j. A narrative description of biosolids dewatering and other treatment processes, including process parameters. For example, if biosolids are digested, report average temperature and retention time of the digesters. If drying beds are used, report depth of application and drying time. If composting is used, report the temperature achieved and duration.
- k. Reports shall be submitted to:

Regional Biosolids Coordinator
US EPA (WTR-7)
75 Hawthorne St.
San Francisco, CA 94105-3901

Executive Officer
Central Coast Regional Water Quality Control Board
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401-7906

VIII. MINIMUM LEVELS

The Minimum Levels identified in the 2005 Ocean Plan represent the lowest concentration of a pollutant that can be quantitatively measured in a sample given the current state of performance in analytical chemistry methods in California. These Minimum Levels were derived from data provided by state-certified analytical laboratories in 1997 and 1998 for pollutants regulated by the 2005 Ocean Plan, and shall be used until new values are adopted by the State Water Resources Control Board.

The 2005 California Ocean Plan (2005 Ocean Plan) establishes Minimum Levels (and their associated analytical methods) for discharger reporting. Minimum Levels represent the lowest quantifiable concentration in a sample based on the proper application of method-specific analytical procedures and the absence of matrix interferences. Minimum Levels also represent the lowest standard concentration in the calibration curve for a specific analytical technique after the application of appropriate method-specific factors*.

- * Common analytical practices may require different treatment of the sample relative to the calibration standard. Some examples are given below:

<u>Substance or Grouping</u>	<u>Method-Specific Treatment</u>	<u>Most Common Factor</u>
Volatile Organics	No differential treatment	1
Semi-Volatile Organics	Samples concentrated by extraction	1000
Metals	Samples diluted or concentrated	½, 2, and 4
Pesticides	Samples concentrated by extraction	100

Other factors may be applied to the Minimum Level depending on the specific sample preparation steps employed. For example, the treatment typically applied when there are matrix effects is to dilute the sample or sample aliquot by a factor of ten (10). In such cases, this additional factor must be applied during the computation of the reporting limit. Application of such factors will alter the reported Minimum Level.

In accordance with the 2005 Ocean Plan, all Minimum Levels that are below the effluent limitations of Order No. R3-2006-0084 are included herein (see Tables VIII-1 through VIII-4 of this MRP). In instances where effluent limitations were lower than all of the 2005 Ocean Plan Minimum Levels, the lowest Minimum Level was included. In the latter case, the Minimum Levels above the lowest level were omitted to prevent their mistaken application (indicated by "N/A" in the shaded areas within Tables VIII-1 through VIII-4 of this MRP). The Minimum Levels prescribed herein were transcribed from Appendix II of the 2005 Ocean Plan. The reported Minimum Level is the Minimum Level (and its associated analytical method) chosen by the Discharger for reporting and compliance determination from the Minimum Levels included below.

Dischargers are to instruct their laboratories to establish calibration standards so that the Minimum Level (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve. The Discharger's laboratory may employ a calibration standard lower than the Minimum Level in accordance with the 2005 Ocean Plan, Section C.4.b, *Deviations from Minimum Levels in Appendix II* (included below).

Deviations from Minimum Levels in Appendix II of the 2005 Ocean Plan

The Central Coast Water Board, in consultation with the State Water Board's Quality Assurance Program, must establish a Minimum Level to be included in the permit in any of the following situations:

1. A pollutant is not listed in Appendix II of the 2005 Ocean Plan.
2. The Discharger agrees to use a test method that is more sensitive than those described in 40 CFR 136 (revised May 14, 1999).
3. The Discharger agrees to use a Minimum Level lower than those listed in Appendix II of the 2005 Ocean Plan.
4. The Discharger demonstrates that their calibration standard matrix is sufficiently different from that used to establish the Minimum Level in Appendix II of the 2005 Ocean Plan and proposes an appropriate Minimum Level for their matrix.
5. A Discharger uses an analytical method having a quantification practice that is not consistent with the definition of Minimum Level (e.g., U.S. EPA methods 1613, 1624, 1625).

Tables VIII-1 through VIII-4 of this MRP list the applicable Minimum Levels in four major chemical groupings: volatile chemicals, semi-volatile chemicals, inorganics, pesticides & PCB's. "No Data" is indicated by "--".

TABLE VIII-1: Minimum Levels – Volatile Chemicals
(Table II-1 from Appendix II of the 2005 Ocean Plan)

Volatile Chemicals	CAS Number	Minimum Level (µg/L)	
		GC Method ^{a, *}	GCMS Method ^{b, *}
Acrolein	107028	2	5
Acrylonitrile	107131	2	2
Benzene	71432	0.5	2
Bromoform	75252	0.5	2
Carbon Tetrachloride	56235	0.5	2
Chlorobenzene	108907	0.5	2
Chlorodibromomethane	124481	0.5	2
Chloroform	67663	0.5	2
1,2-Dichlorobenzene (volatile)	95501	0.5	2
1,3-Dichlorobenzene (volatile)	541731	0.5	2
1,4-Dichlorobenzene (volatile)	106467	0.5	2
Dichlorobromomethane	75274	0.5	2

1,1-Dichloroethane	75343	0.5	1
1,2-Dichloroethane	107062	0.5	2
1,1-Dichloroethylene	75354	0.5	2
Dichloromethane	75092	0.5	2
1,3-Dichloropropene (volatile)	542756	0.5	2
Ethyl benzene	100414	0.5	2
Methyl Bromide	74839	1	2
Methyl Chloride	74873	0.5	2
1,1,2,2-Tetrachloroethane	79345	0.5	2
Tetrachloroethylene	127184	0.5	2
Toluene	108883	0.5	2
1,1,1-Trichloroethane	71556	0.5	2
1,1,2-Trichloroethane	79005	0.5	2
Trichloroethylene	79016	0.5	2
Vinyl Chloride	75014	0.5	2

Table VIII-1 Notes:

a) GC Method = Gas Chromatography

b) GCMS Method = Gas Chromatography / Mass Spectrometry

* To determine the lowest standard concentration in an instrument calibration curve for these techniques, use the given ML (see the 2005 Ocean Plan, Chapter III, Section C.5, *Use of Minimum Levels*).

TABLE VIII-2: Minimum Levels – Semi Volatile Chemicals
(Table II-2 from Appendix II of the 2005 Ocean Plan)

Semi-Volatile Chemicals	CAS Number	Minimum Level (µg/L)			
		GC Method a, *	GCMS Method b, *	HPLC Method c, *	COLOR Method d
Acenaphthylene	208968	--	10	0.2	--
Anthracene	120127	--	10	2	--
Benzidine	92875	--	N/A	--	--
Benzo(a)anthracene	56553	--	10	2	--
Benzo(a)pyrene	50328	--	10	2	--
Benzo(b)fluoranthene	205992	--	10	10	--
Benzo(g,h,i)perylene	191242	--	5	0.1	--
Benzo(k)fluoranthene	207089	--	10	2	--
Bis 2-(1-Chloroethoxy) methane	111911	--	5	--	--
Bis(2-Chloroethyl)ether	111444	N/A	1	--	--

TABLE VIII-2: Minimum Levels – Semi Volatile Chemicals
(Table II-2 from Appendix II of the 2005 Ocean Plan)

Semi-Volatile Chemicals	CAS Number	Minimum Level (µg/L)			
		GC Method a, *	GCMS Method b, *	HPLC Method c, *	COLOR Method d
Bis(2-Chloroisopropyl)ether	3963832 9	10	2	--	--
Bis(2-Ethylhexyl) phthalate	117817	10	5	--	--
2-Chlorophenol	95578	2	5	--	--
Chrysene	218019	--	10	5	--
Di-n-butyl phthalate	84742	--	10	--	--
Dibenzo(a,h)anthracene	53703	--	10	0.1	--
1,2-Dichlorobenzene (semivolatile)	95504	2	2	--	--
1,3-Dichlorobenzene (semivolatile)	541731	2	1	--	--
1,4-Dichlorobenzene (semivolatile)	106467	2	1	--	--
3,3-Dichlorobenzidine	91941	--	5	--	--
2,4-Dichlorophenol	120832	1	5	--	--
1,3-Dichloropropene	542756	--	5	--	--
Diethyl phthalate	84662	10	2	--	--
Dimethyl phthalate	131113	10	2	--	--
2,4-Dimethylphenol	105679	1	2	--	--
2,4-Dinitrophenol	51285	5	5	--	--
2,4-Dinitrotoluene	121142	10	5	--	--
1,2-Diphenylhydrazine	122667	--	1	--	--
Fluoranthene	206440	10	1	0.05	--
Fluorene	86737	--	10	0.1	--
Hexachlorobenzene	118741	N/A	N/A	--	--
Hexachlorobutadiene	87683	5	1	--	--
Hexachlorocyclopentadiene	77474	5	5	--	--
Hexachloroethane	67721	5	1	--	--
Indeno(1,2,3-cd)pyrene	193395	--	10	0.05	--
Isophorone	78591	10	1	--	--

TABLE VIII-2: Minimum Levels – Semi Volatile Chemicals
 (Table II-2 from Appendix II of the 2005 Ocean Plan)

Semi-Volatile Chemicals	CAS Number	GC Method a, *	Minimum Level ($\mu\text{g/L}$)		
			GCMS Method b, *	HPLC Method c, *	COLOR Method d
2-methyl-4,6-dinitrophenol	534521	10	5	--	--
3-methyl-4-chlorophenol	59507	5	1	--	--
N-nitrosodi-n-propylamine	621647	10	5	--	--
N-nitrosodimethylamine	62759	10	5	--	--
N-nitrosodiphenylamine	86306	10	1	--	--
Nitrobenzene	98953	10	1	--	--
2-Nitrophenol	88755	--	10	--	--
4-Nitrophenol	100027	5	10	--	--
Pentachlorophenol	87865	1	5	--	--
Phenanthrene	85018	--	5	0.05	--
Phenol	108952	1	1	--	50
Pyrene	129000	--	10	0.05	--
2,4,6-Trichlorophenol	88062	10	10	--	--

Table VIII-2 Notes:

a) GC Method = Gas Chromatography

b) GCMS Method = Gas Chromatography / Mass Spectrometry

c) HPLC Method = High Pressure Liquid Chromatography

d) COLOR Method = Colorimetric

* To determine the lowest standard concentration in an instrument calibration curve for this technique, multiply the given ML by 1000 (see the 2005 Ocean Plan, Chapter III, Section C.5, *Use of Minimum Levels*).

TABLE VIII-3: Minimum Levels – Inorganics
 (Table II-3 from Appendix II of the 2005 Ocean Plan)

Minimum Level (µg/L)												
Inorganic Substances	CAS Number	COLOR Method ^a	DCP Method ^b	FAA Method ^c	GFAA Method ^d	HYDRIDE Method ^e	ICP Method ^f	ICPMS Method ^g	SPGFAA Method ^h	CVAA Method ⁱ		
Antimony	7440360	--	1000	10	5	0.5	50	0.5	5	--		
Arsenic	7440382	20	20	--	2	1	10	2	2	--		
Beryllium	7440417	--	N/A	N/A	0.5	--	2	0.5	1	--		
Cadmium	7440439	--	N/A	10	0.5	--	10	0.2	0.5	--		
Chromium	--	--	1000	50	2	--	10	0.5	1	--		
(total)												
Chromium (VI)	1854029	10	--	5	--	--	--	--	--	--		
	9											
Copper	7440508	--	1000	20	5	--	10	0.5	2	--		
Cyanide	57125	5	--	--	--	--	--	--	--	--		
Lead	7439921	--	N/A	20	5	--	5	0.5	2	--		
Mercury	7439976	--	--	--	--	--	--	0.5	--	0.2		
Nickel	7440020	--	1000	50	5	--	20	1	5	--		
Selenium	7782492	--	1000	--	5	1	10	2	5	--		
Silver	7440224	--	N/A	10	1	--	10	0.2	2	--		
Thallium	7440280	--	N/A	10	2	--	10	1	5	--		
Zinc	7440666	--	1000	20	--	--	20	1	10	--		

Table VIII-3 Notes:

- a) COLOR Method = Colorimetric
- b) DCP Method = Direct Current Plasma
- c) FAA Method = Flame Atomic Absorption
- d) GFAA Method = Graphite Furnace Atomic Absorption
- e) HYDRIDE Method = Gaseous Hydride Atomic Absorption
- f) ICP Method = Inductively Coupled Plasma
- g) ICPMS Method = Inductively Coupled Plasma / Mass Spectrometry
- h) SPGFAA Method = Stabilized Platform Graphite Furnace Atomic Absorption (i.e., US EPA 200.9)
- i) CVAA Method = Cold Vapor Atomic Absorption
- * To determine the lowest standard concentration in an instrument calibration curve for these techniques, use the given ML (see the 2005 Ocean Plan, Chapter III, Section C.5, Use of Minimum Levels).

TABLE VIII-4: Minimum Levels – Pesticides and PCB's
 (Table II-4 from Appendix II of the 2005 Ocean Plan)

Pesticides – PCB's	CAS Number	Minimum Level ($\mu\text{g/L}$)
		GC Method ^{a,*}
Aldrin	309002	N/A
Chlordane	57749	N/A
4,4'-DDD	72548	0.05
4,4'-DDE	72559	0.05
4,4'-DDT	50293	0.01
Dieldrin	60571	N/A
a-Endosulfan	959988	0.02
b-Endosulfan	33213659	0.01
Endosulfan Sulfate	1031078	0.05
Endrin	72208	0.01
Heptachlor	76448	N/A
Heptachlor Epoxide	1024573	N/A
a-Hexachlorocyclohexane	319846	0.01
b-Hexachlorocyclohexane	319857	0.005
d-Hexachlorocyclohexane	319868	0.005
g-Hexachlorocyclohexane (Lindane)	58899	0.02
PCB 1016	--	N/A
PCB 1221	--	N/A
PCB 1232	--	N/A
PCB 1242	--	N/A
PCB 1248	--	N/A
PCB 1254	--	N/A
PCB 1260	--	N/A
Toxaphene	8001352	N/A

Table VIII-4 Notes:

a) GC Method = Gas Chromatography

* To determine the lowest standard concentration in an instrument calibration curve for this technique, multiply the given ML by 100 (see the 2005 Ocean Plan, Chapter III, Section C.5, *Use of Minimum Levels*).

Procedures, calibration techniques, and instrument/reagent specifications used to determine compliance with the 2005 Ocean Plan Table B shall conform to the requirements of federal

regulations (40 CFR PART 136, revised edition of July 1, 2003, or later). All methods are specified in Tables VIII-1 through VIII-4 of this MRP.

Laboratories analyzing monitoring data shall be certified by the California Department of Health Services, in accordance with the provisions of California Water Code, Section 13176, and must include quality assurance / quality control data with their reports.

IX. SAMPLE REPORTING PROTOCOLS

Dischargers must report with each sample result the reported Minimum Level (selected by the Discharger in accordance with MRP Section VIII, *Minimum Levels*, above, and Section III.C.4 of the 2005 Ocean Plan) and the laboratory's current Method Detection Limit (MDL).

Dischargers must also report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- A. Sample results greater than or equal to the reported Minimum Level must be reported "as measured" by the laboratory (i.e., the measured chemical concentration in the sample).
- B. Sample results less than the reported Minimum Level, but greater than or equal to the laboratory's MDL, must be reported as "Detected, but Not Quantified", or DNQ. The laboratory must write the estimated chemical concentration of the sample next to DNQ as well as the words "Estimated Concentration" (may be shortened to "Est. Conc.").
- C. Sample results less than the laboratory's MDL must be reported as "Not Detected", or ND.

X. COMPLIANCE DETERMINATION

Sufficient sampling and analysis is required to determine compliance with the effluent limitations.

A. Compliance with Single-Constituent Effluent Limitations

Dischargers are out of compliance with the effluent limitation if the concentration of the pollutant (see Section X.C below) in the monitoring sample is greater than the effluent limitation and greater than or equal to the reported Minimum Level.

B. Compliance with Effluent Limitations expressed as a Sum of Several Constituents

Dischargers are out of compliance with an effluent limitation which applies to the sum of a group of chemicals (e.g., PCB's) if the sum of the individual pollutant concentrations is greater than the effluent limitation. Individual pollutants of the group will be considered to have a concentration of zero if the constituent is reported as ND or DNQ.

C. Multiple Sample Data Reduction

The concentration of the pollutant in the effluent may be estimated from the result of a single sample analysis or by a measure of central tendency (arithmetic mean, geometric mean, median, etc.) of multiple sample analyses when all sample results are quantifiable (i.e., greater than or equal to the reported Minimum Level). When one or more sample results are reported as ND or DNQ, the central tendency concentration of the pollutant shall be the median (middle) value of the multiple samples. If, in an even number of samples, one or both of the middle values is ND or DNQ, the median will be the lower of the two middle values.

XI. POLLUTANT MINIMIZATION PROGRAM

The 2005 California Ocean Plan establishes guidelines for the Pollutant Minimization Program (PMP). At the time of the proposed adoption of Order No. R3-2006-0084, no known evidence was available that would require the Discharger to immediately develop and conduct a PMP. The Central Coast Water Board will notify the Discharger in writing if such a program becomes necessary. The 2005 Ocean Plan PMP language is included herein to provide guidance in the event that a PMP must be developed and implemented by the Discharger.

A. Pollutant Minimization Program Goal

The goal of the Pollutant Minimization Program is to reduce all potential sources of a pollutant through pollutant minimization (control) strategies, including pollution prevention measures, in order to maintain the effluent concentration at or below the effluent limitation.

Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The completion and implementation of a Pollution Prevention Plan, required in accordance with California Water Code Section 13263.3 (d), will fulfill the Pollution Minimization Program requirements.

B. Determining the Need for a Pollutant Minimization Program

1. The Discharger must develop and conduct a Pollutant Minimization Program if all of the following conditions are true:
 - (a) The calculated effluent limitation is less than the reported Minimum Level.
 - (b) The concentration of the pollutant is reported as DNQ.
 - (c) There is evidence showing that the pollutant is present in the effluent above the calculated effluent limitation.
2. Alternatively, the Discharger must develop and conduct a Pollutant Minimization Program if all of the following conditions are true:
 - (a) The calculated effluent limitation is less than the Method Detection Limit (MDL).
 - (b) The concentration of the pollutant is reported as ND.
 - (c) There is evidence showing that the pollutant is present in the effluent above the calculated effluent limitation.

C. Special Provision for Evidence of Pollutant Presence

Regional Boards may include special provisions in the discharge requirements to require the gathering of evidence to determine whether the pollutant is present in the effluent at levels above the calculated effluent limitation. Examples of evidence may include:

1. Health advisories for fish consumption;
2. Presence of whole effluent toxicity;
3. Results of benthic or aquatic organism tissue sampling;
4. Sample results from analytical methods more sensitive than methods included in the permit (in accordance with the 2005 Ocean Plan, Chapter III, Section C.4.b, *Deviations from Minimum Levels in Appendix II* [included above in Section III, *Minimum Levels*]); or
5. The concentration of the pollutant is reported as DNQ and the effluent limitation is less than the MDL.

D. Elements of a Pollutant Minimization Program

The Central Coast Water Board may consider cost-effectiveness when establishing the requirements of a Pollutant Minimization Program. The program shall include actions and submittals acceptable to the Central Coast Water Board including, but not limited to, the following:

1. An annual review and semiannual monitoring of potential sources of the reportable pollutant, which may include fish tissue monitoring and other bio-uptake sampling;
2. Quarterly monitoring for the reportable pollutant in the influent to the wastewater treatment system;
3. Submittal of a control strategy designed to proceed toward the goal of maintaining concentrations of the reportable pollutant in the effluent at or below the calculated effluent limitation;
4. Implementation of appropriate cost-effective control measures for the pollutant, consistent with the control strategy; and,
5. An annual status report that shall be sent to the Central Coast Water Board including:
 - (a) All Pollutant Minimization Program monitoring results for the previous year;
 - (b) A list of potential sources of the reportable pollutant;
 - (c) A summary of all action taken in accordance with the control strategy; and,
 - (d) A description of actions to be taken in the following year.

XII. REPORTING REQUIREMENTS

A. General Monitoring and Reporting Requirements

1. The Discharger shall comply with all Standard Provisions (Attachment D) related to monitoring, reporting, and recordkeeping.

B. Self Monitoring Reports (SMRs)

1. At any time during the term of this permit, the State or Central Coast Water Board may notify the Discharger to electronically submit self-monitoring reports (SMRs) using the State Water Boards' California Intergrated Water Quality System (CIWQS) Program Web site (<http://www.waterboards.ca.gov/ciwqs/index.html>). The Discharger shall submit hard copies of the SMRs in accordance with the requirements described below until such notification is given. The CIWQS Web site will provide additional directions for SMR submittal in the event there will be service interruption for electrobnic submittal.
2. The Discharger shall submit monthly and annual Self Monitoring Reports including the results of all required monitoring using U.S. EPA-approved test methods or other test methods specified in this Order. Monthly reports shall be due on the 1st day of the second month following the end of each calendar month; Annual reports shall be due on February 1st following each calendar year. The Discharger may collectively submit reports due on the same day, but must indicate each report on the Self Monitoring Report Transmittal Form (Attachment J) or similar, as approved by the Executive Officer.
3. Monitoring periods and reporting for all required monitoring shall be completed according to Table XIV-1 below. Table XIV-2 provides a summary of the reports required by this Order, to be confirmed by the Discharger. Table XII-2 is for reference only, and does not supercede the reporting requirements of this Order.

Table XII-1 – Monitoring Period Definitions

Sampling Frequency	Monitoring Period Begins On...	Monitoring Period	SMR Due Date
Continuous	The day after permit effective date	All	First day of second calendar month following month of sampling
X / day	The day after permit effective date	(Midnight through 11:59 PM) or any 24-hour period that reasonably represents a calendar day for purposes of sampling.	First day of second calendar month following month of sampling
X / week	The Sunday following permit effective date or on permit	Sunday through Saturday	First day of second calendar month

Table XII-1 – Monitoring Period Definitions

Sampling Frequency	Monitoring Period Begins On...	Monitoring Period	SMR Due Date
	effective date if on a Sunday		following month of sampling
X / month	The first day of calendar month following permit effective date or on permit effective date if that date is first day of the month	1 st day of calendar month through last day of calendar month	First day of second calendar month following month of sampling
X / year	January 1 st following (or on) permit effective date	January 1 st through December 31 st	February 1 st

TABLE XII-2: Reporting Schedule Summary

Monitoring Report	Order / MRP Section	Report Due No Later Than
Daily, Every 2 Days, Every 6 Days, or Monthly influent / effluent monitoring data (monthly report)	MRP Tables III-1 and IV-1	The first day of the second calendar month following the month of sampling (e.g., reports for monitoring conducted in January are due no later than March 1 st)
Annual / effluent monitoring data	MRP Tables IV-2, IV-3, IV-4, and IV-5	November 1, 2007; October 1, 2008; September 1, 2009; August 1, 2010; and July 1, 2011
Annual Summary Report	Order Attachment D-1, General Monitoring Requirement C.8	February 1 st
Receiving Water bacterial monitoring data	MRP Section VI.A	14 days after each sampling event
Annual Ocean Outfall and Diffuser inspection	MRP Section VII.A	60 days following the inspection, and; February 1 st (as summary in the Annual Summary Report)
2008 Bottom Sediment and Benthic Biota Sampling	MRP Sections VI.B and C	February 1, 2009
Annual Biosolids Report (to EPA)	MRP Section VII.B	February 19 th
Report of Waste Discharge / Application for authorization to continue waste discharge	Page 1 of Order	June 1, 2011

- The Discharger shall report with each sample result the applicable Minimum Level (ML) and the current Method Detection Limit (MDL), as determined by the procedure in 40 CFR Part 136.

5. The Discharger shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the facility is operating in compliance with interim and/or final effluent limitations.
6. The Discharger shall attach a cover letter to the SMR. The information contained in the cover letter shall clearly identify violations of the WDRs; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.
7. SMRs must be submitted to the Central Coast Water Board, signed and certified as required by the standard provisions (Attachment D), to the address listed below:

Central Coast Regional Water Quality Control Board
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401-7906

C. Discharge Monitoring Reports (DMRs)

1. As described in Section XII.B.1 above, at any time during the term of this permit, the State or Central Coast Water Board may notify the Discharger to electronically submit self-monitoring reports. Until such notification is given, the Discharger shall submit discharge monitoring reports (DMRs) in accordance with the requirements described below.
2. DMRs must be signed and certified as required by the standard provisions (Attachment D). The Discharger shall submit the original DMR and one copy of the DMR to the address listed below:

State Water Resources Control Board
Discharge Monitoring Report Processing Center
Post Office Box 671
Sacramento, CA 95812

3. All discharge monitoring results must be reported on the official U.S. EPA pre-printed DMR forms (EPA Form 3320-1). Forms that are self-generated or modified cannot be accepted.

D. Notification and Monitoring Procedure in Case of Disinfection Failure

1. The Discharger shall notify: (i) the State Department of Health Services (DHS); (ii) Santa Barbara County Environmental Health Services Department; (iii) the Central Coast Water Board; and (iv) each certified commercial shellfish grower located offshore of the Santa Barbara Coast as set forth in a list to be provided and updated by DHS, in the event of a malfunction of the Discharger's wastewater treatment facility's disinfection process, which results in a potential or actual discharge of inadequately disinfected effluent into the Santa Barbara Channel (an "Event"). The

Discharger shall determine in its sole discretion whether an Event has occurred. Such notification by the Discharger shall be by telephone and facsimile transmission to the numbers provided to the Discharger by DHS. If the Discharger becomes aware of an Event between the weekday hours of 6:00 a.m. and 5:00 p.m., notification shall be given within four (4) hours of the time that the Discharger becomes aware of the Event. If the Discharger becomes aware of the Event after 5:00 p.m. or on a weekend, notification shall be given by 10:00 a.m. the next business day.

By providing notification of an Event as specified above, the Discharger shall not be deemed to have admitted any liability or concluded that the Event will or may impact any approved commercial shellfish growing areas ("growing area") or require the closure of any growing areas. Any decision or recommendation to close a growing area in response to a notification of an Event by the Discharger shall be made by DHS and/or the affected or potentially affected certified commercial shellfish grower(s). The Discharger shall have no liability (including but not limited to liability for lost sales, profits or interruption of business operations) arising from a decision by DHS or a shellfish grower to close a growing area in response to a notification of an Event.

The Discharger shall monitor for total coliforms, fecal coliforms, and enterococcus at receiving water sampling stations R-D and R-E as identified in MRP Section II above, in addition to three shore sampling stations approved by the Executive Officer, for seven days after loss of disinfection, and report the results to the Executive Officer within 24 hours after receiving them from the laboratory.

E. Sewage Spill Reporting

1. Sewage spills greater than 1,000 gallons and/or all sewage spills that enter a water body of the State, or occur where public contact is likely, regardless of the size, shall be reported to the Central Coast Water Board by telephone as soon as notification is possible and can be provided without substantially impeding cleanup or other emergency measures, and no later than 24-hours from the time that the Dischargers have knowledge of the overflow.

In accordance with the Statewide Wastewater Collection Systems General Waste Discharge Requirements, the sewage spill must be reported to the Online Sanitary Sewer Overflow (SSO) Database as soon as possible, but no later than three (3) business days after the discharger is made aware of the SSO.

2. Unless fully contained, sewage spills to storm drains tributary to Waters of the United States shall be reported as discharges to surface waters.
3. The Dischargers shall sample all spills to surface waters to determine their effects on surface waters and submit the data to the Executive Officer in the next monthly monitoring report. Samples shall, at minimum, be analyzed for total and fecal coliform bacteria and enterococcus bacteria for spills to marine water, and fecal coliform bacteria for spills to fresh water. Sampling shall be conducted in the affected receiving

water body upstream, at, and downstream of the spill's point of entry, and as necessary to characterize the spill's impact and to ensure adequate clean-up. Upstream monitoring is only required when the discharge is to a creek, stream, or similar open, accessible channel with continuous background flow.

4. Spills under 1,000 gallons that do not enter a water body shall be reported to the Central Coast Water Board in writing and electronically (Excel spreadsheet preferred) within the next monthly monitoring report. Such reports shall include, at a minimum, a tabular summary of spill dates, locations, volumes, whether the spill discharged to surface waters (including conveyances thereto) or land, whether cleanup and/or disinfection was performed, the spill's cause, the number of spills at the location in the last three years, and weather conditions.

In accordance with the Statewide Wastewater Collection Systems General Waste Discharge Requirements, the sewage spill must be reported to the Online Sanitary Sewer Overflow (SSO) Database 30-days after the end of the calendar month in which the SSO occurs (e.g., all SSOs occurring in the month of January must be entered into the Online SSO database March 1st).

5. The Dischargers shall update the Wastewater Collection System Questionnaire annually. The questionnaire updates may occur through the Online SSO Database at least every 12 months.
6. If no sewage spills occurred during the calendar month, the discharger will provide, within 30 days after the end of the calendar month, a statement through the Online SSO Database certifying that there were no SSOs for the designated month.
7. In accordance with the Governor's Office of Emergency Services (OES) 2002 Fact Sheet regarding the reporting of sewage releases, the California Water Code, commencing with Section 13271, requires that a discharge of sewage to State waters must be reported to OES.
8. To report sewage releases of 1,000 gallons or more (currently the federal reportable quantity) to OES, verbally notify the OES Warning Center at: (800) 852-7550, or (916) 845-8911. The following fax number should be used for follow-up information only: (916) 262-1677. The reportable quantity is subject to revision by the State of California. OES reporting requirements for sewage releases and hazardous materials can be located on the OES Website at www.oes.ca.gov in the California Hazardous Material Spill/Release Notification Guidance. The OES Hazardous Materials Unit staff is available for questions at (916) 845-8741.
9. OES Reporting Exceptions: Notification to OES of an unauthorized discharge of sewage or hazardous substances is not required if: 1) the discharge to State waters is a result of a cleanup or emergency response by a public agency; 2) the discharge occurs on land only and does not affect State waters; or 3) the discharge is in compliance with applicable waste discharge requirements. These exceptions apply only to the Dischargers' responsibility to report to OES, and do not alter the Central Coast Water Board's reporting policies or waste discharge requirements.

10. The discharger shall report SSOs to the Santa Barbara County Environmental Health Services department in accordance with California Health and Safety Code Section 5410 et seq.

Attachment F – Fact Sheet – Table of Contents

Attachment F – Fact Sheet.....	F-3
I. Permit Information.....	F-3
II. Facility Description.....	F-4
A. Description of Wastewater Treatment or Controls.....	F-4
B. Discharge Points and Receiving Waters.....	F-5
C. Summary of Existing Requirements and Self-Monitoring report data.....	F-5
D. Compliance Summary.....	F-4
E. Planned Changes.....	F-7
III. Applicable Plans, Policies, and Regulations.....	F-7
A. Legal Authorities.....	F-7
B. California Environmental Quality Act (CEQA).....	F-5
C. State and Federal Regulations, Policies, and Plans.....	F-6
D. Other Plans, Policies, and Regulations.....	F-7
IV. Rationale For Effluent Limitations and Discharge Specifications.....	F-8
A. Discharge Prohibitions.....	F-11
B. Technology-Based Effluent Limitations.....	F-11
1. Scope and Authority.....	F-11
2. Applicable Technology-Based Effluent Limitations.....	F-8
C. Water Quality-Based Effluent Limitations (WQBELs).....	F-10
1. Scope and Authority.....	F-10
2. Applicable Beneficial Uses and Water Quality Criteria and Objectives.....	F-14
3. Determining the Need for WQBELs.....	F-14
4. WQBEL Calculations.....	F-11
5. Whole Effluent Toxicity (WET).....	F-22
6. Total Coliform Effluent Limitations.....	F-17
D. Final Effluent Limitations.....	F-24
1. Satisfaction of Anti-backsliding Requirements.....	F-20
2. Satisfaction of Antidegradation Policy.....	F-20
3. Stringency of Requirements for Individual Pollutants.....	F-20
V. Rationale for Receiving Water Limitations.....	F-32
A. Surface Water.....	F-32
VI. Rationale for Monitoring and Reporting Requirements.....	F-32
A. Influent Monitoring.....	F-33
B. Effluent Monitoring.....	F-33
C. Whole Effluent Toxicity Testing Requirements.....	F-35
D. Receiving Water Monitoring.....	F-36
E. Other Monitoring Requirements.....	F-37
VII. Rationale for Provisions.....	F-37
A. Standard Provisions.....	F-37
B. Special Provisions.....	F-38
1. Special Provisions for Municipal Facilities (POTWs Only).....	F-38
2. Reopener Provisions.....	F-29
3. Best Management Practices and Pollution Prevention.....	F-29
VIII. Public Participation.....	F-39
A. Notification of Interested Parties.....	F-39
B. Written Comments.....	F-40

C. Public Hearing	F-31
D. Waste Discharge Requirements Petitions	F-32
E. Information and Copying	F-32
G. Additional Information	F-32

ATTACHMENT F – FACT SHEET

As described in Section II of this Order, this Fact Sheet includes the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for Dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this Discharger. Sections or subsections of this Order not specifically identified as “not applicable” are fully applicable to this Discharger.

I. PERMIT INFORMATION

The following table summarizes administrative information related to the facility.

WDID	3 42 010 7001
Discharger	Montecito Sanitary District
Name of Facility	Montecito Sanitary District Wastewater Treatment Facility
Facility Address	1042 Monte Cristo Lane
	Santa Barbara, CA 93108
	Santa Barbara County
Facility Contact, Title and Phone	Diane M. Gabriel, General Manager, (805) 969-4200
Authorized Persons to Sign and Submit Reports	Diane M. Gabriel, General Manager, (805) 969-4200 James A. McManus, Operations and Maintenance Manager, (805) 969-4200 Brett Walker, Laboratory and Treatment Supervisor, (805) 969-4200
Mailing Address	1042 Monte Cristo Lane, Santa Barbara, CA 93108
Billing Address	1042 Monte Cristo Lane, Santa Barbara, CA 93108
Type of Facility	POTW
Major or Minor Facility	Major
Threat to Water Quality	2
Complexity	A
Pretreatment Program	No
Reclamation Requirements	None
Facility Permitted Flow	1.5 Million Gallons per Day (MGD)
Facility Design Flow	1.5 Million Gallons per Day (MGD)
Watershed	South Coast Hydrologic Unit
Receiving Water	Pacific Ocean
Receiving Water Type	Saltwater

- A. Montecito Sanitary District (hereinafter Discharger) is the owner and operator of the Montecito Sanitary District Wastewater Treatment Facility (hereinafter Facility), a Publicly Owned Treatment Works (POTW), as shown on Attachment A. The Facility serves a population of approximately 10,000 persons.

For the purposes of this Order, references to the "Discharger" or "permittee" in applicable federal and state laws, regulations, plans, or policies are held to be equivalent to references to the Discharger herein.

- B. The Facility discharges wastewater to the Pacific Ocean, a water of the United States, and is currently regulated by Order No. 01-116, which was adopted on December 7, 2001, and was scheduled to expire on December 6, 2006 (Order No. 01-116).
- C. The Discharger filed a report of waste discharge and submitted an application for renewal of its Waste Discharge Requirements (WDRs) and National Pollutant Discharge Elimination System (NPDES) permit on June 2, 2005. Upon determining that the Report of Waste Discharge/Application was incomplete, staff required Montecito Sanitary District (District) to submit additional information. Staff deemed the application complete during a meeting on July 21, 2006, and in writing on July 31, 2005. Staff conducted a routine facility inspection on April 13, 2006.

II. FACILITY DESCRIPTION

- A. **Description of Wastewater and Biosolids Treatment or Controls** – The treatment system consists of comminution, activated sludge, secondary sedimentation, chlorination, and dechlorination. The design average dry weather flow rate is 1.5 MGD. The following table summarizes the Annual Average Daily Flows during the last five years.

Table A-1. Annual Average Daily Flows

Year	Average Daily Wet-Weather Flow ^{1,2}	Maximum Daily Wet-Weather Flows ^{1,2}	Average Daily Dry-Weather Flows ^{1,3}	Peak Daily Dry-Weather Flow ^{1,3,4}
2001	1.1677	1.6347	0.9862	See below ⁵
2002	0.9760	1.3177	0.8992	2.09
2003	1.0068	1.3658	0.9848	2.30
2004	0.9368	1.3118	0.8248	2.06
2005	1.2992	2.1387	0.9703	2.45

1 All flows reported in million gallons per day (MGD).

2 Wet-weather flows are from November through April.

3 Dry-weather flows are from May through October.

4 Based on an instantaneous daily value.

5 Permit was adopted in December 1, 2001, December is not considered a dry-weather month; therefore, no data was available to calculate the peak dry-weather flow..

Biosolids are managed via aerobic digestion, dewatered by belt press, and composted off-site.

- B. **Discharge Points and Receiving Waters** – Wastewater is discharged to the Pacific Ocean through a 1,550-foot outfall/diffuser system. The outfall (Discharge Point 001) terminates in the Santa Barbara Channel / Pacific Ocean (34°24'48" N. Latitude, 119°38'52" W. Longitude) in approximately 35 feet of water. The minimum initial dilution ratio of seawater to effluent is 89:1.

C. **Summary of Existing Requirements and Self-Monitoring Report (SMR) Data**

Effluent limitations/Discharge Specifications contained in the existing Order for discharges from the outfall terminating in the **Pacific Ocean** and representative monitoring data from the term of the previous Order are as follows:

Table C-1. Historic Effluent Limitations and Monitoring Data

Parameter	Units	Effluent Limitation		
		Average Monthly	Average Weekly	Maximum Daily
BOD, 5-day	mg/L	30	45	90
	lbs/day	375*	563*	1126*
Total Non-Filterable Residue (Suspended Solids)	mg/L	30	45	90
	lbs/day	375*	563*	1126*
Grease and Oil	mg/L	25	40	75
	lbs/day	313*	500*	938*
Settleable Solids	mL/L	1.0	1.5	3.0
Turbidity	NTU	75	100	225
pH	Within limits of 6.0 to 9.0 at all times			
Acute Toxicity	TUa	1.5	2.0	2.5

* For Flows less than 1.5 MGD, mass emission rates shall not exceed the "Maximum Allowable Mass Emission Rate."

- D. **Compliance Summary** – Central Coast Water Board records indicate the Discharger complied with Order No. 00-001 with the exceptions shown in the following tables. The Discharger responded appropriately to each incident.

Table D-1 – Effluent Violations

Date	Violation	Effluent Limit Violated	Reported Value and Cause (if known)	Staff Enforcement Action
1/1/2005	Total Coliform Median Number	23 MPN per 100 ml	26 MPN per 100 ml, cause by large storm event	Verbal

Table D-2 – Sanitary Sewer Overflows

Date	Volume (gallons)	Discharge to Waterbody (Y/N)	Reported Cause	Staff Enforcement Action
11/4/2004	1,200	N	Construction debris blockage	None recommended
11/4/2004	300-500	N	Construction debris blockage	None recommended
8/12/2004	<200	N	Force Main Puncture	None recommended
1/12/2004	5,000	N	Root and grease blockage	Verbal
11/13/2003	100	N	Root blockage	None recommended
9/29/2003	100-150	N	Root blockage	None recommended
5/20/2003	100	N	Root Blockage	None recommended
5/4/2003	900	Y	Root and grease blockage	None recommended
4/14/2003	100-150	N	Root and grease blockage	None recommended
4/2/2003	200	Y	Root and grease blockage	None recommended
3/18/2003	100-150	N	Root blockage	None recommended
1/29/2003	1,200	N	Root blockage	None recommended
12/15/2002	100	N	Root blockage	None

				recommended
11/30/2002	500	N	Root blockage	None recommended
9/26/2002	20	N	Root blockage	None recommended
6/7/2002	500	N	Root Blockage	Verbal
5/29/2002	300	N	Root and grease blockage	None recommended
5/28/2002	1,500	N	Root and grease blockage	Verbal
11/23/2001	2,500	Y	Root Blockage	Verbal

Central Coast Water Board records also indicate several minor reporting violations, resulting in staff's informal verbal or written enforcement actions. The Discharger responded appropriately by submitting the information or modifying monitoring practices to include the data in future reports.

- E. **Planned Changes** – The Discharger proposes no planned changes to the facility during the next Order term that may impact the development of this Order.

III. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in the proposed Order are based on the requirements and authorities described in this section.

A. Legal Authorities

This Order is issued pursuant to section 402 of the Federal Clean Water Act (CWA) and implementing regulations adopted by the U.S. Environmental Protection Agency (U.S. EPA) and Chapter 5.5, Division 7 of the California Water Code (CWC). It shall serve as a NPDES permit for point source discharges from this facility to surface waters. This Order also serves as Waste Discharge Requirements (WDRs) pursuant to Article 4, Chapter 4, Division 7 of the CWC for discharges that are not subject to regulation under CWA section 402.

B. California Environmental Quality Act (CEQA)

Under California Water Code section 13389, this action to adopt an NPDES permit is exempt from the provisions of the CEQA, Public Resources Code sections 21000-21177. This action regulates an existing facility and involves negligible or no expansion of use, and is also exempt from the provisions of the CEQA in accordance with Section 15301, Title 14 of the California Code of Regulations.

C. State and Federal Regulations, Policies, and Plans

1. **Water Quality Control Plans.** In 1994, the Central Coast Water Board adopted a Water Quality Control Plan for the Central Coast Region (hereinafter Basin Plan) that designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for all waters addressed through the plan. In addition, State Water Resources Control Board (State Water Board) Resolution No. 88-63 requires that, with certain exceptions, the Central Coast Water Board assign the municipal and domestic supply use to water bodies that do not have beneficial uses listed in the Basin Plan.

The State Water Board revised and adopted the Water Quality Control Plan, Ocean Waters of California (2005 Ocean Plan) on January 20, 2005. The 2005 Ocean Plan contains water quality objectives and other requirements governing discharges to the Pacific Ocean.

Beneficial uses applicable to the Pacific Ocean are as follows:

Discharge Point	Receiving Water Name	Basin Plan Beneficial Use(s)
001	Pacific Ocean	<u>Existing:</u> Water contact recreation (REC-1); non-contact water recreation (REC-2); industrial service supply (IND); navigation (NAV); marine habitat (MAR); shellfish harvesting (SHELL); commercial and sport fishing (COMM); rare, threatened, or endangered species (RARE); wildlife habitat (WILD); migration of aquatic organisms (MIGR); spawning, reproduction, and/or early development (SPWN).

2. **Antidegradation Policy.** Section 131.12 of 40 CFR requires that State water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution No. 68-16, which incorporates the requirements of the federal antidegradation policy. Resolution No. 68-16 requires that existing water quality is maintained unless degradation is justified based on specific findings. The permitted discharge is consistent with the antidegradation provision of 40 CFR §131.12 and State Water Board Resolution No. 68-16.
3. **Anti-Backsliding Requirements.** CWA Sections 402(o)(2) and 303(d)(4) and 40 CFR §122.44(l) prohibit backsliding in NPDES permits. These anti-backsliding

provisions require that effluent limitations in a reissued permit must be as stringent as those in the previous permit, with some exceptions in which limitations may be relaxed. All limitations in this Order are at least as stringent as the effluent limitations in the previous Order, with some minor exceptions due to the appropriate use of rounding the results of effluent limit calculations for this Order.

Furthermore, the maximum daily acute toxicity limit shown as 3.1 TUa is higher than the limit in Order No. 01-116 (2.5 TUa) because of the State Water Board's modification of the Ocean Plan in 2001. With regard to anti-backsliding, according to the State Water Board's *Final Functional Equivalent Document – Amendment of the Water Quality Control Plan for Ocean Waters of California (California Ocean Plan)*, September 1, 2000, page 27, Comment/Response No. 1.34,

The Clean Water Act's antibacksliding provisions would not apply. The relevant provisions are in Section 402(o)(1) of the Clean Water Act (Act). The section prohibits, with certain exceptions, a permit issuer from replacing existing permit limits with less stringent limits in two types of cases. First, technology-based limits based on best professional judgment cannot be revised to reflect subsequently EPA-promulgated effluent limitation guidelines which are less stringent. Second, the Act prohibits backsliding from water quality-based effluent limitations. In this case, the SWRCB is proposing to replace technology-based acute toxicity limitations based on best professional judgment with, assuming reasonable potential, water quality-based limits. This approach is not subject to antibacksliding restrictions.

4. **Monitoring and Reporting Requirements.** Section 122.48 of 40 CFR requires that all NPDES permits specify requirements for recording and reporting monitoring results. California Water Code Sections 13267 and 13383 authorize the regional water boards to require technical and monitoring reports. The Monitoring and Reporting Program (MRP) (Attachment E) establishes monitoring and reporting requirements to implement federal and State requirements.
5. **California Ocean Plan.** The State Water Board adopted the *Water Quality Control Plan for Ocean Waters of California, California Ocean Plan* (2005 Ocean Plan) in 1972 and amended it in 1978, 1983, 1988, 1990, 1997, 2000, and 2005. The State Water Board adopted the latest amendment on April 21, 2005, and it became effective on February 14, 2006. The 2005 Ocean Plan is applicable, in its entirety, to point source discharges to the ocean. The 2005 Ocean Plan identifies beneficial uses of ocean waters of the State to be protected as summarized below:

2005 Ocean Plan Beneficial Uses

Discharge Point	Receiving Water	2005 Ocean Plan Beneficial Uses
Outfall 001	Pacific Ocean	Industrial water supply; water contact and non-contact recreation, including aesthetic enjoyment; navigation; commercial and sport fishing; mariculture; preservation and enhancement of designated Areas of Special Biological Significance (ASBS); rare and endangered species; marine habitat; fish spawning and shellfish harvesting

In order to protect the beneficial uses, the 2005 Ocean Plan establishes water quality objectives and a program of implementation. Requirements of this Order implement the 2005 Ocean Plan.

6. **Alaska Rule.** On March 30, 2000, U.S. EPA revised its regulation that specifies when new and revised state and tribal water quality standards become effective for CWA purposes (40 CFR § 131.21, 65 Fed. Reg. 24641 (April 27, 2000)). Under the revised regulation (also known as the Alaska rule), new and revised standards submitted to U.S. EPA after May 30, 2000, must be approved by U.S. EPA before being used for CWA purposes. The final rule also provides that standards already in effect and submitted to U.S. EPA by May 30, 2000, may be used for CWA purposes, whether or not approved by U.S. EPA.

D. Other Plans, Policies and Regulations

1. **Stormwater Management.** Storm water runoff due to rainfall that falls upon the wastewater treatment facility and that may be exposed to on-site pollutant sources is routed to the facility's headworks for treatment. This permit regulates all storm water discharges at this facility and complies with Federal regulations for storm water management [Title 40, Code of Federal Regulations (CFR), Parts 122, 123, and 124], and therefore this facility is exempt from coverage under the State's Water Quality Order No. 97-03-DWQ, *NPDES General Permit for Discharges of Stormwater Associated with Industrial Activities*.
2. **Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (General WDRs).** The General Waste Discharge Requirements Order No. 2006-0003-DWQ, adopted May 2, 2006, applies to publicly owned sanitary sewer systems (collection systems) that are one mile or greater in length. The General WDRs requires collection system entities to develop a Sanitary Sewer Management Plan (SSMP). SSMPs are required to include goals, organization, legal authority, operations and maintenance program, design and performance provisions, overflow emergency response plan, fats, oils, and greases (FOG) control program, systems evaluations and capacity assurance program, monitoring, measures, and program modifications, and SSMP Program audit. Additionally, the General WDRs requires the collection system entities to report sanitary sewer overflows (SSOs). Collection system entities are required to report

SSOs that are greater than 1,000 gallons. Furthermore, such must also report SSO discharges less than 1,000 gallons that discharge to surface waters or storm drains or that threaten public health. Reporting provisions are set forth in the General WDRs. Reporting shall occur through the Statewide Online SSO database. Reporting times vary depending on discharge amount and destination.

Staff removed the *Collection System Maintenance and Renovation Program* requirements language (Section D of Order No. 01-116). The language was removed because the Discharger had submitted an application to the State Water Board in order to obtain coverage under the General WDRs. The Discharger's application was submitted July 10, 2006. Official notification of General WDRs enrollment was provided by the State Water Board via e-mail August 18, 2006.

IV. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

The CWA requires point source discharges to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. There are two principal bases for effluent limitations: 40 CFR §122.44(a) requires that permits include applicable technology-based limitations and standards; and 40 CFR §122.44(d) requires that permits include water quality-based effluent limitations to attain and maintain applicable numeric and narrative water quality criteria to protect the beneficial uses of the receiving water.

A. Discharge Prohibitions – To effectively regulate this waste discharge, including protecting public and environmental health and facilitating compliance monitoring, it is necessary to know the discharge location and that the discharge is properly treated. Order Section III specifies the authorized discharge location, and prohibits the discharge of untreated wastes to surface waters or conveyances thereto.

B. Technology-Based Effluent Limitations

1. Scope and Authority

Section 301(b) of the CWA and implementing U.S. EPA permit regulations at section 122.44, 40 of the Code of Federal Regulations (40 CFR) require that permits include conditions meeting applicable technology-based requirements at a minimum, and any more stringent effluent limitations necessary to meet applicable water quality standards. The discharge authorized by this Order must meet minimum federal technology-based requirements based on secondary treatment Standards at Part 133.

Regulations promulgated in 40 CFR §125.3(a)(1) require technology-based effluent limitations for municipal dischargers to be placed in NPDES permits based on Secondary Treatment Standards or Equivalent to Secondary Treatment Standards.

The Federal Water Pollution Control Act Amendments of 1972 (PL 92-500) established the minimum performance requirements for POTWs [defined in Section 304(d)(1)]. Section 301(b)(1)(B) of that Act requires that such treatment works must, as a minimum, meet effluent limitations based on secondary treatment as defined by the U.S. EPA Administrator.

Based on this statutory requirement, U.S. EPA developed secondary treatment regulations, which are specified in 40 CFR 133. These technology-based regulations apply to all municipal wastewater treatment plants and identify the minimum level of effluent quality attainable by secondary treatment in terms of carbonaceous biochemical oxygen demand (CBOD₅), total suspended solids (TSS), and pH.

2. **Applicable Technology-Based Effluent Limitations** – Staff applied effluent CBOD₅ and TSS concentrations and removal efficiencies directly from 40 CFR 133.102. While pH limitations are also provided in 40 CFR, staff used water quality based effluent limits from the 2005 Ocean Plan. Please see Fact Sheet Section C.4 for more detail regarding pH effluent limits.

Where applicable, the above technology-based limits are also expressed in terms of mass loading, with units of pounds/day. 40 CFR 122.45(f)(2) provides that, "Pollutants limited in terms of mass additionally may be limited in terms of other units of measurement, and the permit shall require the Discharger to comply with both limitations."

The 2005 Ocean Plan Section III.C.4.j states that, "Discharge requirements shall also specify effluent limitations in terms of mass emission rate limits utilizing [2005 Ocean Plan Equation No. 3]."

The preceding Permit also contained mass loading limits, so including them in the renewed Permit is consistent with anti-backsliding requirements.

Staff calculated mass loading limits using the following equation (based on Equation No. 3 of the 2005 Ocean Plan):

$$\text{mass loading in lbs/day} = 8.34 \times C_e \times Q$$

where:

C_e = the effluent concentration limit, in mg/L;

Q = the flow rate observed over the concentration limit's period (e.g., daily, weekly/7-day, monthly/30-day), in millions of gallons per day (MGD), and;

The conversion factor of 8.34 has units of [(lbs/Million Gallons) / (mg/L)].

For example, the effluent CBOD₅ 30-day average concentration limit is 25 mg/L (Ce). Using the permitted flow rate of 1.5 MGD and the conversion factor 8.34:

$$\text{CBOD}_5 \text{ effluent mass loading} = 8.34 \times 25 \times 1.5$$

$$\text{CBOD}_5 \text{ effluent mass loading} = 312.75 \text{ lbs/day}$$

Because the significant figures are limited to two by the concentration and flow rate, the calculated mass loading is rounded to 313 lbs/day. Staff followed this rounding convention for all calculated effluent limits in the Permit.

Staff established the maximum daily effluent limits for CBOD₅ and TSS based on best professional judgment in previous permits. In accordance with anti-backsliding provisions, staff recommends maintaining these limits.

Summary of Technology-based Effluent Limitations Discharge Point 001

Parameter	Units	Effluent Limitations		
		30-day Average	7-day Average	Maximum Daily
Carbonaceous Biochemical Oxygen Demand, 5-day (CBOD ₅)	mg/L	25	40	85
	% removal	Not less than 85%	N/A	N/A
	lbs/day	310	500	1,100
Total Suspended Solids (TSS)	mg/L	30	45	90
	% removal	Not less than 85%	N/A	N/A
	lbs/day	380	560	1,100

C. Water Quality-Based Effluent Limitations (WQBELs)

1. Scope and Authority

Section 122.44(d)(1)(i) mandates that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard. Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, water quality-based effluent limitations (WQBELs) must be established using: (1) U.S. EPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator

parameter for the pollutant of concern; or (3) a calculated numeric water quality criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information, as provided in Section 122.44(d)(1)(vi).

The process for determining reasonable potential and calculating WQBELs when necessary is intended to protect the designated uses of the receiving water as specified in the Basin Plan, and achieve applicable water quality objectives and criteria that are contained in other state plans and policies, or any applicable water quality criteria contained in the 2005 Ocean Plan.

The 2005 Ocean Plan is applicable, in its entirety, to point source discharges to the ocean (2005 Ocean Plan, *Introduction*, C.1). The 2005 Ocean Plan Section III.C.4 establishes that water quality-based effluent limitations (WQBELs) for water quality objectives listed in the 2005 Ocean Plan Table B, with the exception of acute toxicity and radioactivity, shall be determined using the 2005 Ocean Plan Equation No. 1. Staff discusses the use of Equation No. 1 in the next section of this Fact Sheet.

2. Applicable Beneficial Uses and Water Quality Criteria and Objectives

Applicable beneficial uses are discussed on Permit Section II, Finding H and I, or Fact Sheet Section III.C.1. and C.5.

The 2005 Ocean Plan and Basin Plan numeric and narrative water quality criteria and objectives apply to the discharge. Narrative criteria are transcribed in the permit and include footnotes to indicate their source.

The discharge must meet the 2005 Ocean Plan requirements outside a "zone of initial dilution" (dilution zone) around the outfall diffuser. The 2005 Ocean Plan defines the dilution zone as the region in which the rapid, initial mixing occurs.

Computer models are employed to estimate the minimum initial dilution ratio (dilution ratio) of seawater to effluent achieved during the initial mixing phase in the dilution zone. The dilution ratio is used to determine the maximum concentrations of the specified the 2005 Ocean Plan constituents allowed in the wastewater before it is discharged. The proposed Order applies a dilution ratio of 89:1 to the discharge to determine effluent limitations derived from the 2005 Ocean Plan water quality objectives.

3. Determining the Need for WQBELs

During the July 14, 2000 Central Coast Water Board public hearing for the adoption of Order No. 00-001 for Carpinteria Sanitary District and Order No. 00-061 for Carmel Area Water District (both Ocean dischargers), the Central Coast Water Board rejected the use of limited data sets to statistically determine reasonable potential for municipal dischargers. The Central Coast Water Board found that the pollutant loading to publicly owned, domestic wastewater treatment

facilities varies greatly, and the potential always exists for pollutants to be discharged at a level that may cause, have reasonable potential to cause, or contribute to an excursion above effluent limitations (and therefore above state water quality objectives/standards). Intermittent disposal of household pesticides, detergents, and other toxics may not be captured by infrequent monitoring (and thus not be accounted for in the statistical reasonable potential analysis), but may cause, have reasonable potential to cause, or contribute to an excursion above effluent limitations. Based on this rationale, the Central Coast Water Board retained all effluent limits based on Ocean Plan Table B.

This rationale and approach was documented in staff's report to the Central Coast Water Board on February 1, 2002 (Agenda Item No. 22). The Discharger continues to collect, treat, and dispose of domestic/municipal wastewater. Based on the inherent variability of such wastewater, as discussed above, staff continues to recommend findings of reasonable potential and the application of all effluent limits according to the entirety of the 2005 Ocean Plan Table B.

4. WQBEL Calculations

The 2005 Ocean Plan Section III.B, Table A establishes POTW effluent limitations for Grease and Oil, Suspended Solids, Settleable Solids, Turbidity, and pH. Staff did not use the 2005 Ocean Plan Suspended Solids limit because it is not as stringent as the technology-based limits in 40 CFR 133.102 or Order No. 01-116 (the preceding Permit). Staff applied the 2005 Ocean Plan's pH limit because, although equal to 40 CFR in range (6 to 9), it lacks the conditional applicability of 40 CFR and is therefore the more stringent standard. The 2005 Ocean Plan's effluent pH limit is also equal to the preceding Order, so applying this standard is consistent with anti-backsliding requirements.

The 2005 Ocean Plan Section III.C.4 establishes that water quality-based concentration effluent limitations (WQBELs) for water quality objectives listed in the 2005 Ocean Plan Table B, with the exception of acute toxicity and radioactivity, shall be determined using the 2005 Ocean Plan Equation No. 1, as follows:

$$C_e = C_o + D_m (C_o - C_s)$$

where:

C_e = the effluent concentration limit, in ug/L

C_o = the concentration (water quality objective) to be met at the completion of initial dilution, in ug/L

C_s = background seawater concentration (see table below), in ug/L

D_m = minimum probable initial dilution expressed as parts seawater per part wastewater. The minimum probable initial dilution applying to the discharger 89:1, therefore $D_m = 89$.

BACKGROUND SEAWATER CONCENTRATIONS (Cs)

Waste Constituent	<u>Cs (µg/L)</u>
Arsenic	3.
Copper	2.
Mercury	0.0005
Silver	0.16
Zinc	8.
For all other Table B parameters, Cs = 0.	

Where applicable, water quality-based limits are also expressed in terms of mass loading, with units of pounds/day. 40 CFR 122.45(f)(2) provides that, "Pollutants limited in terms of mass additionally may be limited in terms of other units of measurement, and the permit shall require the Discharger to comply with both limitations."

The 2005 Ocean Plan Section III.C.4.j states that, "Discharge requirements shall also specify effluent limitations in terms of mass emission rate limits utilizing [2005 Ocean Plan Equation No. 3]." Staff calculated maximum allowable mass-based effluent limits, where the mass loading in pounds per day = $8.34 \times C_e \times Q$.

where:

C_e = the effluent concentration limit, in mg/L;

Q = the flow rate observed over the concentration limit's period (e.g., daily, weekly/7-day, monthly/30-day), in millions of gallons per day (MGD), and;

The conversion factor of 8.34 has units of [(lbs/Million Gallons) / (mg/L)].

Example Calculation of WQBEL Concentration (Using Arsenic as an example):

From the 2005 Ocean Plan Table B:

C_o (the daily maximum water quality objective for Arsenic) = $32 \mu\text{g/L}$;

C_s (according to the table of background seawater concentrations for Arsenic) = $3 \mu\text{g/L}$, and;

D_m (the minimum probable initial dilution) = 89.

Therefore:

Using the 2005 Ocean Plan Equation No. 1, the calculated daily maximum WQBEL for Arsenic (C_e) = $32 + 89(32 - 3)$, or $C_e = 2,613 \mu\text{g/L}$, or 2.6 mg/L using two significant figures.

Example Calculation of QBEL Maximum Allowable Mass Loading (Using the Arsenic effluent limits calculated above as an example):

Q (the maximum permitted flow) = 1.5 million gallons per day.

Ce = 2.613 mg/L

Therefore:

Using the 2005 Ocean Plan Equation No. 3, the mass loading limit for Arsenic = $8.34 \times 2.613 \times 1.5 = 33 \text{ lbs/day}$, using two significant figures.

Summary of Water Quality-Based Effluent Limitations
Discharge Point 001

Effluent Limitations Derived from the 2005 Ocean Plan Table A

Parameter	Units	Effluent Limitations		
		30-day Average	7-day Average	Maximum Daily
pH	pH units	6 to 9 at all times		
Grease & Oil	mg/L	25	40	75
	lbs/day	310*	500*	940*
Settleable Solids	mL/L	1.0	1.5	3.0
Turbidity	NTU	75	100	230

* For flows less than 1.5 MGD, mass emission rates shall not exceed the "Maximum Allowable Mass Emissions Rate."

Effluent Limitations for the Protection of
Marine Aquatic Life – Derived from the 2005 Ocean Plan Table B

	Units of Measurement	6-Month Median	Daily Maximum	Instantaneous Maximum
Arsenic	µg/L	450	2,600	6,900
	lb/Day	5.7	33	87
Cadmium	µg/L	90	360	900
	lb/Day	1.1	4.5	11
Chromium (Hexavalent) ¹	µg/L	180	720	1800
	lb/Day	2.3	9.0	23
Copper	µg/L	92	900	2500
	lb/Day	1.2	11	32
Lead	µg/L	180	720	1,800
	lb/Day	2.3	9.0	23
Mercury	µg/L	3.6	14	36
	lb/Day	0.045	0.18	0.45

**Effluent Limitations for the Protection of
 Marine Aquatic Life – Derived from the 2005 Ocean Plan Table B**

	Units of Measurem ent	6-Month Median	Daily Maximum	Instantaneous Maximum
Nickel	$\mu\text{g/L}$	450	1,800	4,500
	lb/Day	5.6	23	56
Selenium	$\mu\text{g/L}$	1,400	5,400	14,000
	lb/Day	17	68	170
Silver	$\mu\text{g/L}$	49	240	620
	lb/Day	0.61	3.0	7.7
Zinc	$\mu\text{g/L}$	1,200	6,500	17,000
	lb/Day	14	81	220
Cyanide ²	$\mu\text{g/L}$	90	360	900
	lb/Day	1.1	4.5	11
Total Chlorine Residual ³	$\mu\text{g/L}$	180	720	5400
	lb/Day	2.3	9.0	68
Ammonia (as N)	$\mu\text{g/L}$	54,000	220,000	540,000
	lb/Day	680	2,700	6,800
Chronic Toxicity	TUc	-----	76	-----
Acute Toxicity	TUa	-----	2.0	-----
Phenolic Compounds (non-chlorinated)	$\mu\text{g/L}$	2,700	11,000	27,000
	lb/Day	34	140	340
Chlorinated Phenolics	$\mu\text{g/L}$	90	360	900
	lb/Day	1.1	4.5	11
Endosulfan	$\mu\text{g/L}$	0.81	1.6	2.4
	lb/Day	0.01	0.02	0.03
Endrin	$\mu\text{g/L}$	0.18	0.36	0.54
	lb/Day	0.0023	0.0045	0.0068
HCH	$\mu\text{g/L}$	0.36	0.72	1.1
	lb/Day	0.0045	0.009	0.014
Radioactivity	Not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30253 of the California Code of Regulations. Reference to Section 30253 is prospective, including future changes to any incorporated provisions of federal law, as the changes take effect.			

**Effluent Limitations for the Protection Of Human Health –
 Non-Carcinogens – Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
Acrolein	$\mu\text{g/L}$	20,000
	lb/Day	250
Antimony	$\mu\text{g/L}$	110,000
	lb/Day	1,400
bis(2-chloroethoxy) methane	$\mu\text{g/L}$	400
	lb/Day	5.0
bis(2-chloroisopropyl)ether	$\mu\text{g/L}$	110,000
	lb/Day	1,400
chlorobenzene	$\mu\text{g/L}$	51,000
	lb/Day	640
chromium (III)	$\mu\text{g/L}$	17,000,000
	lb/Day	210,000
di-n-butyl phthalate	$\mu\text{g/L}$	320,000
	lb/Day	3,900
dichlorobenzenes	$\mu\text{g/L}$	460,000
	lb/Day	5,700
diethyl phthalate	$\mu\text{g/L}$	3,000,000
	lb/Day	37,000
dimethyl phthalate	$\mu\text{g/L}$	74,000,000
	lb/Day	920,000
4,6-dinitro-2-methylphenol	$\mu\text{g/L}$	20,000
	lb/Day	250
2,4-dinitrophenol	$\mu\text{g/L}$	360
	lb/Day	4.5
ethylbenzene	$\mu\text{g/L}$	370,000
	lb/Day	4,600
fluoranthene	$\mu\text{g/L}$	1,400
	lb/Day	17
hexachlorocyclopentadiene	$\mu\text{g/L}$	5,200
	lb/Day	65
nitrobenzene	$\mu\text{g/L}$	440
	lb/Day	5.5
thallium	$\mu\text{g/L}$	180
	lb/Day	2.3
toluene	$\mu\text{g/L}$	7,700,000
	lb/Day	96,000
tributyltin	$\mu\text{g/L}$	0.14
	lb/Day	0.0016

**Effluent Limitations for the Protection Of Human Health –
 Non-Carcinogens – Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
1,1,1-trichloroethane	µg/L	49,000,000
	lb/Day	610,000

**Effluent Limitations for the Protection Of Human Health – Carcinogens – Derived
 from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
acrylonitrile	µg/L	9.0
	lb/Day	0.11
aldrin	µg/L	0.002
	lb/Day	0.000025
benzene	µg/L	530
	lb/Day	6.6
benzidine	µg/L	0.0062
	lb/Day	0.000078
beryllium	µg/L	3.0
	lb/Day	0.037
bis(2-chloroethyl)ether	µg/L	4.1
	lb/Day	0.05
bis(2-ethylhexyl)phthalate	µg/L	320
	lb/Day	3.9
carbon tetrachloride	µg/L	81
	lb/Day	1.0
chlordane	µg/L	0.0021
	lb/Day	0.00003
chlorodibromomethane	µg/L	770
	lb/Day	9.7
chloroform	µg/L	12,000
	lb/Day	150
DDT	µg/L	0.015
	lb/Day	0.00019
1,4-dichlorobenzene	µg/L	1,600
	lb/Day	20
3,3-dichlorobenzidine	µg/L	0.73
	lb/Day	0.0091
1,2-dichloroethane	µg/L	2,500
	lb/Day	32
1,1-dichloroethylene	µg/L	81

**Effluent Limitations for the Protection Of Human Health – Carcinogens – Derived
 from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
	lb/Day	1.0
dichlorobromomethane	µg/L	560
	lb/Day	7.0
dichloromethane	µg/L	41,000
	lb/Day	510
1,3-dichloropropene	µg/L	800
	lb/Day	10
dieldrin	µg/L	0.0036
	lb/Day	0.000045
2,4-dinitrotoluene	µg/L	230
	lb/Day	2.9
1,2-diphenylhydrazine	µg/L	14
	lb/Day	0.18
halomethanes	µg/L	12,000
	lb/Day	150
heptachlor	µg/L	0.0045
	lb/Day	0.000056
heptachlor epoxide	µg/L	0.0018
	lb/Day	0.000023
hexachlorobenzene	µg/L	0.019
	lb/Day	0.00024
hexachlorobutadiene	µg/L	1,300
	lb/Day	16
hexachloroethane	µg/L	230
	lb/Day	2.8
isophorone	µg/L	66,000
	lb/Day	820
N-nitrosodimethylamine	µg/L	660
	lb/Day	8.2
N-nitrosodi-N-propylamine	µg/L	34
	lb/Day	0.43
N-nitrosodiphenylamine	µg/L	230
	lb/Day	2.8
PAHs	µg/L	0.79
	lb/Day	0.0099
PCBs	µg/L	0.0017
	lb/Day	0.000021
TCDD equivalents	µg/L	0.00000035
	lb/Day	0.0000000044
1122-tetrachloroethane	µg/L	210

**Effluent Limitations for the Protection Of Human Health – Carcinogens – Derived
 from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average
	lb/Day	2.6
tetrachloroethylene	µg/L	180
	lb/Day	2.3
toxaphene	µg/L	0.019
	lb/Day	0.00024
trichloroethylene	µg/L	2,400
	lb/Day	30
1,1,2-trichloroethane	µg/L	850
	lb/Day	11
2,4,6-trichlorophenol	µg/L	26
	lb/Day	0.33
vinyl chloride	µg/L	3,200
	lb/Day	41

5. Whole Effluent Toxicity (WET)

The 2005 Ocean Plan Table B includes daily maximum water quality objectives for acute and chronic toxicity.

Acute Toxicity

According to the 2005 Ocean Plan Section III.C.4.b, the mixing zone for the acute toxicity objective shall be ten percent (10%) of the distance from the edge of the outfall structure to the edge of the chronic mixing zone (zone of initial dilution). There is no vertical limitation on this zone. The effluent limitation for the acute toxicity objective listed in the 2005 Ocean Plan Table B shall be determined through the use of the 2005 Ocean Plan Equation No. 2:

$$C_e = C_a + (0.1) D_m (C_a)$$

where:

C_a = the concentration (water quality objective) to be met at the edge of the acute mixing zone, and;

D_m = minimum probable initial dilution expressed as parts seawater per part wastewater (This equation applies only when $D_m > 24$).

so,

$C_a = 0.3$ acute toxicity units, or TU_a, and;

$D_m = 89$

Therefore,

$$C_e = 0.3 + [0.1 \times 89 \times 0.3]$$

$C_e = 2.97$ TUa (this value is also shown in the above tables in Fact Sheet Section C.4)

Chronic Toxicity

The 2005 Ocean Plan Section III.C.4.c(4) states that, "Dischargers shall conduct chronic toxicity testing if the minimum initial dilution of the effluent falls below 100:1 at the edge of the mixing zone." The Discharger's minimum initial dilution is 89:1.

The daily maximum chronic toxicity effluent limit is based on the 2005 Ocean Plan Table B chronic toxicity water quality objective. The effluent limit is calculated using the 2005 Ocean Plan Equation No. 1 as discussed above in Fact Sheet Section C.4.

Toxicity Identification / Reduction Evaluations

The 2005 Ocean Plan Section III.C.10 states:

If a discharge consistently exceeds an effluent limitation based on a toxicity objective in Table B, a toxicity reduction evaluation (TRE) is required. The TRE shall include all reasonable steps to identify the source of toxicity. Once the source(s) of toxicity is identified, the discharger shall take all reasonable steps necessary to reduce toxicity to the required level. The following shall be incorporated into waste discharge requirements: (1) a requirement to conduct a TRE if the discharge consistently exceeds its toxicity effluent limitation, and (2) a provision requiring a discharger to take all reasonable steps to reduce toxicity once the source of toxicity is identified.

Based on the above, where toxicity monitoring shows a violation of the permit's toxicity limitations, the Discharger shall increase the frequency of toxicity testing to once per week and submit the data within 15 days of the conclusion of each weekly test to the Central Coast Water Board's Executive Officer. The Executive Officer will determine whether to initiate enforcement action or whether the Discharger will be required to implement a Toxicity Reduction Evaluation (TRE) requirements, which include conducting a Toxicity Identification Evaluation (TIE).

The basis of the TRE shall be EPA's *Methods for Aquatic Toxicity Identification Evaluations: Phase I, Toxicity Characterization Procedures*, 2nd Edition, 1991b (EPA 600-6-91-003), *Methods for Aquatic Toxicity Identification Evaluations: Phase II, Toxicity Identification Procedures for Samples Exhibiting Acute and Chronic Toxicity*, 1993a (EPA 600-R-92-080), *Methods for Aquatic Toxicity Identification Evaluations: Phase III, Toxicity Confirmation Procedures for Samples Exhibiting Acute and Chronic Toxicity*, 1993b (EPA 600-R-92-081), and *Toxicity*

Reduction Evaluation Guidance for Municipal Wastewater Treatment Plants (EPA 833-B-99-002), August 1999, or revised editions.

6. Total Coliform Effluent Limitations

The seven-day median effluent total coliform limitation (23/100 mL) and the maximum total coliform limitation (2,300/100 mL) were established in Order No. 01-116 based on the California Department of Health Services' *Uniform Guidelines for Wastewater Disinfection*. This Order maintains these limits.

D. Final Effluent Limitations

Summary of Final Effluent Limitations Discharge Point 001

Effluent Limitations Derived from the 2005 Ocean Plan Table A

Parameter	Units	30-day Average	7-day Average	Maximum Daily	Basis
Carbonaceous Biochemical Oxygen Demand, 5-day (CBOD ₅)	mg/L	25	40	85	40 CFR 133.102, BPJ and anti-backsliding for max. daily
	% removal	Not less than 85%	N/A	N/A	40 CFR 133.102
	lbs/day	310*	500*	1,100*	40 CFR 122.45(f)(2)
Total Suspended Solids (TSS)	mg/L	30	45	90	40 CFR 133.102, BPJ and anti-backsliding for max. daily
	% removal	Not less than 85%	N/A	N/A	40 CFR 133.102
	lbs/day	380*	570*	1,100*	40 CFR 122.45(f)(2)
pH	pH units	Within limits of 6.0 to 9.0 at all times			2005 Ocean Plan Table A
Grease & Oil	mg/L	25	40	75	2005 Ocean Plan Table A
	lbs/day	310*	500*	940*	40 CFR 122.45(f)(2)
Settleable Solids	mL/L	1.0	1.5	3.0	2005 Ocean Plan Table A
Turbidity	NTU	75	100	230	2005 Ocean Plan Table A

* For flows less than 1.5 MGD, mass emissions rates shall not exceed the "Maximum Allowable Mass Emissions Rate."

**Effluent Limitations for the Protection of
 Marine Aquatic Life – Derived from the 2005 Ocean Plan Table B**

Constituent	Units of Measurement	6-Month Median	Daily Maximum	Instantaneous Maximum	Basis
Arsenic	ug/L	450	2,600	6,900	2005 Ocean Plan Table B
	lb/Day	5.7	33	87	
Cadmium	ug/L	90	360	900	2005 Ocean Plan Table B
	lb/Day	1.1	4.5	11	
Chromium (Hexavalent) ¹	ug/L				2005 Ocean Plan Table B
		180	720	1800	
	lb/Day	2.3	9.0	23	
Copper	ug/L	92	900	2500	2005 Ocean Plan Table B
	lb/Day	1.2	11	32	
Lead	ug/L	180	720	1,800	2005 Ocean Plan Table B
	lb/Day	2.3	9.0	23	
Mercury	ug/L	3.6	14	36	2005 Ocean Plan Table B
	lb/Day	0.045	0.18	0.45	
Nickel	ug/L	450	1,800	4,500	2005 Ocean Plan Table B
	lb/Day	5.6	23	56	
Selenium	ug/L	1,400	5,400	14,000	2005 Ocean Plan Table B
	lb/Day	17	68	170	
Silver	ug/L	49	240	620	2005 Ocean Plan Table B
	lb/Day	0.61	3.0	7.7	
Zinc	ug/L	1,200	6,500	17,000	2005 Ocean Plan Table B
	lb/Day	14	81	220	
Cyanide ²	ug/L	90	360	900	2005 Ocean Plan Table B
	lb/Day	1.1	4.5	11	
Total Chlorine Residual ³	ug/L				2005 Ocean Plan Table B
		180	720	5400	
	lb/Day	2.3	9.0	68	
Ammonia (as N)	ug/L				2005 Ocean Plan Table B
		54,000	220,000	540,000	
	lb/Day	680	2,700	6,800	
Chronic Toxicity	TUc	----	76	----	2005 Ocean Plan Table B
Acute Toxicity	TUa	----	2.0	----	2005 Ocean Plan Table B

**Effluent Limitations for the Protection of
Marine Aquatic Life – Derived from the 2005 Ocean Plan Table B**

Constituent	Units of Measurement	6-Month Median	Daily Maximum	Instantaneous Maximum	Basis
Phenolic Compounds (non-chlorinated)	µg/L	2,700	11,000	27,000	2005 Ocean Plan Table B
	lb/Day	34	140	340	
Chlorinated Phenolics	µg/L	90	360	900	2005 Ocean Plan Table B
	lb/Day	1.1	4.5	11	
Endosulfan	µg/L	0.81	1.6	2.4	2005 Ocean Plan Table B
	lb/Day	0.01	0.02	0.03	
Endrin	µg/L	0.18	0.36	0.54	2005 Ocean Plan Table B
	lb/Day	0.0023	0.0045	0.0068	
HCH	µg/L	0.36	0.72	1.1	2005 Ocean Plan Table B
	lb/Day	0.0045	0.009	0.014	
Radioactivity	Not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30253 of the California Code of Regulations. Reference to Section 30253 is prospective, including future changes to any incorporated provisions of federal law, as the changes take effect.				2005 Ocean Plan Table B

**Effluent Limitations for the Protection Of Human Health –
Non-Carcinogens – Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average	Basis
Acrolein	µg/L	20,000	2005 Ocean Plan Table B
	lb/Day	250	
Antimony	µg/L	110,000	2005 Ocean Plan Table B
	lb/Day	1,400	
bis(2-chloroethoxy) methane	µg/L	400	2005 Ocean Plan Table B
	lb/Day	5.0	
bis(2-chloroisopropyl) ether	µg/L	110,000	2005 Ocean Plan Table B
	lb/Day	1,400	
chlorobenzene	µg/L	51,000	2005 Ocean Plan Table B
	lb/Day	640	
chromium (III)	µg/L	17,000,000	2005 Ocean Plan Table B

**Effluent Limitations for the Protection Of Human Health –
 Non-Carcinogens – Derived from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average	Basis
	lb/Day	210,000	
di-n-butyl phthalate	µg/L	320,000	2005 Ocean Plan Table B
	lb/Day	3,900	
dichlorobenzenes	µg/L	460,000	2005 Ocean Plan Table B
	lb/Day	5,700	
diethyl phthalate	µg/L	3,000,000	2005 Ocean Plan Table B
	lb/Day	37,000	
dimethyl phthalate	µg/L	74,000,000	2005 Ocean Plan Table B
	lb/Day	920,000	
4,6-dinitro-2-methylphenol	µg/L	20,000	2005 Ocean Plan Table B
	lb/Day	250	
2,4-dinitrophenol	µg/L	360	2005 Ocean Plan Table B
	lb/Day	4.5	
ethylbenzene	µg/L	370,000	2005 Ocean Plan Table B
	lb/Day	4,600	
fluoranthene	µg/L	1,400	2005 Ocean Plan Table B
	lb/Day	17	
hexachlorocyclopentadiene	µg/L	5,200	2005 Ocean Plan Table B
	lb/Day	65	
nitrobenzene	µg/L	440	2005 Ocean Plan Table B
	lb/Day	5.5	
thallium	µg/L	180	2005 Ocean Plan Table B
	lb/Day	2.3	
toluene	µg/L	7,700,000	2005 Ocean Plan Table B
	lb/Day	96,000	
tributyltin	µg/L	0.14	2005 Ocean Plan Table B
	lb/Day	0.0016	
1,1,1-trichloroethane	µg/L	49,000,000	2005 Ocean Plan Table B
	lb/Day	610,000	

**Effluent Limitations for the Protection Of Human Health – Carcinogens – Derived
 from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average	Basis
acrylonitrile	µg/L	9.0	2005 Ocean Plan Table B
	lb/Day	0.11	B

**Effluent Limitations for the Protection Of Human Health – Carcinogens – Derived
from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average	Basis
aldrin	$\mu\text{g/L}$	0.002	2005 Ocean Plan Table B
	lb/Day	0.000025	
benzene	$\mu\text{g/L}$	530	2005 Ocean Plan Table B
	lb/Day	6.6	
benzidine	$\mu\text{g/L}$	0.0062	2005 Ocean Plan Table B
	lb/Day	0.000078	
beryllium	$\mu\text{g/L}$	3.0	2005 Ocean Plan Table B
	lb/Day	0.037	
bis(2-chloroethyl)ether	$\mu\text{g/L}$	4.1	2005 Ocean Plan Table B
	lb/Day	0.05	
bis(2-ethylhexyl)phthalate	$\mu\text{g/L}$	320	2005 Ocean Plan Table B
	lb/Day	3.9	
carbon tetrachloride	$\mu\text{g/L}$	81	2005 Ocean Plan Table B
	lb/Day	1.0	
chlordane	$\mu\text{g/L}$	0.0021	2005 Ocean Plan Table B
	lb/Day	0.00003	
chlorodibromomethane	$\mu\text{g/L}$	770	2005 Ocean Plan Table B
	lb/Day	9.7	
chloroform	$\mu\text{g/L}$	12,000	2005 Ocean Plan Table B
	lb/Day	150	
DDT	$\mu\text{g/L}$	0.015	2005 Ocean Plan Table B
	lb/Day	0.00019	
1,4-dichlorobenzene	$\mu\text{g/L}$	1,600	2005 Ocean Plan Table B
	lb/Day	20	
3,3-dichlorobenzidine	$\mu\text{g/L}$	0.73	2005 Ocean Plan Table B
	lb/Day	0.0091	
1,2-dichloroethane	$\mu\text{g/L}$	2,500	2005 Ocean Plan Table B
	lb/Day	32	
1,1-dichloroethylene	$\mu\text{g/L}$	81	2005 Ocean Plan Table B
	lb/Day	1.0	
dichlorobromomethane	$\mu\text{g/L}$	560	2005 Ocean Plan Table B
	lb/Day	7.0	
dichloromethane	$\mu\text{g/L}$	41,000	2005 Ocean Plan Table B
	lb/Day	510	
1,3-dichloropropene	$\mu\text{g/L}$	800	2005 Ocean Plan Table B
	lb/Day	10	
dieldrin	$\mu\text{g/L}$	0.0036	2005 Ocean Plan Table B
	lb/Day	0.000045	
2,4-dinitrotoluene	$\mu\text{g/L}$	230	2005 Ocean Plan Table B
	lb/Day	2.9	

**Effluent Limitations for the Protection Of Human Health – Carcinogens – Derived
from the 2005 Ocean Plan Table B**

Chemical	Units of Measurement	30-day average	Basis
1,2-diphenylhydrazine	µg/L	14	2005 Ocean Plan Table
	lb/Day	0.18	B
halomethanes	µg/L	12,000	2005 Ocean Plan Table
	lb/Day	150	B
heptachlor	µg/L	0.0045	2005 Ocean Plan Table
	lb/Day	0.000056	B
heptachlor epoxide	µg/L	0.0018	2005 Ocean Plan Table
	lb/Day	0.000023	B
hexachlorobenzene	µg/L	0.019	2005 Ocean Plan Table
	lb/Day	0.00024	B
hexachlorobutadiene	µg/L	1,300	2005 Ocean Plan Table
	lb/Day	16	B
hexachloroethane	µg/L	230	2005 Ocean Plan Table
	lb/Day	2.8	B
isophorone	µg/L	66,000	2005 Ocean Plan Table
	lb/Day	820	B
N-nitrosodimethylamine	µg/L	660	2005 Ocean Plan Table
	lb/Day	8.2	B
N-nitrosodi-N-propylamine	µg/L	34	2005 Ocean Plan Table
	lb/Day	0.43	B
N-nitrosodiphenylamine	µg/L	230	2005 Ocean Plan Table
	lb/Day	2.8	B
PAHs	µg/L	0.79	2005 Ocean Plan Table
	lb/Day	0.0099	B
PCBs	µg/L	0.0017	2005 Ocean Plan Table
	lb/Day	0.000021	B
TCDD equivalents	µg/L	0.00000035	2005 Ocean Plan Table
	lb/Day	0.000000004	B
1122-tetrachloroethane	µg/L	210	2005 Ocean Plan Table
	lb/Day	2.6	B
tetrachloroethylene	µg/L	180	2005 Ocean Plan Table
	lb/Day	2.3	B
toxaphene	µg/L	0.019	2005 Ocean Plan Table
	lb/Day	0.00024	B
trichloroethylene	µg/L	2,400	2005 Ocean Plan Table
			B

Effluent Limitations for the Protection Of Human Health – Carcinogens – Derived from the 2005 Ocean Plan Table B

Chemical	Units of Measurement	30-day average	Basis
	lb/Day	30	
1,1,2-trichloroethane	µg/L	850	2005 Ocean Plan Table B
	lb/Day	11	
2,4,6-trichlorophenol	µg/L	26	2005 Ocean Plan Table B
	lb/Day	0.33	
vinyl chloride	µg/L	3,200	2005 Ocean Plan Table B
	lb/Day	41	

1. Satisfaction of Anti-Backsliding Requirements

All effluent limitations in this Order are at least as stringent as the effluent limitations in the previous Order. Other minor increases and decreases in effluent limits are due to staff's use of two significant figures in calculations, based on the 2005 Ocean Plan water quality objectives.

2. Satisfaction of Antidegradation Policy

40 CFR Section 131.12 requires that the state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in State Water Board Resolution No. 68-16. Resolution No. 68-16 incorporates the federal antidegradation policy where the federal policy applies under federal law. Resolution No. 68-16 requires that existing quality of waters be maintained unless degradation is justified based on specific findings. The Regional Water Board's Basin Plan implements, and incorporates by reference, both the state and federal antidegradation policies. As discussed in detail in the Fact Sheet the permitted discharge is consistent with the antidegradation provision of section 131.12 and State Water Board Resolution No. 68-16.

3. Stringency of Requirements for Individual Pollutants

This Order contains both technology-based and water quality-based effluent limitations for individual pollutants. The technology-based effluent limitations consist of restrictions on pollutants listed in Table IV-1 of this Order. Restrictions on the pollutants listed are discussed in Section IV.C.4. of the Fact Sheet. This Order's technology-based pollutant restrictions implement the minimum, applicable federal technology-based requirements.

4. Changes in Effluent Limitations

- a. Addition of Carcinogen Parameters – Staff added chlorodibromomethane, dichlorobromomethane, heptachlor-epoxide, and N-nitrosodi-N-propylamine

effluent limitation in Table IV-4 in accordance with the 2005 Ocean Plan Table B parameters. Effluent limitation were derived using the 2005 Ocean Plan Section III.C.4.a. Equation No. 1.

- b. Revision of Acute Toxicity effluent limitation - Staff changed the proposed acute toxicity effluent limitation in accordance with the 2005 Ocean Plan Section III.C.4.b as noted above. The revised effluent limitation is less stringent than the acute toxicity effluent limitation in the previous Order (Order No. 01-116). However, the revised acute toxicity effluent limitation is consistent with 40 CFR 122.44 (l)(2)(i)(B)(1), which states that "a permit may be renewed, reissued, or modified to contain a less stringent effluent limitation applicable to a pollutant, if information is available, which was not available at the time of permit issuance (other than revised regulation, guidance, or test methods) and which have justified the application of a less stringent effluent limitation at the time of permit issuance." Furthermore, the revised acute toxicity effluent limitation is now located in Table IV-2 to remain consistent with the 2005 Ocean Plan.
- c. Substitution of BOD₅ with CBOD₅ – Staff substituted biochemical oxygen demand (BOD) with carbonaceous biochemical oxygen demand (CBOD). The Discharger had requested this substitution on the basis that CBOD is more representative of the treatment process of the facility. Using a nitrification inhibitor for calculated CBOD would stabilize the BOD test and in turn demonstrate removal efficiency and eliminate the nitrite/nitrate inferences.

Furthermore, 40 CFR Section 133.102(a)(4) allow this substitution provided that the technology-based effluent limitations identified in 40 CFR Section 133.102 (a)(4)(i – iii), which states:

- 1) The 30-day average shall not exceed 25 mg/L.
- 2) The 7-day average shall not exceed 40 mg/L.
- 3) The 30-day average percent removal shall not be less than 85 percent.

Staff established the maximum daily effluent limits for CBOD₅ on best professional judgment in previous permits. In accordance with anti-backsliding provisions, staff recommends maintaining these limits.

V. RATIONALE FOR RECEIVING WATER LIMITATIONS

A. Surface Water

Staff transcribed receiving water limitations from the 2005 Ocean Plan Section II, Basin Plan Chapter III, and California Code of Regulations, Title 17, Sections 7957 and 7958. Staff used footnotes within the permit to indicate the source of each limit.

The California Code of Regulations (CCR), Title 17, Section 7958, establishes the minimum protective bacteriological standards for waters adjacent to public beaches and public water-contact sports areas. The State Water Board amended the 2005 Ocean Plan on January 20, 2005 to make the bacteriological standards identical to Title 17, Section 7958. EPA approval of the amendment is pending. However, on December 16, 2004, EPA promulgated coastal recreation standards that include the same requirements. Staff's review of the 2005 Ocean Plan standards and 17 CCR resulted in the addition of the receiving water enterococcus limits. Total and fecal coliform receiving water limitations were found to be practically equivalent between the two sets of standards.

Receiving water quality is a result of many factors, some unrelated to the discharge, such as non point source wastewater. This Order considers these factors and is designed to minimize the influence of the discharge to the receiving water. Compliance with Receiving Water Limitations shall be determined from samples collected at stations representative of the area of potential influence but outside the zone of initial dilution.

VI. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

40 CFR Section 122.48 requires all NPDES permits to specify recording and reporting of monitoring results. Sections 13267 and 13383 of the California Water Code authorize the Water Boards to require technical and monitoring reports. The Monitoring and Reporting Program, Attachment E of this Order, establishes monitoring and reporting requirements to implement federal and state requirements. The following provides the rationale for the monitoring and reporting requirements for this facility.

The 2005 Ocean Plan Section III.G requires that Regional Boards shall require dischargers to conduct self-monitoring programs and submit reports necessary to determine compliance with the waste discharge requirements, and may require dischargers to contract with agencies or persons acceptable to the Regional Board to provide monitoring reports. Monitoring provisions contained in waste discharge requirements shall be in accordance with the Monitoring Procedures provided in the 2005 Ocean Plan Appendix III.

The Monitoring and Reporting Program (MRP) is required to: 1) Document short and long term effects of the discharge on receiving waters, sediments, biota, and on beneficial uses of the receiving water; 2) Assess compliance with the 2005 Ocean Plan, and; 3) Determine

compliance with National Pollutant Discharge Elimination System (NPDES) terms and conditions.

A. Influent Monitoring

Influent monitoring is intended to: 1) Determine compliance with NPDES permit conditions and water quality standards; 2) Assess treatment plant performance, and; 3) Assess the effectiveness of the pretreatment program or source control ordinances.

B. Effluent Monitoring

1. **Intent of Effluent Monitoring** – Effluent monitoring is intended to: 1) Determine compliance with NPDES permit conditions and water quality standards; 2) Identify operational problems in order to improve plant performance, and; 3) Provide information on waste characteristics and flows for use in interpreting water quality and biological data.

2. Changes in Monitoring Requirements

- a. **Addition of Fecal Coliform Monitoring** – Staff added effluent fecal coliform monitoring to the preexisting effluent total coliform monitoring contained in the previous MRP. The 2005 Ocean Plan's bacterial water quality objectives are expressed in terms of total and fecal coliforms. Effluent coliform monitoring substitutes for regular receiving water monitoring, so effluent monitoring should provide representative data for both total and fecal coliforms. Receiving water sampling is triggered by the exceedance of the maximum effluent total coliform limit, and includes the analysis of total and fecal coliforms in the receiving water. Effluent fecal coliform data will also provide a basis for comparing effluent and receiving water fecal coliform levels when the Discharger conducts receiving water sampling.
- b. **Addition of Monitoring to Evaluate Compliance with Effluent Limits** – Staff added selenium, endosulfan, endrin, HCH (the sum of alpha, beta, gamma (lindane) and delta isomers of hexachlorocyclohexane), and radioactivity effluent monitoring requirements in MRP Table IV-2. The existing Order No. 01-116 is based on the 1997 version of the 2005 Ocean Plan, and included water quality objectives for each of these added parameters. Though the previous Order included effluent limits for each parameter (except radioactivity), it did not include monitoring requirements. Central Coast Water Board staff and State Water Board staff recommend that Orders include monitoring provisions for parameters with effluent limits. Monitoring provisions for effluent limit parameters are based on the 2005 Ocean Plan Section III.G.

In addition, Appendix III of the 2005 Ocean Plan requires at least one complete scan of the 2005 Ocean Plan Table B parameters annually for discharges in the range of one to ten MGD, which includes this Discharger. These added parameters are part of the 2005 Ocean Plan Table B, and therefore should be analyzed at least annually.

- c. Change in the 2005 Ocean Plan Table B Sampling Frequency – Staff changed the minimum sampling frequency for constituents in MRP Tables IV-2, IV-3, and IV-4 (representing 2005 Ocean Plan Table B parameters) from once during the permit term, to once per year. Appendix III of the 2005 Ocean Plan requires at least one complete scan of the 2005 Ocean Plan Table B parameters annually for discharges in the range of one to ten MGD, which includes the Discharger. The Discharger's compliance history does not indicate a need to monitor more frequently than the 2005 Ocean Plan's minimum requirements.

Effluent sampling frequency for the 2005 Ocean Plan Table B parameters in MRP No. 01-116 was required once in August 2004. If the Discharger did not find the constituents in significant quantities exceeding effluent limitations in the August 2004 sampling, in lieu of sampling they were allowed to provide annually certification that the constituents were not added to the waste stream.

Section G.2 of the 2001 Ocean Plan, *Monitoring Program*, contained language apparently allowing such certification. The 2005 Ocean Plan removed this language and changes to MRP No. R3-2006-0084 eliminate the certification clause.

Appendix III of the 2005 Ocean Plan, *Standard Monitoring Procedures*, establishes minimum effluent sampling requirements for Table B parameters depending on wastewater flow rate. For discharges between one and ten million gallons per day, the minimum monitoring frequency is one complete scan of Table B parameters annually. The Discharger's permitted flow rate is 1.5 MGD.

The monitoring frequencies listed in the 2005 Ocean Plan Appendix III represent the State Water Board's direction for what constitutes an adequate monitoring program for compliance with Table B water quality objectives or, equivalently, with effluent limitations derived from Table B objectives.

Based on the above, MRP No. R3-2006-0084, Tables IV-2, IV-3, and IV-4 require annual effluent sampling for all the 2005 Ocean Plan Table B parameters, without the option of providing certification in lieu of monitoring. The timing of sampling is varied each year to represent different months of the year during typically dry-weather conditions.

The proposed sampling will continue to ensure an adequate data set is available before the next permit renewal, and may serve the State Water Board to assess the attainability of new or revised water quality objectives.

- d. Sampling Type – Regarding sample type (i.e., grab vs. 24-hour composite), staff added the following language to MRP Section IV, "Where specified in Table IV-2, IV-3, and IV-4, 24-hour composite samples shall be collected when appropriate for the constituent and the applicable approved laboratory analytical methods. The Discharger may otherwise employ grab samples." 24-hour composite samples provide data that are more representative because they are collected over a longer period and can better account for the variability of domestic and

municipal wastewater. Wherever feasible for a given parameter, it is therefore desirable to utilize this sample type. Staff recognizes that it is not practical to use 24-hour composite samples for some constituents due to characteristics such as volatility or degradation. The tables list the 24-hour composite sample as the preferred sample type. The above language, however, allows the Discharger to work with its certified laboratory to determine the most appropriate sample type.

- e. Addition of Constituents Introduced in the 2001 Ocean Plan – Staff added monitoring requirements for chlorodibromomethane, dichlorobromomethane, heptachlor epoxide, and N-nitrosodi-N-propylamine. These constituents were introduced in the 2001 Ocean Plan and are maintained in the 2005 Ocean Plan.
- f. Addition of Remaining Priority Pollutant Monitoring – MRP Table IV-5 lists the priority pollutants which are not included in the 2005 Ocean Plan Table B, but for which monitoring data is required pursuant to 40 CFR 131.36 (7-1-03 Edition), and EPA Application Form 3510-2A (Rev. 1-99).

U.S. EPA Application Form 3510-2A (Rev. 1-99), which is a required part of the Discharger's Report of Waste Discharge every five years, requires a minimum of three pollutant scans within four and one-half years of the date of the application. The toxic pollutants listed in the application include the 2005 Ocean Plan Table B parameters as well as other toxic pollutants not listed in the 2005 Ocean Plan. 40 CFR 131.36 (July 1, 2003 Edition) contains a similar priority toxic pollutant listing. MRP Table IV-5 lists these remaining priority toxic pollutants and requires annual sampling.

Of the toxic pollutants listed in MRP Table IV-5, all are common to U.S. EPA's application and 40 CFR 131.36, with the following exceptions: 1) Endrin Aldehyde is listed only in 40 CFR, and; 2) P-Chloro-M-Cresol and 4,6-Dinitro-O-Cresol are listed only in U.S. EPA's application.

Annual sampling of these remaining toxic pollutants will ensure that a complete pollutant scan is available to meet U.S. EPA's minimum application requirements upon the expiration of Order No. R3-2006-0084.

C. Whole Effluent Toxicity Testing Requirements

In accordance with the 2005 Ocean Plan, Appendix III, *Standard Monitoring Procedures*, compliance monitoring for acute toxicity shall be determined using an EPA approved protocol as provided in 40 CFR PART 136. The presence of acute toxicity will be determined as specified in *Methods for Measuring the Acute Toxicity of Effluents to Freshwater and Marine Organisms* (EPA-821-R-02-012, or subsequent editions). Acute toxicity monitoring shall be conducted using marine test species instead of freshwater species when measuring compliance. The Discharger shall use one of the approved marine test species identified in EPA-821-R-02-012, or subsequent editions.

In accordance with the 2005 Ocean Plan, Appendix III, *Standard Monitoring Procedures*, the Discharger shall use the critical life stage toxicity tests specified in the 2005 Ocean Plan Table III-1, *Approved Tests – Chronic Toxicity (TUc)* to measure chronic toxicity.

D. Receiving Water Monitoring

1. Surface Water

Receiving water monitoring is conducted to verify compliance with the 2005 Ocean Plan. Monitoring in the vicinity of the Discharger's Ocean Outfall must document water and sediment quality as well as biological communities at the "Zone of Initial Dilution" (ZID) boundary, at reference stations, and at areas beyond the ZID where discharge impacts might reasonably be expected.

- a. Staff added shore sampling language Section VI.A.1. of the MRP in order to demonstrate receiving water compliance with the 2005 Ocean Plan water quality objectives and in accordance with Section III.G. of the 2005 Ocean Plan.. This section includes trigger mechanism that explains that shore sampling shall occur if three consecutive samples of total coliform bacteria exceed 2,300 per 100 ml. Shore sampling shall encompass total, fecal coliform, and enterococcus analysis at the monitoring locations identified in Section II of the monitoring and report program (MRP). Additionally, the shore sampling must occur during dry weather conditions. Staff included the following paragraph for MRP Section VI.A.1 regarding shore station sampling triggered by effluent bacterial violations in order to obtain representative samples of outfall discharges.

"The Discharger shall to the best of its ability conduct the above receiving water sampling during dry weather or at least three days after a significant rain event. The Executive Officer may grant a discretionary exception to this sampling requirement during extreme rain events where receiving water sampling is unlikely to provide data representative of the Discharger's discharge. The Discharger shall conduct effluent total coliform, fecal coliform, and enterococcus sampling daily during such events or the subsequent period of its influence on receiving waters. Once shore station sampling can resume, effluent sampling may return to its regular schedule according the Order."

This language is based on staff's best professional judgment and recent experience during the extreme rainfall events that occurred along the Santa Barbara County coast during January 2005.

- b. Ocean sampling stations (bottom sediment) sampling language has been retained from the MRP of Order No. 01-116, except for some minor language revisions in order to maintain consistency with the statewide template and the 2005 Ocean Plan requirements.

- c. Benthic biota monitoring language remains consistent with the MRP of Order No. 01-116, except for some minor language revisions in order to maintain consistency with the statewide permitting standards and the 2005 Ocean Plan requirements.

E. Other Monitoring Requirements

1. Biosolids/Sludge Monitoring

See Section VII.B.1.a below, *Biosolids Requirements*. Staff changed MRP biosolids language according to the recommendations of U.S. EPA's Region IX Biosolids Coordinator.

2. 2005 Ocean Plan Monitoring Provisions

Staff added the following monitoring sections according to the 2005 Ocean Plan provisions (introduced in the 2001 Ocean Plan):

- a. MRP Section VIII – Minimum Levels
- b. MRP Section IX – Sample Reporting Protocols
- c. MRP Section X – Compliance Determination
- d. MRP Section XI – Pollutant Minimization Program

These sections are taken directly from the 2005 Ocean Plan for the Discharger's reference. Staff modified the language where applicable for the Discharger.

3. Rainfall

Staff added reporting of daily rainfall totals alongside facility flow measurement to facilitate the evaluation of the influence of inflow and infiltration on wastewater flows received at the facility.

VII. RATIONALE FOR PROVISIONS

A. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 CFR Section 122.41, and additional conditions applicable to specified categories of permits in accordance with section 122.42, are provided in Attachment D to the Order.

Section 122.41(a)(1) and (b) through (n) establish conditions that apply to all state-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. Section 123.25(a)(12) allows the state to omit or modify conditions to impose more stringent requirements. In accordance with section 123.25, this Order omits federal conditions that address enforcement authority specified in sections 122.41(j)(5) and (k)(2) because the enforcement authority under the California Water Code is more stringent. In lieu of these conditions, this Order incorporates by reference Water Code section 13387(e).

B. Special Provisions

1. Special Provisions for Municipal Facilities (POTWs Only)

- a. **Biosolids Requirements:** 40 CFR 122.44(b)(2) states that each NPDES permit shall include standards for sewage sludge use or disposal.

Section 13377 of the Porter-Cologne Water Quality Control Act requires waste discharge requirements to include all provisions necessary to protect beneficial uses and prevent nuisance, whether or not specified by Division 7 of that Act.

Management of all biosolids and sludge must comply with all requirements of 40 CFR Parts 257, 258, 501, and 503, including all monitoring, record-keeping, and reporting requirements. Waste discharge requirements (WDRs) issued by Regional Water Boards in California also serve as federal NPDES permits, and so are issued with full authorization from the U.S. Environmental Protection Agency. While the Central Coast Water Board has not been delegated the authority to enforce the biosolids program, as federal NPDES permits, WDRs include state and federal regulatory language applicable to a waste discharge. U.S. EPA supplied and recommends the standard language in this permit, and offered the following commentary during a NPDES permit renewal adopted by the Central Coast Water Board on October 22, 2004 (for the City of Santa Barbara).

According to the U.S. EPA Region 9 Biosolids Coordinator, it was the original intent of the Clean Water Act that biosolids conditions be placed in all NPDES permits. The intent of permit language is also to go above and beyond the minimum reporting and notification requirements contained in the 40 CFR 503 rule itself, as additional mechanisms beyond the 503 requirements are needed to require notice of violations, reporting of all use and disposal practices, interstate notification for all use and disposal practices, handling of biosolids at the plant site and prior to final use or disposal, etc.

Because dischargers may change practices within the five-year span of a permit, the standard language recommended for NPDES permits is intended to place conditions for specific use or disposal practices, which become applicable if the Discharger selects that specific use or disposal option.

The 503 rule is very clear that the preparer of the biosolids is responsible for the use or disposal. After several court cases where POTWs contracted with composters and then continued to send their biosolids to the compost sites even after it became blatantly evident that the "composters" were not composting and/or distributing the finished compost, U.S. EPA decided it was desirable to put a clause in permits clarifying that the POTW still retains responsibility for the biosolids through final use or disposal. This is a necessary incentive for POTWs to terminate a contract with composters who are not performing, and to clean up if a composter leaves the country and leaves behind the biosolids.

Where a Discharger transfers biosolids to a composter (which must test the pollutant levels of the final compost), testing of the biosolids by the Discharger prior to being blended with other biosolids is desirable from a pretreatment standpoint. Many Dischargers are required to test priority pollutants as part of the pretreatment program; however, the pretreatment requirements do not cover all the metals regulated under 40 CFR 503, or require use of the solid waste methods and conversion to 100% dry weight basis. Therefore, in some cases the 503 tests are more indicative of any source control problems. The composter typically also requires this data from a Discharger, so that the composter can identify any biosolids feedstocks with high metal concentrations.

Central Coast Water Board staff agrees with U.S. EPA that the permit should properly disclose the Discharger's responsibilities regarding biosolids disposal, and so recommends the biosolids language provided by U.S. EPA for the Order and MRP.

2. Reopener Provisions

Section VI.C.1 of this Order includes language regarding reopener provisions. This section states "This permit may be reopened and modified in accordance with federal regulations at 40 CFR Parts 122 and 124, as necessary, to include additional conditions or limitations based on newly available information or to implement any U.S. EPA approved, new federal or state objective."

3. Best Management Practices and Pollution Prevention

Section XI of the MRP of this Order addresses the development of a Pollution Minimization Program in accordance with Section III.C.9 of the 2005 Ocean Plan. However, Section IX includes language requiring the discharger to develop Pollution Minimization Program only if the Central Coast Water Board notifies the Discharger in writing. Language included in this section is consistent with the 2005 Ocean Plan.

VIII. PUBLIC PARTICIPATION

The California Regional Water Quality Control Board, Central Coast Region (Central Coast Water Board) is considering the issuance of waste discharge requirements (WDRs) that will serve as a National Pollutant Discharge Elimination System (NPDES) permit for the Montecito Sanitary District Wastewater Treatment Facility. As a step in the WDR adoption process, the Central Coast Water Board staff has developed tentative WDRs. The Central Coast Water Board encourages public participation in the WDR adoption process.

A. Notification of Interested Parties

The Central Coast Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for the discharge and has provided them with an opportunity to submit their written comments and

recommendations. Notification was provided through posting and publishing in the Santa Barbara News Press on September 13, 2006, and through direct mailing to the following known interested parties. Written comments were due no later than October 6, 2006.

- Ms. Diane Gabriel, Mr. Jim McManus, and Mr. Brett Walker, Montecito Sanitary District
- Mr. Rick Merrifield, Santa Barbara County Environmental Health Services Department
- Ms. Kira Schmidt, Channel Keepers
- Mr. Jim Maughan, State Water Resources Control Board
- Mr. Terry Oda, United States Environmental Protection Agency
- Ms. Hillary Hauser, Heal The Ocean
- Mr. Brian Trautwein, Environmental Defense Center

B. Written Comments

Comment 1: Sewage Spill Notification

Mr. Paul Jenzen of Santa Barbara County Environmental Health Services Department provided a verbal comment regarding sewage spill notification to the Santa Barbara County Environmental Health Services Department.

Staff Response 1: Staff has added spill notification language in Section XII.E. of the monitoring and reporting program. Specifically, Section XII.E.10. states "the discharger shall report SSOs to the Santa Barbara County Environmental Health Services department in accordance with California Health and Safety Code Section 5410 et seq."

Additionally, the Discharger has obtained coverage under the Statewide General Waste Discharge Requirements for Sanitary Sewer Systems (General WDRs). The General WDRs requires the discharger to notify the Central Coast Water Board as well as other appropriate agencies (i.e., County Environmental Health and Safety Department and Office of Emergency Services) if untreated or partially treated waste discharge to surface waters or has the potential to enter surface waters (Section G.4. of the General WDRs). Furthermore, Section A.4. of the General WDRs Monitoring and Reporting Program states that "reporting requirements [listed in this Section A.4] do not preclude other emergency notification requirements and timeframes mandated by other regulatory agencies (County Health Officers, local Director of Environmental Health, Regional Water Boards, or Office of Emergency Services) or State law."

Ms Diane Gabriel, Montecito Sanitary District General Manager, submitted written comments on October 5, 2006. Prior to the submittal of the written comments, two conference calls between Central Coast Water Board staff and the Discharger were conducted on October 2, 2006, and October 3, 2006. The purpose of the conference calls was to provide the Discharger with further clarification and guidance on the proposed Order. Staff included significant concerns and comments that arose from the conference calls in Comments 2 through 7. Typographical errors and minor revisions that do not alter the intent of the Order are not discussed here.

Comment 2: Receiving Water Introductory Language

The Discharger recognizes that there are factors other than the District's discharges that could cause an exceedance of applicable water quality standards. The Discharger is concerned that they may be held responsible for the actions of others and that any exceedances of the receiving water limitations will automatically constitute a violation of the Discharger's Order.

Staff Response 2: Receiving water limitations, as drafted, already limit violations to exceedances the Discharger causes. The Central Coast Water Board already has authority to require additional investigation prior to taking enforcement actions. Receiving water introductory language now states, "Receiving water limitations are based on water quality objectives contained in the Basin Plan and are a required part of this Order. The discharge shall not cause a violation of the following receiving water limitations in the Pacific Ocean. The Central Coast Water Board may require the Discharger to investigate the cause of exceedances in the receiving water before determining whether the Discharger caused any water conditions that exceed the following receiving water limitations."

Comment 3: Shore Sampling Locations

Section II of the Monitoring and Reporting Program (MRP) identifies shore sampling locations that shall be sampled pursuant to Section VI of the MRP. The monitoring location description explains that the sampling stations will be located 100 feet upcoast and downcoast. During the October 2, 2006 conference call, staff determined that sampling locations 100 feet upcoast and downcoast from the outfall would not adequately represent the discharges from the outfall and proposed to change the description to 1,000 feet upcoast and downcoast from the outfall. The Discharger was concerned with the shore sampling definition and explained that the distance upcoast and downcoast may present safety issues during sampling.

Staff Response 3: Staff concurs with the Discharger's concern. Staff has added a footnote to the shore sampling description that now states "If the sample location is not accessible at 1,000 feet, then samples shall be collected at an accessible location as close as possible to the designated location."

Comment 4: Receiving Water Sampling

In order to adequately comply with the receiving water limitations (Section V.A.1 of the Order), the Discharger had commented that enterococcus should be added to the receiving water monitoring for shore sampling.

Staff Response 4: Staff concurs with the comment and has made the appropriate addition to Section VI.A.1 of the MRP. This section now includes the sampling and analysis of total coliform, fecal coliform, and enterococcus for shore sampling.

Comment 5: Ocean Outfall Inspection

Section VII.A. Ocean Outfall Inspection, states "[a]t least once per year (in the same month annually) the Discharger shall visually inspect the entire outfall and diffuser structure (e.g., divers, dye study) to note its structural integrity and any cracks, breaks, leaks, plugged ports, or other actual or potential malfunctions." The Discharger was concerned with this language because that the contractor that conducts the outfall visual inspections may or may not be able to inspect the outfall the same month every year.

Staff Response 6: Staff understands the Discharger concern and has added language to Section VII.A. This section now states "[a]t least once per year (in the same month annually or between June and September as appropriate) the Discharger shall visually inspect the entire outfall and diffuser structure (e.g., divers, dye study) to note its structural integrity and any cracks, breaks, leaks, plugged ports, or other actual or potential malfunctions."

Comment 7: Reporting Requirements

Montecito Sanitary District noted that Section XII.B (Self-Monitoring Reports) contained quarterly and semiannual reporting requirements that do not apply. Furthermore, Tables XII-1 and XII-2 contained similar reporting requirements, definitions, and schedules that do not apply. The Discharger requested the removal of these reporting requirements, definitions, and reporting schedule to avoid any confusion.

Staff Response 7: Staff concurs with the request and has removed hourly, quarterly, semiannual reporting requirements, definitions, and reporting schedules in Section XII.B., Table XII-1, and Table XII-2.

Montecito Sanitary District submitted the following written comments on October 5, 2006.

Comment 8: Effluent Monitoring Schedule

"In Section IV, Effluent Monitoring Requirements, a monitoring schedule of July 2007, June 2008, May 2009, April 2010, and March 2011 is being proposed. The tentative order states that "the Annual Effluent Monitoring shall be collected during dry weather

conditions." The District's existing permit requires the Annual Effluent Monitoring to take place in August every year. We have not experienced any wet weather issues with performing the Annual Effluent Sampling in August. We also see no wet weather issues with performing the Annual Effluent Sampling in May, June or July. Upon review of the District's historic rainfall records we find March and April as months of significant rainfall in our area. This could pose a problem in obtaining accurate dry weather sampling conditions. The District would appreciate your consideration of changing the proposed Annual Effluent Monitoring schedule to the following historically dry weather months: September 2007, August 2008, July 2009, June 2010 and May 2011."

Staff Response 8: Staff concurs with the request and has modified Section IV to indicate monitoring to occur September 2007, August 2008, July 2009, June 2010, and May 2011.

Comment 9: Biosolids Monitoring

"In Table IX-1, Minimum Biosolids Monitoring, sampling is required for Priority Pollutants in August 2011. If it is the intention of the Regional Board to have the results of these tests for review and consideration prior to the issuance of the District's next tentative order (2011-2016), it would seem appropriate for the month of the required sampling to be changed to earlier in the year, possibly to May 2011 to coincide with the District's proposed month for Annual Effluent Monitoring."

Staff Response 9: Staff concurs with the request and has made the appropriate changes to Table IX-1, Section VII.B. Biosolids monitoring for priority pollutants will coincide with the effluent monitoring in May 2011.

Comment 10: Monitoring Consistency

"Lastly, we would appreciate your consideration to revise not only the Biosolids Monitoring, but the Toxicity, Benthic Biota and Ocean Bottom Sediment Sampling, to coincide with the Annual Effluent Monitoring month for that particular year. This will be more productive and efficient when working with our contract laboratories. Additionally, it would prove to be beneficial in the analysis of the various sampling results, enabling "cause and effect" determinations to be made."

Staff Response 10: Staff has reviewed the Discharger's comments to coincide for biosolids, toxicity, benthic and ocean bottom sediment monitoring requirements with the annual effluent monitoring for priority pollutants. Section VII.B.1., Table VII-1 (Minimum Biosolids Monitoring) has been modified to remove the word "August." The table now requires the Discharger to monitor moisture, pH, boron, cadmium, copper, chromium (total), lead, mercury, nickel, silver, zinc, Total Kjeldahl Nitrogen, ammonia (as N), nitrate (as N), total phosphorus, Paint Filter Test, Oil/Grease, and Priority Pollutants. This modification will allow the Discharger to monitor biosolids concurrent with the effluent monitoring in September 2007, August 2008, July 2009, June 2010, and May 2011.

Section IV, Table IV-1 (acute and chronic toxicity), Section VI.B, Table VI- (ocean bottom sediment), and Section VII.B.1 1 (benthic biota) requires the Discharger to collect samples annually. These sections are not specific for which month samples are to be collected; therefore, the Discharger has discretion to monitor concurrent with the effluent monitoring. These sections will not be changed.

Ms. Hillary Hauser, Executive Director, Heal the Ocean submitted written comments on October 17, 2006. Due to staff oversight, Heal the Ocean was not sent the notification letter for public comment of this Order. Although the written comments were submitted after the public comment period, they were accepted and incorporated into the Order. Heal the Ocean's comments are included below.

Comment 11: Flow Statistics

"We have reviewed almost all WDRs for wastewater treatment plants that discharge into the Pacific Ocean, and the majority of them include within their facility descriptions data on Annual Average Dry Weather Flow, the Peak Seasonal Dry Weather Flow, and the Maximum Wet Weather Flow. The MSD revised WDR needs to include this information."

Staff Response 11: Staff concurs with the request and has incorporated flow statistics table and description in Section II.A. of the Fact Sheet.

Comment 12: Ocean outfall information

"The facility description (WDR Pg. 3) is missing a detailed account of the ocean outfall distance from shore and depth of water at the discharge point. Other WDRs have this information in the facility description and in the Fact Sheet, whereas the MSD WDR has this information only in Appendix F - Fact Sheet. We ask that this information be inserted into the facility description (WDR Pg. 3) as well as the Appendix, to eliminate the problem of searching through the entire document to find it."

Staff Response 12: Staff included a description of the ocean outfall's distance from the shore and depth of water at the discharger point in Section II.B. of the Order. This will provided consistency with Section II.B. of the Fact Sheet

C. Public Hearing

The Central Coast Water Board will hold a public hearing on the tentative WDRs during its regular Board meeting on the following date and time and at the following location:

Date: December 1, 2006

Time: The meeting is scheduled to begin at 8:30 a.m. This public hearing is not currently scheduled for a particular time during the meeting, and the Board may take up the issue at any time. Please see the meeting agenda upon publication (approximately two weeks before the hearing date).

Location: Central Coast Regional Water Quality Control Board Room
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401

Interested persons are invited to attend. At the public hearing, the Central Coast Water Board will hear testimony, if any, pertinent to the discharge, WDRs, and permit. Oral testimony will be heard; however, for accuracy of the record, important testimony should be in writing.

Please be aware that dates and venues may change. Our web address is www.waterboards.ca.gov/centralcoast, where you can access the current agenda for changes in dates and locations.

D. Waste Discharge Requirements Petitions

Any aggrieved person may petition the State Water Resources Control Board to review the decision of the Central Coast Water Board regarding the final WDRs in accordance with Section 13320 of the California Water Code and Title 23, California Code of Regulations, Section 2050. The petition must be submitted within 30 days of the Central Coast Water Board's action to the following address:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street
Sacramento, CA 95812-0100

Persons may find additional instructions for filing petitions at: <http://www.waterboards.ca.gov/html/petitions.html>, or may request them from Central Coast Water Board staff shown below in Fact Sheet Section VIII.G.

E. Information and Copying

The Report of Waste Discharge (RWD), related documents, tentative effluent limitations and special provisions, comments received, and other information are on file and may be inspected at the address above at any time between 8:00 a.m. and 5:00 p.m., Monday through Friday. Copying of documents may be arranged through the Central Coast Water Board by calling or faxing Sue Gerdson at (805) 549-3465 (phone) or (805) 788-3521 (fax).

F. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDRs and NPDES permit should contact the Central Coast Water Board, reference this facility, and provide a name, address, phone number, fax number, and email address.

G. Additional Information

Requests for additional information or questions regarding this order should be directed to David LaCaro at (805) 549-3892 or dlacaro@waterboards.ca.gov, or Harvery Packard at (805) 542-4639 or hpackard@waterboards.ca.gov.

Date _____

California Regional Water Quality Control Board
Central Coast Region
Attn: Monitoring and Reporting Review Section
895 Aerovista Place, Suite 101
San Luis Obispo, CA 93401

Dear Mr. Briggs:

Facility Name: _____
_____Address: _____

Contact Person: _____

Job Title: _____

Phone Number: _____

WDR/NPDES Order
Number: _____

Types of Report (circle all):

Monthly Quarterly Semi-Annual Annual

Month(s) (circle applicable
months*):

JAN FEB MAR APR MAY JUN

JUL AUG SEP OCT NOV DEC

*Annual Reports (circle the first month of the
reporting period)

Year: _____

Violation(s) (Place an X by
the appropriate choice):No (there are no violations
to report)Yes
_____If Yes is marked (complete a-
g):a) Parameter(s) in
Violation: _____

b) Section(s) of
WDR/NPDES Violated:

c) Reported Value(s)

d) WDR/NPDES
Limit/Condition:

e) Dates of Violation(s)
(reference page of
report/data sheet):

f) Explanation of Cause(s):
(attach additional information
as needed)

g) Corrective Action(s):
(attach additional information
as needed)

In accordance with the Standard Provisions and Reporting Requirements, I certify under penalty of law that this document and all attachments were prepared under my direction or supervision following a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my knowledge of the person(s) who manage the system, or those directly responsible for data gathering, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that

there are significant penalties for submitting false information, including the possibility of fine and imprisonment.

If you have any questions or require additional information, please contact me at the number provided above.

Sincerely,

Signature

Printed Name

Title